



Operating Policy Manual

The USA Swimming Operating Policy Manual is currently under review and revisions will be made on a rolling basis. Please be aware that some information in this manual is outdated; please reach out to a USA Swimming staff member with any specific questions.

Last update: September 16, 2025

<https://www.usaswimming.org/about-usas/organization/overview#all-staff>

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I. General Policies

1.0 USA Swimming Vision Statement & Mission Statement

Date adopted / Last revision: February 16, 2021

Vision Statement

To inspire and enable our members to achieve excellence in the sport of swimming and in life.

Mission Statement

USA Swimming is the National Governing Body for the sport of swimming. We administer competitive swimming in accordance with the Olympic & Amateur Sports Act. We provide programs and services for our members, supporters, affiliates, and the interested public. We value these members of the swimming community, and the staff and volunteers who serve them. We are committed to excellence and the improvement of our sport. We are committed to providing a safe and positive environment for all members.

2.0 Cultural Values – Operating Principles

Date of adoption / Last revision: March 31, 2021

The organizational and business culture of USA Swimming is founded upon a strong value system. This value system is the cornerstone for the attitude and work ethic to which we are all committed. In short, we will continue to:

1. Embrace the responsibilities of leadership and strive for excellence in everything we do.
2. Conduct business with integrity, transparency, and a spirit of stewardship – act in the best interests of the sport and our members.
3. Be service-oriented with our members, business partners and each other.
4. Engage in disciplined planning, but not be afraid to act intuitively to confront challenges and seize opportunities.
5. Identify clear priorities and allocate our time and resources accordingly.
6. Hold ourselves and each other accountable to the highest standards of performance results and professionalism; treat others fairly and with respect.
7. Exhibit an entrepreneurial spirit, enthusiasm for growth, and a positive “can do” attitude.
8. Encourage environments in which our members are safe.
9. Promote the importance of diversity and inclusion.
10. Strive to learn and improve, always be open to questions, and maintain a willingness to change.

3.0 Statement of Ethics and Conflict of Interest

Date of adoption / Last revision: December 19, 2024

The USA Swimming Statement of Ethics and Conflict of Interest Policy can be found as Appendix C in the Board Governing Policies Manual. The Board Governing Policies Manual can be found here:

https://www.usaswimming.org/docs/default-source/governance/governance-lsc-website/rules_policies/board-of-directors-governing-policies-manual.pdf.

4.0 Whistle Blower and Anti-Retaliation Policy

Date of adoption / Last revision: January 28, 2023

Purpose: The purpose of this Whistleblower and Anti-Retaliation Policy (the “Policy”) is to

- i. encourage and provide a mechanism for USA Swimming, Inc. (“USA Swimming”) Board members, officers, employees, members, athletes, committee members, task force members, hearing panel members, and volunteers (“Covered Individuals”) to report alleged Retaliation (defined below);
- ii. encourage cooperation in inquiries and investigations of reported Retaliation;
- iii. protect Covered Individuals, including any good faith reporter or other reasonable party (e.g. witnesses, victims, etc.), from (a) intimidation or threats to prevent good faith reporting of violations under the jurisdiction of USA Swimming’s National Board of Review (“NBOR”), the USA Swimming Board of Directors, the U.S. Olympic & Paralympic Committee (the “USOPC”), the U.S. Center for SafeSport (the “Center”), law enforcement or other governmental or administrative body (b) Retaliation for good faith reporting of alleged violations, or (c) any other form of Retaliation; and
- iv. encourage individuals to report any alleged Violations¹ in good faith, as well as alleged Retaliation described in (iii).

Additionally, where reasonable, contractors shall be required to comply with this Policy in their written contracts.

Retaliation: No Covered Individual shall suffer harassment, intimidation, adverse employment or livelihood consequences, or any other form of retaliation (“Retaliation”) for (i) making a good faith report of a Violation to USA Swimming, the USOPC, the Center, law enforcement or other governmental or administrative body; or (ii) participating in an investigation by USA Swimming, the USOPC, or the Center, or an inquiry or investigation by

any court, law enforcement, or other governmental or administrative body. “Retaliation” also includes retaliation as described in Article 307 of the USA Swimming Rulebook² and the definition of retaliation included in Section 220501(b)(11) of the Ted Stevens Olympic and Amateur Sports Act (the “Act”).³

¹ Violations covered under this Policy include, but are not limited to, compliance with the Act, the USOPC Bylaws and policies, USA Swimming’s Bylaws, policies, procedures, state and federal laws, and accounting and financial practices (“Violations”).

² ARTICLE 307 PROHIBITIONS AGAINST RETALIATION FOR GOOD FAITH REPORTING OF ABUSE

307.1 No Member shall retaliate against any individual who has made a good faith report under 306.1 or 304.3.14.

307.2 For the purposes of 307.1, there shall be a rebuttable presumption that any adverse action regarding the employment, membership, or other material rights of an individual who has made a good faith report under 306.1 or 304.3.14 within 90 days of a report is retaliatory. An adverse action includes, without limitation: discharge or termination; demotion or reduction

³ “[A]ny complaint, by the Protected Individual or a parent or legal guardian of the Protected Individual relating to the allegation of physical abuse, sexual harassment, or emotional abuse, with the U.S. Center for SafeSport; a coach, trainer, manager, administrator, or official associated with the USOPC; the United States Attorney General; a federal or state law enforcement authority; the Equal Opportunity Employment Commission; or Congress.” Section 220501(b)(11) of the Act adverse or discriminatory action, or the threat of an adverse or discriminatory action, including removal from a training facility, reduced coaching or training, reduced meals or housing, and removal from competition carried out against a Protected Individual as a result of any communication, including the filing of a formal

Additionally, no employee, contractor, agent, volunteer, or USA Swimming itself shall take or threaten to take any action against an athlete as a reprisal for disclosing information to or seeking assistance from the Office of the Athlete Ombuds as outlined in Section 220509(b)(5) of the Act.

Reporting Procedure: Covered Individuals are required to report (in good faith) Retaliation to USA Swimming's Ethics Committee, at the following email address: ethicscommittee@usaswimming.org. Reports may be submitted anonymously (though it may be more difficult to investigate anonymous reports). As members of the Ethics Committee, the following individuals will receive any reports sent to the Ethics Committee's email address: a 10-Year Athlete representative of the Board of Directors, an Independent⁴ Board Member, a Semi-Independent⁵ member of USA Swimming, and USA Swimming's Secretary & General Counsel.

Covered Individuals are also required to report Violations to the appropriate party with jurisdiction over the Violation (e.g., the USA Swimming National Board of Review, the USOPC, etc.). Knowingly making a false report is also a violation of this Policy and must be reported by any Covered Individual as such.

All athlete safety violations must be reported: however, complaints of Retaliation that fall under the exclusive jurisdiction of the Center should be directed to the Center. Nothing in this Policy replaces or changes an individual's obligations under the SafeSport Code for the U.S. Olympic and Paralympic Movement. If the Ethics Committee receives a complaint that may fall under the Center's jurisdiction, it must send the complaint to USA Swimming's Program Director, Safe Sport, who will confirm whether the Center has exclusive jurisdiction over the matter and, if so, will make a report with the Center.

Investigation: Upon receipt of a filed complain, the Ethics Committee shall promptly perform an initial inquiry and, as appropriate, initiate an investigation of reports of Retaliation. A complaint may not warrant investigation following an initial inquiry if, for example, the Ethics Committee determines that it does not have jurisdiction over the matter under this Policy, if there is insufficient evidence, or if the reporting party declined to participate in the initial inquiry. If a member of the Ethics Committee is allegedly involved in or witness to the Retaliation, they will recuse themselves from the investigation.

After the initial inquiry and investigation are complete, the Ethics Committee may decide to initiate a complaint in the name of the Ethics Committee by filing the complaint with the NBOR Chair and requesting a hearing. If the Ethics Committee does not decide to initiate a complaint following an investigation, it may advise the complaining party that, while the Ethics Committee will not initiate a complaint in its own name, the complaining party may still file their complaint directly with the NBOR Chair. If the complaining party chooses to go forward with the complaint, the NBOR Chair may then decide to either assign the matter for hearing or dismiss the complaint. Following a hearing and decision of the NBOR, any real party in interest may appeal any decision of the NBOR pursuant to Article 407 of the Rulebook.

USA Swimming may discipline (up to and including by termination of employment or other association with USA Swimming) a Covered Individual for any such Retaliation. A Covered Individual making a report of a Retaliation in bad faith may be subject to disciplinary action.

The Ethics Committee should coordinate with USA Swimming's Manager, Human Resources, Payroll & Benefits if it receives any allegations of retaliation involving employees. If during an investigation, the Ethics Committee finds that an employee has retaliated against a Protected Individual⁶ the Ethics

⁴ As defined by USA Swimming Bylaw 4.6.4

⁵ As defined by USA Swimming's Rules & Regulations

⁶ As defined by the Act, any amateur athlete, coach, trainer, manager, administrator, or official associated with the USOPC or a National Governing Body. Section 220509(c)(2) of the Act

Committee must immediately report the retaliation to USA Swimming; USA Swimming must immediately terminate or suspend that individual without pay as required by Section 220509(c)(2) of the Act.

Confidentiality: All such reports will be treated as confidentially as possible, given that there may need to be some disclosure to conduct the investigation. For example, USA Swimming may need to waive confidentiality under this Policy based on legal reporting requirements.

Contact Information for the Office of the Athlete Ombuds

Phone: 719-866-5000

Email: ombudsman@usathlete.org

Website: usathlete.org

USOPC Integrity Portal

Website: <https://secure.ethicspoint.com/domain/media/en/gui/53006/index.html>

5.0 Sexual Misconduct Policy

Date of adoption / Last revision: March 31, 2021

It is the policy of USA Swimming as represented in the Code of Conduct and the SafeSport Code for the Olympic and Paralympic Movement that all of its participants, including, without limitation, member athletes, coaches, officials and volunteers, have the right to participate and compete in an environment that is healthy and positive, free from sexual abuse and harassment.

6.0 Document Retention Policy

Date of adoption / Last revision: March 15, 2021

USA Swimming's legal counsel shall be instructed to inform the President & CEO when document destruction (planned or otherwise) should be halted. The President & CEO will in turn notify the staff and board members. Violation of such orders can result in immediate termination.

7.0 Swimming Privacy Policy

Date of adoption / Last revision: November 2023

Please read the following Privacy Policy (this “Policy”) carefully. If you do not agree with these terms governing your relationship with USA Swimming, you should not use the USA Swimming applications, website, platform, or other software or technology products.

USA Swimming, Inc., and its affiliates and associates (together “USA Swimming,” “we,” “us,” or “our”) is committed to protecting the privacy of its website users, members, swimmers, and families. We have prepared this Privacy Policy (this “Policy”) to describe our practices regarding the collection, use, and sharing of personal information for our technology products that link to this Policy and which include: (i) our website, including all pages on our domain www.usaswimming.org (the “website”), (ii) our applications, including the USA Swimming Mobile Application (the “USA Swimming Mobile App” or together the “applications”), and (iii) our membership management platforms including the SWIMS Platform (the “SWIMS Platform”). This Policy does not apply to information collected about you offline, through sites such as online shops or donation platforms that display different privacy policies, or through your interactions with USA Swimming employees or contractors outside of the website or applications (such as via telephone or email).

We reserve the right to modify this Policy at any time and will notify you by changing the “Last Updated” date above and/or by notifying you using the contact information you provided, if any. Please review this Policy periodically to keep up to date on our most current policies and practices.

A. HOW WE COLLECT YOUR PERSONAL INFORMATION

As used in this Policy, “personal information” means information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular consumer or household. Personal Information does not include information that is already in the public domain, government records, or that you choose or agree to make public through USA Swimming or any other means. We collect personal information about you from the below sources.

OUR WEBSITE

As an interactive website, we collect certain personal information, including cookies. When you use certain features on our website, we will collect additional personal information. For example, when you create an account, we collect your name, email, login credentials, and membership information. When you shop with our third-party providers, we receive information on which products you purchase. When you apply for a job on our Job Board, we collect your name, contact information, and resume. When you take an official test, we record your name and results.

SWIMS PLATFORM

We collect information for the SWIMS Platform when you voluntarily submit it to us, but also when your information is submitted on your behalf by a third party, such as your Local Swimming Committee (each an “LSC”), your member club (each a “club”), an event organizer, or another third party. SWIMS may collect your personal information such as:

- When you sign up on the platform, your name, birth date, physical address, email, ethnicity, disabilities, gender, and club affiliation;
- As you use SWIMS, your results, meets, competitions, awards, and honors;
- Your USA Swimming account information if you choose to link to SWIMS;
- When needed, via forms you submit, like biographical information, coaching history, clothes sizing, photos, government identification, and medical or other consents; and

The SWIMS Platform also performs logistical and organizational tasks for USA Swimming, LSCs, clubs, athletes, and non-athlete members. Some data in the SWIMS Platform is entered by USA Swimming staff, while other data may be entered by third parties like an LSC, a local club, or a vendor or representative engaged by a local club. Please see below and review our Terms of Use for more information.

USA SWIMMING MOBILE APP

We collect your name, email, phone number, credentials, username, zip code, membership, and club on the USA Swimming Mobile App (formerly known as the Deck Pass Plus app), along with your times, rankings, certifications, images, interactions with our content, and results from our events. You may also link to your USA Swimming membership with this app.

INFORMATION YOU OR USERS SUBMIT TO US

We collect personal information when you, your team, your coach, a representative or vendor of your team, your club, an LSC, or another party submits information to us. To enable you to participate in some of our activities, we may ask you to provide personal information such as name, e-mail address, telephone number, payment information, and date of birth. Here are some of the ways we may collect personal information from you:

- During account registration
- Online surveys
- Forum(s) registration
- Web server logs
- Biographical data that you submit to your club
- Times information submitted by your team or an LSC
- Testing results submitted by your coach or an LSC
- Job applications
- Concerns you report
- Contests or sweepstakes in which you participate
- Information related to risk management, such as concussion prevention, coach and member safety certification, vaccination status, disease screening, safety and risk records, club communication

- Background checks required for your account
- When you request help or otherwise contact us

THIRD PARTIES

We receive personal information from third parties such as LSCs, clubs, our foundation, your team, coaches, volunteers, officials, other governing bodies, public databases, ticketing platforms, and social media platforms to supplement the information we receive from you. If we do so, this Policy governs how we can use that personal information.

COOKIES

“Cookies” are small bits of information that may be placed on the hard drive of a computer. Cookies are used to gather basic tracking information and to present advertisements and are placed on your hard drive by many major websites. They are especially necessary when ordering a product online. Cookies allow websites to determine the type of computer operating system and browser that you and other viewers are using, which enables websites to improve access to content.

For additional information, please see USA Swimming's Cookie Policy

AUTOMATICALLY COLLECTED INFORMATION

We automatically collect information from the website and applications related to your use thereof, including pages viewed, emails opened, features used, browser and/or mobile device information, operating system, timestamps, the pages you request, and the actions and path you take on the website or application. Generally, we use this information to better understand how visitors to our website or application use it, and to make improvements to it.

B. HOW WE USE YOUR PERSONAL INFORMATION

GENERALLY

We use the personal information we collect for record and score keeping, internal marketing and USA Swimming Foundation fundraising purposes, to help us determine how to fix or improve our site, monitor usage, customize content, facilitate transactions, evaluate your application(s), and contact you for verification and administrative purposes. We do not sell or share your personal information to third parties for value unless you provide your consent.

RESULTS

We will make results of meets available on our website or through our applications. If you participate in an event sponsored by an LSC, a club, or us, your times, events, and honors may be available for public searching on our website or application.

PUBLIC POSTS

When you post messages or comments or upload images or videos to the public areas of the website, such as our Job Board, message boards, and comment sections, other users will be able to see the content of your post, as well as your username.

SOCIAL NETWORKING SITES

When you post messages or comments or upload content to social networking sites (“SNSs”), the terms of use and privacy policy of such SNSs apply. We will not be responsible or liable for: (i) the availability or accuracy of such SNSs; (ii) the content, products, or services on or available via such SNSs; or (iii) your use of any SNSs. If you post on any of our SNSs, we will collect whatever information you post and use it to improve our internal functioning, administer our events, provide you information you request, and improve our marketing.

APPLICATIONS

We use the personal information you provide to SWIMS Platform and the USA Swimming Mobile App to provide the services you request, to administer swim meets and similar administrative functions related to swimmers and their clubs, to perform our functions as a governing body, to protect our sport from doping, and to market USA Swimming to you and others. We, our affiliates, an LSC, or a club may also share between us, some of the personal information contained on the SWIMS Platform including an athlete's name, age, affiliation, and results. When your information is being entered into the SWIMS Platform during registration, the SWIMS Platform may suggest information about you stored in the SWIMS Platform to the enterer in order to ensure the correct person is registered. Suggested information may include things like name, location, birth date, and linking your USA Swimming membership.

ANONYMOUS DATA

We may create anonymous data records from personal information by excluding information (such as your name) that makes data personally identifiable to you. We may use this anonymous data to figure out how people interact with us so we can improve our internal functioning, your experience, our services, and our security. We reserve the right to use anonymous data for any purpose and to share this data with third parties including our service providers, teams, clubs, LSCs, or others for any purpose whatsoever.

TARGETED ADVERTISING

We may use your contact information, cookies, or a combination of both to send you targeted offers involving third parties or on SNSs. To opt out of retargeting, please email us at privacy@usaswimming.org or (i) unsubscribe from our mailing list using the unsubscribe link at the bottom of any promotional email, and (ii) opt out of cookies per USA Swimming's Cookie Policy.

CONSENT

We will use your personal information as you direct via your consent procured in accordance with applicable law.

C. HOW WE SHARE YOUR PERSONAL INFORMATION

We may share your personal information with service providers that perform services for USA Swimming such as hosting, marketing assistance, and website optimization. We may disclose information without providing you a choice or notice to protect our legal rights or those of affiliated companies, employees, or agents, to protect the safety and security of other users, or for risk management purposes. We may also share personal information with third-party service providers to USA Swimming or other third-party services to which your LSC, club, parent, or guardian request access pursuant to a separate agreement with us.

In addition to the above, we may share your personal information in the following situations:

- As you consent to those uses at the time you provide your personal information;
- As required by law or to protect our rights and property with third parties. This includes:
 - Complying with a subpoena or other legal process requests,
 - Protecting your safety or the safety of others,
 - Investigating fraud or violation of our terms of use or other contract, and
 - Responding to a valid government request or subpoena.
- For public health activities and purposes, such as contagious disease reporting, investigation or surveillance, and notices to and from our governing bodies;
- For health oversight activities, such as licensing, audits, investigations, and inspections;
- To avert a serious threat to your health and safety or the health or safety of another person pursuant to applicable law;
- For law enforcement purposes, such as to provide information about someone who is or was suspected to be a victim of a crime or to report information about a crime, or to a correctional institution in certain circumstances;
- For specialized government functions, such as for lawful national intelligence purposes, for military purposes; and
- Disclosures authorized by an applicable workers' compensation program.

Please see "For California Residents" below for more on how we share your personal information.

D. THIRD-PARTY SITES

Our website contains links to other sites whose information practices may be different from ours. You should consult the other websites' privacy notices, which may differ from ours. We encourage you to read the privacy policy of any third-party website or applications before transmitting information to such third party. If you, your LSC, club, or coach link your member account with a third-party service that your LSC or club uses, that third party service's privacy notice will apply.

E. SECURITY

USA Swimming endeavors to protect and keep user personal information private. We use appropriate security measures designed to protect the security of your personal information both online and offline, including without limitation relevant industry certifications. These measures vary based on the sensitivity of the personal information we collect, process, and store and the current state of technology. We also take measures to ensure service providers that process personal data on our behalf also have appropriate security controls in place.

USA Swimming cannot guarantee the security of user account information. Unauthorized entry or use, hardware or software failure, and other factors may compromise the security of user information at any time.

Your accounts are protected by a password selected by you for your privacy and security. You are solely responsible for ensuring that there is no unauthorized access to your account using those credentials.

F. CHILDREN UNDER THE AGE OF 16

We do not knowingly collect or solicit personal information from anyone under the age of 16 without appropriate parent or guardian consent. If you are under 16, please do not attempt to register for any of our services or send any information about yourself to us; please have your parent or guardian create an account. No one under age 16 should provide any personal information to us through our website or applications. If we learn that we have collected personal information from a child under age 16 without legally sufficient parent or guardian consent, we will delete that information as quickly as possible. If you believe that we might have any inadvertently collected or received personal information from or about a child under 16, please contact us at privacy@usaswimming.org as soon as possible and we will delete the information.

G. FOR CALIFORNIA RESIDENTS

This section of the Policy applies only to the extent that USA Swimming is subject to the California Consumer Privacy Act (the “CCPA”). Unless otherwise defined in this Policy, capitalized terms in this section have the meaning given to them in the CCPA.

COLLECTION, USE, AND SHARING OF PERSONAL INFORMATION

We have collected the following categories of personal information about website or application users the past 12 months. The categories of personal information listed below are defined by the CCPA. We do not sell or share your personal information for valuable consideration, as defined by the CCPA, and have not done so in the previous 12 months.

Category of Personal Information Collected	Sold or Shared?	Disclosed for Business Purpose?	Categories of Recipients	Retention Period*
Identifiers, such as name, email address, and member number	No	Yes	Marketing, IT, hosting, ecommerce, and swim club and LSC administration service providers. Governing bodies, teams, coaches, officials, volunteers.	The duration of your membership or interaction with us, plus ten years
Customer Records	No	Yes	Swim club and LSC administration service providers. Governing bodies, teams, coaches, officials	The duration of your membership or transaction with us, plus ten years

Commercial Information, such as products purchased	No	Yes	Marketing, IT, hosting, ecommerce, and swim club and LSC administration service providers. Governing bodies, teams, coaches.	Seven years
Protected Classifications	No	Yes	Governing bodies, teams, coaches, Swim club and LSC administration service providers	The duration of your membership or interaction with us, plus ten years
Internet Activity Data	No**	Yes	Hosting, IT, eCommerce, marketing, advertising, and security service providers	Seven years
Sensitive Personal Information, such as Government ID or disability information	No	Yes	Governing bodies, teams, coaches, Swim club and LSC administration service providers	The duration of your membership or interaction with us, plus ten years
Professional or Education Information	No	Yes	Hosting, IT, security, HR, service providers. Governing bodies, teams, coaches.	As long as necessary to evaluate your submission or application, plus seven years
Inferences about your preferences, characteristics, or behaviors	No	Yes	Hosting, IT, eCommerce, advertising, marketing, and security service providers	Four years

*All retention periods are subject to the potential for longer retention pursuant to applicable law, litigation hold, or separate contract between you, your LSC, Club, Coach, and us or a service provider.

**We use google analytics on our site to help us track the effectiveness of our advertising and marketing efforts. To the extent this may be considered a “sale” of personal information under the CCPA, you may opt out by changing your cookie preferences [here](#).

YOUR RIGHTS UNDER THE CCPA

Under the CCPA, you have the following rights:

- Right to Know: You have the right to request that we disclose to you the personal information we collect, use, or disclose, and information about our data practices.
- Right to Request Deletion: You have the right to request that we delete your personal information that we have collected from you.
- Right to Non-Discrimination: We will not discriminate against you for exercising any of these rights.

- Right to Restrict Processing of Sensitive Personal Information: You have the right, at any time, to direct us to limit our use of your sensitive personal information to that use which is necessary to perform the services you have requested, e.g., to evaluate and administer your job application.
- Right to Opt Out of Sale of Personal Information: You have the right to opt out of the sale of your personal information for purposes of targeted advertising. You may opt out of our use of cookies or other technologies which may be deemed to be a sale of personal information by using our cookie banner or clicking [here](#).

To exercise your rights under the CCPA, [click here](#) or call our toll-free line at 719-866-4578.

Please note that to protect your information and the integrity of our services, we may need to verify your identity before processing your request. In some cases, we may need to collect additional information to verify your identity, such as a government issued ID.

Under the CCPA, you may exercise these rights yourself or you may designate an authorized agent to make these requests on your behalf. We may request that your authorized agent have written permission from you to make requests on your behalf and may need to verify your authorized agent's identity.

H. PROTECTED HEALTH INFORMATION

When you participate in certain USA Swimming events, join certain teams, sign up for SWIMS, or provide relevant information to your LSC, club, or coach, we may collect information deemed "protected health information" as defined by the Health Insurance Portability and Accountability Act of 1996. The following is a list of your rights with respect to your protected health information and a brief description of how you may exercise these rights. You can request to exercise any of these rights by contacting us using the contact information below.

ACCESS TO YOUR RECORDS

You have the right to look at or order a copy of your protected health information that we maintain. Except in a few limited situations, we will respond to your request for access to or request for a copy of your protected health information within 30 days of receiving your written request. If we need more time, we will notify you in writing. If we have information about you in electronic format, we will provide it to you in an electronic format. As permitted by federal and state law, we may charge you a reasonable cost-based fee for a copy of your records.

RESTRICTION OF YOUR PROTECTED HEALTH INFORMATION

You may request restrictions on how we use and disclose your protected health information. We will consider such a request, but we are not required to agree to a restriction.

CONFIDENTIAL COMMUNICATIONS

You may ask us to communicate with you in a confidential way concerning your protected health information by emailing us at Sportdevelopment@usaswimming.org. We will accommodate any reasonable request for you to receive your protected health information by alternative means of

communication or at an alternative location. We will not request an explanation from you as to the basis for such a request.

AMENDMENT TO YOUR PROTECTED HEALTH INFORMATION

You may ask us to amend your protected health information if you think it is incomplete or inaccurate. We will respond within 30 days of such request, unless we notify you in writing we need additional time. Please contact privacy@usaswimming.org if you have questions about amending your protected health information.

ACCOUNTING OF CERTAIN DISCLOSURES

You have the right to request a list of disclosures that we have made of your protected health information within the past six years (or a shorter period if you want). We will usually respond to your request for a list of disclosures within 30 days of the receipt of your request.

NOTICE OF A BREACH

We will notify you if there is a breach involving your protected health information, as required by law.

I. COMMUNICATIONS TO USA SWIMMING

For questions or concerns about our Policy or any other privacy or security issue, please contact us at privacy@usaswimming.org.

You may also contact us at:

USA SWIMMING
Attn: Privacy Policy
1 Olympic Plaza # 2C
Colorado Springs, CO 80909

8.0 Cookie Policy

Date of adoption / Last revision: March 22, 2021

Please read this “Cookie Policy” carefully as it contains important information on how we, USA Swimming, use cookies and other tracking technologies on our website located at www.usaswimming.org (“Website”). This Cookie Policy should be read together with our Privacy Policy, which sets out how and why we collect, store, use and share personal data generally, as well as your rights in relation to your personal data and details of how to contact us and supervisory authorities if you have a complaint. This Cookie Policy relates only to your use of the Website. Any term capitalized and undefined in this Cookie Policy shall have the meaning in the Privacy Policy.

Cookies

Like most websites, USA Swimming may place a “cookie,” or small file, in the browser files of a visitor’s computer to enable the functionality of the website or use tracking technologies. Some cookies are used to prepopulate forms for you so that on repeat visits to the Website you do not need to re-enter certain information. You can set your browser to disable cookies, but then you would not have the advantage of having certain sections of forms being prepopulated for you, and you may not be able to access certain parts of the Website. You can find more information about cookies and how to manage them at www.allaboutcookies.org.

Our Website uses the following types of cookies for the purposes set out below:

Type of Cookie	Purpose
<i>Essential Cookies</i>	Essential cookies provide you with services available through our Website and to enable you to use some of their features. Without these cookies, the services that you request via our Website may not be possible to provide. We only use these cookies to provide you with those services.
<i>Functionality Cookies</i>	Functionality cookies allow our Website to remember choices you make when you use it. The purpose of these cookies is to provide you with a more personalized experience and to avoid you from having to re-select your preferences every time you use our Website.
<i>Analytics and Performance Cookies</i>	Analytics and performance cookies are used to collect information about traffic to our Website and how users use our Website. The information gathered may include the number of visitors to our Website, the websites that referred them to our Website, the pages they visited on our Website, what time of day they visited our Website, whether they have visited our Website before and other similar information. We use this information to help operate our Website more efficiently, to gather demographic information and to monitor the level of activity on our Website.
<i>Targeting Cookies</i>	Targeting cookies record your visit to our Website, the pages you have visited and the links you have followed. We use this information to display our advertising to you on other websites. Third party advertisers also use these types of cookies to show

advertisements for other businesses or organizations based on your online behavior and overall activity.

We will ask for your consent to place cookies or other similar technologies on your device, except where they are essential for us to provide you with the service or functionality that you have requested.

You can also remove or reject cookies via your browser settings. To do this, follow the instructions provided in your browser (usually located within the “settings,” “help,” “tools” or “edit” facility). Many browsers are set to accept cookies until you change your settings. If you do not accept our cookies, you may experience some inconvenience in your use of our Website.

Google Analytics

We use Google Analytics to help us understand traffic patterns and know if there are problems with our Website. We may also use embedded images in emails to track open rates for our mailings, so that we can tell which mailings appeal most to USA Swimming supporters. You may opt out of Google Analytics cookies or opt-out of having Google send your information to a third party by visiting Google’s opt-out page: <https://tools.google.com/dlpage/gaoptout>.

Facebook ID

We may use your email address and Facebook ID to participate in Facebook’s Custom Audience, Lookalike Audience, or other programs, which enable us to display campaign promotions to both existing and prospective members when they visit.

To do this, we may send a digital “fingerprint” of your email address to Facebook. We do not send your actual email address, but instead a cryptographic piece of data that Facebook can use to find matches to email addresses in their database. If you are a Facebook user and your USA Swimming email address “fingerprint” matches data at Facebook, USA Swimming campaign promotions may then appear when you access Facebook.

For more detailed information about how you can control the ads presented to you on Facebook, please see: <https://www.facebook.com/help/1075880512458213/control-the-ads-you-see/> and Facebook’s data policy at <https://www.facebook.com/policy.php>.

Other Third-Party Cookies

More generally, if you would like to opt-out of having interest-based information collected by third parties during your visits to our Website or other websites, please visit <http://www.aboutads.info/choices/>. Some third parties do not participate in the industry-developed opt-out website, in which case the best way to avoid third-party tracking of your online behavior may be through your browser settings and deletion of cookies.

Do Not Track Mechanisms

Your browser may deliver a “Do-Not-Track (‘DNT’) signal,” or similar mechanism for exercising choices about the collection of information about your online activities. Because of the changing state of technology, we do not guarantee that we will honor DNT signals or similar mechanisms at this time.

Our Cookies

We have set out information about the cookies we use and the purposes for which we use them in the table below:

Name of Cookie	Type of Cookie	Purpose
tluid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
icu	<i>Functionality Cookie</i>	Stores your site preferences.
uids	<i>Functionality Cookie</i>	Stores your site preferences.
anj	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
bounce	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
uuid2	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
__adroll_fpc	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
__adroll_shared	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
TDCPM	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
TDID	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
APID	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
AKA_A2	<i>Essential Cookie</i>	Enables you to use the site.
c	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
tuuid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
tuuid_lu	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
BIGipServerPRODSF WEB_8085	<i>Essential Cookie</i>	Enables you to use the site.
MUID	<i>Functionality Cookie</i>	Stores your site preferences.
SRCHD	<i>Functionality Cookie</i>	Stores your site preferences.
SRCHUID	<i>Functionality Cookie</i>	Stores your site preferences.
_SS	<i>Functionality Cookie</i>	Stores your site preferences.
RT	<i>Essential Cookie</i>	Enables you to use the site.

CMID	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
CMPRO	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
CMPS	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
CMRUM3	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
CMST	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
euconsent-v2	<i>Essential Cookie</i>	Enables you to use the site.
DeckPassMobileToken	<i>Essential Cookie</i>	Enables you to use the site.
DSID	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
IDE	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
RUL	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
__ar_v4	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
__gads	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
c_user	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
datr	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
fr	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
sb	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
xs	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
_fbp	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
1P_JAR	<i>Functionality Cookie</i>	Stores your site preferences.
ANID	<i>Functionality Cookie</i>	Stores your site preferences.
APISID	<i>Functionality Cookie</i>	Stores your site preferences.
DV	<i>Functionality Cookie</i>	Stores your site preferences.
HSID	<i>Functionality Cookie</i>	Stores your site preferences.
NID	<i>Functionality Cookie</i>	Stores your site preferences.
OTZ	<i>Functionality Cookie</i>	Stores your site preferences.
SAPISID	<i>Functionality Cookie</i>	Stores your site preferences.
SEARCH_SAMESITE	<i>Functionality Cookie</i>	Stores your site preferences.

SID	<i>Functionality Cookie</i>	Stores your site preferences.
SIDCC	<i>Functionality Cookie</i>	Stores your site preferences.
SSID	<i>Functionality Cookie</i>	Stores your site preferences.
_dc_gtm_UA-1619352-3	<i>Functionality Cookie</i>	Stores your site preferences.
_ga	<i>Functionality Cookie</i>	Stores your site preferences.
_gat_gtag_UA_1619352_3	<i>Functionality Cookie</i>	Stores your site preferences.
_gcl_au	<i>Functionality Cookie</i>	Stores your site preferences.
_gid	<i>Functionality Cookie</i>	Stores your site preferences.
__Secure-3PAPISID	<i>Functionality Cookie</i>	Stores your site preferences.
__Secure-3PSID	<i>Functionality Cookie</i>	Stores your site preferences.
__Secure-3PSIDCC	<i>Functionality Cookie</i>	Stores your site preferences.
1P_JAR	<i>Functionality Cookie</i>	Stores your site preferences.
kuid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
uuid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
i	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
pd	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
univ_id	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
adrl	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
apnxs	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
obuid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
did	<i>Essential Cookie</i>	Enables you to use the site.
didts	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
chkChromeAb67Sec	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
DPSync3	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
KRTBCOOKIE_[####]	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
KTPCACOOKIE	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
PUBMDCID	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.

PugT	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
SyncRTB3	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
pxrc	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
rlas3	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
audit	<i>Functionality Cookie</i>	Stores your site preferences.
khaos	<i>Functionality Cookie</i>	Stores your site preferences.
X-AB	<i>Functionality Cookie</i>	Stores your site preferences.
SF-TokenId	<i>Essential Cookie</i>	Enables you to use the site.
sf-trckngckie	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_scid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
_sctr	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
t_gid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
taboola_vmp	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
A3	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
APID	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
APIDTS	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
GUC	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
ASP.NET_SessionId	<i>Essential Cookie</i>	Enables you to use the site.
.ASPXAUTH	<i>Essential Cookie</i>	Enables you to use the site.
.AspNet.Cookies	<i>Essential Cookie</i>	Enables you to use the site.
GPS	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
PREF	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
VISITOR_INFO1_LIVE	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
YSC	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
__gads	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
cto_bundle	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
IDE	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.

__hssc	<i>Analytics and Performance Cookie</i>	Collects information about the site.
__hstc	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_gat_gtag_UA_321287_39_2	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_gat_gtag_UA_321287_39_11	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_gat	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_ga	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_gid	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_hp2_id.1019069125	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_hp2_ses_props.1019069125	<i>Analytics and Performance Cookie</i>	Collects information about the site.
hubspotutk	<i>Analytics and Performance Cookie</i>	Collects information about the site.
intercom-id-nkfiu1bw	<i>Analytics and Performance Cookie</i>	Collects information about the site.
intercom-session-nkfiu1bw	<i>Analytics and Performance Cookie</i>	Collects information about the site.
_abexps	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
_fbp	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
_ga	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
_gcl_au	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
_uetvid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
continuous_play_v3	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
player	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
vuid	<i>Targeting Cookie</i>	Personalizes the marketing content that you see.
JavaScript Cookies	<i>Essential Cookie</i>	Enables you to use the site.

siteSearch_SearchTerm	<i>Functionality Cookie</i>	Stores your site preferences.
siteSearch_Url	<i>Functionality Cookie</i>	Stores your site preferences.

II. Safe Sport and DEI Policies

9.0 Background Check Policy

Date of adoption / Last revision: April 8, 2024

The following individuals are required to pass a criminal background check conducted by IntelliCorp Records, the background check provider engaged by USA Swimming:

- All USA Swimming non-athlete members subject to the exclusion below.
- All adult National Team and National Junior Team athletes.
- All adult athletes selected to participate on a national or international team, or an event to which the USOPC sends athletes.
- All adult non-athletes traveling with and/or having direct contact with or authority over athletes during a USA Swimming- or USOPC-related national or international team trip.
- All adult athletes training at the Olympic and Paralympic Training Center.

Exclusion: The criminal background check requirement is waived for Junior Coaches.

Background Check Searches Conducted

1. Validated Criminal Database Search for criminal convictions including Validated Sexual Offender search in all states, social security trace and identity verification, and a search of other watch lists from various national and international databases. The validated database search will be conducted on the name provided and on all former last names (as applicable) found within the seven (7) year address history.

Such search will be repeated monthly on the anniversary of the original background check date for the 24-month period that the background check authorization is valid. Any member who chooses to leave USA Swimming during this 24-month period and wishes to stop the monthly updates must notify USA Swimming's Member Services Department in writing that such member has resigned his/her membership. The monthly update will be discontinued within 30 days following receipt of the member's notice of resignation. Depending on the scheduled monthly update and the date of resignation, one monthly update may occur following the notice of resignation.

2. County Criminal Search in all counties of residence within the seven (7) year address history on name provided and one (1) former last name as applicable.
3. Federal Court Search on name provided.

USA Swimming Criminal Background Check Disqualification Criteria and Appeals Process

Any results that meet the criteria set below will be reported to USA Swimming's General Counsel.

Automatic Disqualifiers ("Review – Eligible for Dispute"): A non-athlete member or prospective non-athlete member will be disqualified from USA Swimming membership if a background search reveals that such individual has been convicted of, received an imposition of a deferred sentence for, or for any plea of guilty or no contest at any time, or the existence of any pending charges for any crime involving:

1. Any felony involving:
 - a. Violence against a person;
 - b. Violent crimes involving weapons (including armed robbery and aggravated assault with a weapon);
 - c. Animal abuse or animal neglect.
2. Any felony or misdemeanor involving:
 - a. All sexual crimes (excluding only those potential disqualifiers provided in 3(c) below);
 - b. Drug use or possession (including the use of drug paraphernalia), within the previous three (3) years;
 - c. Other drug related crimes including drug distribution, intent to distribute, manufacturing trafficking or sale within the previous seven (7) years;
 - d. Child endangerment, neglect, or abuse.

Individuals with a “Pre-Adverse” Status may dispute the accuracy of the reported information with IntelliCorp Records, but not the consequence of disqualification if the above criteria are met.

Potential Disqualifiers (“Review – Eligible for Appeal”):

A non-athlete member or prospective non-athlete member will be subject to review for disqualification from USA Swimming membership if a background search reveals that such individual has been convicted of, received an imposition of a deferred sentence for, or for any plea of guilty or no contest at any time, or the existence of any pending charges for any crime involving:

1. Other felonies not included in Automatic Disqualifiers above;
2. Crimes involving vehicular bodily harm;
3. Other misdemeanors for:
 - a. Drug crimes which are not covered in Automatic Disqualifiers above;
 - b. Violence against a person (including crimes involving firearms);
 - c. Prostitution, indecent exposure, and public indecency;
 - d. Stalking, harassment, blackmail, violation of a protection order and threats;
 - e. Destruction of property, including arson, vandalism, and criminal mischief;
 - f. Animal abuse or neglect.

Any adult National Team athlete, adult National Junior Team athlete, adult athlete selected to participate on a national or international team or an event to which the USOPC sends athletes, and any athlete training at the Olympic and Paralympic Training Center will be subject to review for disqualification from designation to the National Team, National Junior Team, section to participate in national or international team events, or events to which the USOPC sends athletes, or approval to train at the Olympic and Paralympic Training Center if a background search reveals that such individual has been convicted of, received an imposition of a deferred sentence for, or for any plea of guilty or no contest at any time, or the existence of any pending charges for any crime involving:

- (1) Any felony involving:
 - a. Violence against a person;
 - b. Violent crimes involving weapons (including armed robbery and aggravated assault with a weapon);
 - c. Animal abuse or animal neglect.
- (2) Any felony or misdemeanor involving:
 - a. All sexual crimes (excluding only those potential disqualifiers provided in 3(c) below);

- b. Drug use or possession (including the use of drug paraphernalia), within the previous three (3) years;
- c. Other drug related crimes including drug distribution, intent to distribute, manufacturing trafficking or sale within the previous seven (7) years;
- d. Child endangerment, neglect, or abuse.

Individuals with a status of “Eligible to Appeal” may request a hearing before the USA Swimming Background Check Appeal Panel to contest the consequence of disqualification. An applicant may also dispute the accuracy of the reported information with IntelliCorp Records.

Offenses that have already been reported to USA Swimming under its previous background check process would not trigger additional action.

Questions: backgroundcheck@usaswimming.org

10.0 Inactive Life Members and Background Screening

Date of adoption / Last revision: August 9, 2024

USA Swimming Corporate Bylaws 2.6.2 and 2.6.3 require all non-athlete members of USA Swimming to have satisfactorily completed criminal background checks and adult members of USA Swimming to have satisfactorily completed athlete protection education.

Inactive Life Members of USA Swimming are exempt from the criminal background screen and athlete protection education requirements set forth in Bylaws 2.6.2 and 2.6.3. Inactive Life Members of USA Swimming are defined as those Life Members who:

1. Are neither a coach member nor an active official;
2. Do not interact directly and frequently with athletes as a regular part of their duties;
3. Do not have an ownership interest or management role in a member club;
4. Are not an employee or serving on the Board of Directors of a member club; and
5. Are not serving on the Board of Directors, Board of Review, House of Delegates, or any committee, subcommittee, task force or working group of USA Swimming or an LSC.

11.0 USA Swimming Volunteer Screening and Selection Policy

Date of adoption / Last revision: November 18, 2021

All non-athletes appointed by USA Swimming to a position of leadership or authority will be subject to the mandatory and recommended components of the USA Swimming Pre-Employment Screening Procedures for New Employees. This includes, without limitation, individuals selected to serve as a coach, manager, team staff member, or medical staff member candidates for USA Swimming-selected team, training camp, or other similar activity. Additionally, this includes individuals appointed to serve as a USA Swimming committee chair or chair of a working group or task force. In addition, all such non-athletes will be subject to vetting with the U.S. Center for SafeSport and will be subject to a social network and Google media screen conducted by a third-party vendor.

All athlete representatives assigned or appointed by USA Swimming to serve as an athlete representative on a USA Swimming-selected team, training camp, or other similar activity shall be subject to a social network and Google media screen.

The results such screens will be reviewed by the USA Swimming Program Director, Safe Sport and/or the Coordinator, Background Checks and Administrative Assistant.

12.0 Minor Athlete Abuse Prevention Policy

Date of adoption / Last revision: September 1, 2021

THIS POLICY APPLIES TO:

In-Program Contact: Any contact (including communications, interactions or activities) between an Adult Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to: competition, practices, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions and/or summits.

Adult Participants: Any adult 18 years of age or older who is a:

- USA Swimming member, either athlete or non-athlete;
- Participating non-member (e.g., meet marshals, meet computer operators, timers, etc.);
- Authorized, approved or appointed by USA Swimming, Zones, Local Swimming Committees (“LSCs”) or member clubs to have regular contact with (e.g., ongoing interactions during a 12-month period wherein the individual is in a role of active engagement) or authority over Minor Athletes; and/or
- Within the governance or disciplinary jurisdiction of USA Swimming, Zones, LSCs or member clubs.

GENERAL REQUIREMENT

USA Swimming Zones, LSCs and member clubs are required to implement this Minor Athlete Abuse Prevention Policy in full. The Minor Athlete Abuse Prevention Policy must be reviewed and agreed to in writing by all athletes, parents/legal guardians, coaches and other non-athlete members of member clubs on an annual basis with such written agreement to be retained by the club or LSC, as applicable.

DEFINITIONS

Athlete: A USA Swimming athlete member.

Authority: When one person’s position over another person is such that, based on the totality of the circumstances, they have the power or right to direct, control, give orders to, or make decisions for that person (e.g., when a power imbalance exists).

Dual Relationship: When an Adult Participant has a relationship with a Minor Athlete that is outside of the sport program. Examples of Dual Relationships include, but are not limited to, family members, mental health professionals, teachers, medical professionals and family friends.

Emergency Circumstances: A serious, unexpected and possibly dangerous situation that requires quick action and cannot be avoided. Emergency circumstances include, but are not limited to: a physical, mental or emotional medical emergency involving the Minor Athlete, relative of the Minor Athlete or relative of an

Adult Participant; a Minor Athlete's suicidal ideations/behavior; a report of abuse; a severe weather event; and last-minute practice changes.

Electronic Communication: Includes, but not limited to, phone calls, emails, videoconferencing, video coaching, text-messaging and social media.

Event or Facility Under Partial or Full Jurisdiction: Includes any USA Swimming sanctioned event (including all travel and lodging in connection with participation in the event) or any facility that USA Swimming, Zones, LSCs or member clubs owns, leases or rents for practice, training or competition.

In-Program: Activities related to participation in sport. Examples include, but are not limited to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

In-Program Contact: Any contact (including communications, interactions or activities) between an Adult Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to contact occurring at or related to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

In-Program Massage: Any Massage involving an Adult Participant and any Minor Athlete(s) related to participation in sport. Examples include, but are not limited to Massage occurring at or related to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

In-Program Travel: Any transportation or travel involving an Adult Participant and any Minor Athlete(s) related to participation in sport authorized or funded by USA Swimming. Examples include, but are not limited to transportation or travel to or related to: competition, practices, meetings, camps/clinics, training/instructional sessions, pre/post event meals or outings, team travel, video review, team- or sport-related team building activities, celebrations, award ceremonies, banquets, team- or sport-related fundraising or community services, sport education, competition site visits, conventions, conferences, summits and/or workshops.

Massage: Any massage, rubdown, athletic training modality including physical modalities (e.g., stretching, physical manipulation, injury rehabilitation, etc.) and electronic or instrument assisted modalities (e.g., stim treatment, dry needling, cupping, etc.).

Minor Athlete: An athlete under 18 years of age who is a USA Swimming member or was a USA Swimming member within the previous 12 months.

EXCEPTIONS

[Note: Exceptions apply only where specified]

Close-In-Age Exception: In-Program Contact between an Adult Participant and a Minor Athlete is permitted if:

- a. The Adult Participant has no authority over the Minor Athlete; and
- b. The Adult Participant is not more than four years older than the Minor Athlete.

Dual Relationship Exception: An Adult Participant has a dual role or relationship with a Minor Athlete. This exception requires written consent of the Minor Athlete's parent/legal guardian at least annually.

ONE-ON-ONE INTERACTIONS

I. Observable and Interruptible

All one-on-one In-Program Contact interactions between a Minor Athlete and an Adult Participant must occur at an observable and interruptible distance from another adult, except:

- a. In emergency circumstances;
- b. When a Dual Relationship exists; and/or
- c. When the Close-In-Age Exception applies.

MEETINGS AND INDIVIDUAL TRAINING SESSIONS

I. Meetings

- a. Meetings between a Minor Athlete and an Adult Participant may only occur if another adult is present and where interactions can be easily observed and at an interruptible distance from another adult.
- b. If a one-on-one meeting takes place, the door to the room must remain unlocked and open. If available, it must occur in a room that has windows, with the windows, blinds, and/or curtains remaining open during the meeting.
- c. Meetings must not be conducted in an Adult Participant or Athlete's hotel room or other overnight lodging location during In-Program Travel.

II. Meetings with Licensed Mental Health Care Professionals and/or Health Care Providers

If a licensed mental health care professional and/or health care provider meets one-on-one with a Minor Athlete at an Event or Facility Under Partial or Full Jurisdiction of USA Swimming in conjunction with participation, the meeting must be observable and interruptible by another adult, except if:

- a. The door remains unlocked;
- b. Another adult is present at the facility;
- c. The other adult is advised that a closed-door meeting is occurring although the Minor Athlete's identity does not need to be disclosed;
- d. USA Swimming is notified that the licensed mental health care professional and or health care provider will be meeting with a Minor Athlete; and
- e. The licensed mental health care professional and/or health care provider obtains consent consistent with applicable laws and ethical standards, which can be withdrawn at any time.

III. Individual Training Sessions

- a. In-Program one-on-one individual training sessions outside of the regular course of training and practice between Adult Participants and Minor Athletes must be observable and interruptible by another adult, except:
 - i. When a Dual Relationship exists; and/or

- ii. When the Close-In-Age Exception applies.
- b. The Adult Participant providing the individual training session must receive advance, written consent from the Minor Athlete's parent/legal guardian at least annually, with a copy provided to USA Swimming, which can be withdrawn at any time.
- c. Parents/legal guardians must be allowed to observe the individual training session.

ELECTRONIC COMMUNICATIONS

I. Content

All Electronic Communication from Adult Participants to Minor Athletes must be professional in nature.

II. Open and Transparent

- a. If an Adult Participant communicates one-on-one with a Minor Athlete via Electronic Communications, the Minor Athlete's parent/legal guardian must be copied or included. If a Minor Athlete communicates to the Adult Participant privately first, said Adult Participant must copy or include the Minor Athlete's parent/legal guardian on any Electronic Communication response to the Minor Athlete. Adult Participants must only use Electronic Communication platforms that allow for Open and Transparent communication.
- b. The following exceptions apply to Section II(a):
 - i. In emergency circumstances;
 - ii. When a Dual Relationship exists; and/or
 - iii. When the Close-In-Age Exception applies.
- c. When an Adult Participant communicates electronically to the entire team or any number of Minor Athletes on the team, said Adult Participant must copy another Adult Participant.

III. Requests to Discontinue

Parents/legal guardians may request in writing that their Minor Athlete not be contacted through any form of electronic communication by USA Swimming or by an Adult Participant subject to this Policy. USA Swimming must abide by any such request that the Minor Athlete not be contacted via electronic communication, or included in any social media post, absent emergency circumstances.

IV. Hours

Electronic communications must only be sent between the hours of 5:00 a.m. and 9:00 p.m. local time for the location of the Minor Athlete, unless emergency circumstances exist, or during competition travel.

V. Prohibited Electronic Communication

- a. Adult Participants are not permitted to maintain private social media connections with Minor Athletes and such Adult Participants are not permitted to accept new personal page requests on social media platforms from Minor Athletes, unless the Adult Participant has a fan page, or the contact is deemed as celebrity contact as opposed to regular contact. Existing social media connections with Minor Athletes must be discontinued. Minor Athletes may "friend", "like" or "follow" USA Swimming's official page.

- b. Adult Participants must not send private, instant or direct messages to a Minor Athlete through social media platforms.
- c. The following exceptions apply to Section V:
 - i. When a Dual Relationship exists; and/or
 - ii. When the Close-In-Age Exception applies.

IN-PROGRAM TRAVEL AND LODGING

I. Transportation

- a. During In-Program Travel, observable and interruptible environments must be maintained.
- b. An Adult Participant must not transport a Minor Athlete one-on-one during In-Program Travel and must always transport at least two Minor Athletes or another Adult Participant except:
 - i. In emergency circumstances;
 - ii. When a Dual Relationship exists;
 - iii. When the Close-In-Age Exception applies; and/or
 - iv. The Minor Athlete's parent/legal guardian has provided, at least annually, written consent for the Adult Participant to transport the Minor Athlete one-on-one, which can be withdrawn at any time.
- c. Adult Participants, including team managers and chaperones, who travel with USA Swimming must be USA Swimming non-athlete members of USA Swimming.

[Recommended]

Adult Participants who are parents/legal guardians of Minor Athletes must pick up their Minor Athlete first and drop off their Minor Athlete last in any shared or carpool travel arrangement.

II. Lodging

- a. An Adult Participant must not share a hotel room, sleeping arrangement or overnight lodging location with an Athlete.
- b. During In-Program Travel, all In-Program Contact in a hotel room, sleeping arrangement or overnight lodging location between an Adult Participant and a Minor Athlete must be observable and interruptible.
- c. During In-Program Travel, when doing room checks, two-deep leadership (two Adult Participants should be present) and observable and interruptible environments must be maintained.
- d. The following exceptions apply to II(a), (b) and (c):
 - i. When a Dual Relationship exists, the Adult Participant is not a coach, and the Minor Athlete's parent/legal guardian has provided advance, written consent for the lodging arrangement; and/or
 - ii. When the Close-In-Age Exception applies and the Minor Athlete's parent/legal guardian has provided advance, written consent for the lodging arrangement.
- e. Minor Athletes should be paired to share a hotel room, sleeping arrangement or overnight lodging location with other Minor Athletes of the same competition category and of similar age.

III. Written Consent

A Minor Athlete's parent/legal guardian must provide written consent, at least annually, for all In-Program Travel and lodging during In-Program Travel, which can be withdrawn at any time.

IV. Meetings

- a. Meetings during In-Program Travel must be conducted consistent with the One-on-One Interactions section of this Policy (e.g., any such meeting must be observable and interruptible).
- b. Meetings must not be conducted in an Adult Participant or athlete's hotel room or other overnight lodging location during In-Program Travel.

LOCKER ROOMS AND CHANGING AREAS

I. Requirement to Use Locker Room or Changing Area

The designated locker room or changing area must be used when an athlete or Adult Participant changes, in whole or in part, into or out of a swimsuit when wearing just one suit (e.g., deck changing is prohibited).

II. Observable and Interruptible

All In-Program Contact between Adult Participants and Minor Athletes in a locker room, changing area or similar space must be observable and interruptible, except:

- a. In emergency circumstances;
- b. A Dual Relationship exists; and/or
- c. The Close-In-Age exception applies.

III. Private or Semi-Private Space for Minor Athletes

USA Swimming must provide a private or semi-private place for Minor Athletes that need to change clothes or undress at Events or Facilities Under Partial or Full Jurisdiction of USA Swimming.

IV. Use of Recording Devices

Use of any device's (including a cell phone's) recording capabilities, including voice recording, still cameras and video cameras in locker rooms, changing areas, or similar spaces by a Minor Athlete or an Adult Participant is prohibited.

V. Undress

Adult Participants must not change clothes or behave in a manner that intentionally or recklessly exposes his or her breasts, buttocks, groin or genitals to a Minor Athlete under any circumstance. An Adult Participant must not request a Minor Athlete to expose the Minor Athlete's breasts, buttocks, groin or genitals to the Adult Participant under any circumstance. Nothing in this section shall be construed to apply to areas of the body exposed while wearing swimwear which conforms to the current concept of the appropriate for the individual's competition category.

VI. Showers

- a. Adult Participants must not shower with Minor Athletes unless:
 - i. The Adult Participant meets the Close-in-Age Exception; and/or
 - ii. The shower is part of a pre- or post-activity rinse while wearing swimwear.
- b. Parents/legal guardians may request in writing that their Minor Athlete(s) not change or shower with Adult Participants during In-Program Contact. USA Swimming must abide by such a request.

VII. Monitoring

USA Swimming must regularly and randomly monitor the use of locker rooms and changing areas to ensure compliance with this Policy. Locker rooms and changing areas may be monitored by use of the following methods:

- a. Conducting a sweep of the locker room or changing area before athletes arrive;
- b. Posting staff directly outside the locker room or changing area during periods of use;
- c. Leaving the doors open when adequate privacy is still possible; and/or
- d. Making occasional sweeps of the locker rooms or changing areas with women checking on female locker rooms and men checking on male locker rooms.

Every effort must be made to recognize when a Minor Athlete goes to the locker room or changing area during practice and competition, and, if the Minor Athlete does not return in a timely fashion, to check on the Minor Athlete's whereabouts.

VIII. Parents/legal guardians in Locker Rooms or Changing Areas

If a parent/legal guardian enters a locker room or changing area, it must only be a parent/legal guardian of the same competition category and the parent/legal guardian should notify a coach or administrator in advance.

MASSAGES, RUBDOWNS AND ATHLETIC TRAINING MODALITIES

I. General Requirement

Any In-Program Massage performed on an athlete must be conducted in an observable and interruptible location and must be performed by a licensed massage therapist or other certified professional. However, even if a coach is a licensed massage therapist, the coach must not perform a rubdown or massage of an athlete under any circumstance.

II. Additional Minor Athlete Requirements

- a. Written consent by a parent/legal guardian must be obtained in advance at least annually by the licensed massage therapist or other certified professional which can be withdrawn at any time.
- b. Parent/legal guardians must be allowed to observe the Massage, except for competition or training venues that limit credentialing.

- c. Any Massage of a Minor Athlete must be done with at least one other Adult Participant physically present and must never be done with only the Minor Athlete and the person performing the Massage in the room.
- d. Any Massage of a Minor Athlete must be performed with the Minor Athlete fully or partially clothed, ensuring that the breasts, buttocks, groin or genitals are always covered. Nothing in this section shall be construed to apply to areas of the body exposed while wearing swimwear which conforms to the current concept of the appropriate for the individual's competition category.
- e. Any Massage of a Minor Athlete must only occur after a proper diagnosis from a treating physician and be done in the course of care according to the physician's treatment plan.
- f. An NGB that chooses to require its NMOs to implement the Education & Training Policy must obtain advanced, written approval from the Center to expand the training access to additional persons. Requests must be submitted to ngbservices@safesport.org.
- g. The mandatory components of Part III will serve as the default policy for any organization that fails to develop its own policy as required by this section.

Please see:

Appendix IV: Additional USOPC Athlete Safety Requirements

13.0 Publication of Banned and Suspended List

Date of adoption / Last revision: July 2023

1.0 PURPOSE

To memorialize, implement and maintain a process of public notification of individuals who are ineligible for membership in USA Swimming either on a temporary or permanent basis consistent with the U.S. Center for SafeSport's public disciplinary records. The Policy enables USA Swimming to maintain its priority of safeguarding athletes against any form of abuse.

2.0 WHAT ARE THE BANNED AND SUSPENDED LISTS

Membership in USA Swimming is a privilege. The U.S. Center for SafeSport and USA Swimming can suspend or revoke an individual's membership or ability to participate according to each organization's processes. The List of Individuals Permanently Suspended or Ineligible for Membership (the "Banned List") and the List of Individuals Suspended – Specific Date (the "Suspended List" and collectively the "Lists") are USA Swimming's means to notify the public that an individual's ability to participate in USA Swimming has been suspended or revoked.

3.0 POLICY OBJECTIVES

.1 PROTECT ATHLETES. The primary goal of this Policy is to reduce the risk of harm and provide a safer and more secure environment for athletes participating in USA Swimming.

.2 PROTECT MEMBER CLUBS AND VOLUNTEERS. By formalizing this Policy, USA Swimming reduces the risk that individuals who have been permanently suspended or are ineligible for participation or membership will have contact with USA Swimming members or serve in a volunteer capacity with USA Swimming member clubs.

.3 PROTECT OTHER YOUTH SERVING ORGANIZATIONS. Instituting this Policy provides a means for USA Swimming to notify the general public of individuals who have been permanently suspended or are ineligible for participation or membership who may attempt to join or engage in other youth serving organizations in an effort to gain access to children resulting in abuse.

4.0 APPLICATION OF THE POLICY

USA Swimming Safe Sport staff is responsible for adding or removing names from the Lists consistent with its Rules and the U.S. Center for SafeSport's public disciplinary records, as applicable. The Lists will include the banned or suspended individual's name, including any known aliases, the length of the suspension, the individual's last known state of residency and the specific USA Swimming Code of Conduct article that was violated.

.1 Except as otherwise provided herein, an individual banned or suspended by USA Swimming will be added to the applicable List within 24 hours of receipt of the decision to suspend.

.2 An individual who receives an interim suspension from USA Swimming will be added to the Suspended List with “Interim Suspension Per USA Swimming” as the reason for publication with “Interim” as the Suspension End Date and with the article of USA Swimming Code of Conduct related to a violation of the U.S. Center for SafeSport Code (e.g., Article 304.3.17) as the reason for publication. The individual will be added to the Suspended List within 24 hours of receipt of the decision to suspend.

.3 A banned or suspended minor will not be added to a List unless the U.S. Center for SafeSport or a law enforcement agency includes the minor in its public disciplinary records.

.4 An individual banned or suspended by the U.S. Center for SafeSport will be added to the applicable List with the article of USA Swimming Code of Conduct related to a violation of the U.S. Center for SafeSport Code (e.g., Article 304.3.14) as the reason for publication. The individual will be added to the applicable List within 24 hours of receipt of the decision to suspend.

.5 An individual who receives an interim suspension from the U.S. Center for SafeSport will be added to the Suspended List with “Interim” as the Suspension End Date and with the article of USA Swimming Code of Conduct related to a violation of the U.S. Center for SafeSport Code (e.g., Article 304.3.14) as the reason for publication. The individual will be added to the Suspended List within 24 hours of receipt of the decision to suspend

14.0 SwimAssist Program

Date of adoption / Last revision: March 29, 2021

SwimAssist Program Overview

SwimAssist is USA Swimming's assistance fund for survivors of abuse. Established in 2014, the goal of SwimAssist is to support survivors by alleviating the financial burden of seeking counseling, therapy, or other healing treatment.

SwimAssist is available to any current or former USA Swimming member who suffered abuse perpetrated by an individual who at the time of the harm was a member of USA Swimming. SwimAssist is available to those survivors regardless of when the harm occurred. Receipt of support is not dependent on the survivor's participation in any disciplinary proceeding(s), including, but not limited to, a U.S. Center for SafeSport, USA Swimming National Board of Review, or criminal proceeding.

Available Programs

Initial Counseling Assistance

- a. A request for initial counseling assistance must be made in writing and submitted to the USA Swimming Director of Safe Sport for review and approval. To assist the survivor, the USA Swimming Safe Sport staff can facilitate preparing the request on the survivor's behalf.
- b. The survivor will be asked to identify the offending member and the year or year(s) the harm occurred. No other information is required to receive SwimAssist.
- c. The survivor and his/her family will select the treatment provider. USA Swimming may assist in identifying local resources for the survivor but will not have any input or final say in what treatment provider the survivor chooses.
- d. The initial level of assistance is \$1,800. USA Swimming will contribute \$150 per session for a maximum of 12 sessions. The survivor will be responsible for any charge(s) in excess of \$150 per session.

Alternative Assistance

- a. A survivor may request assistance in some form other than traditional counseling/therapy. Examples of such services include, but are not limited to:
 - i. Fees related to continued participation in the sport of swimming
 - ii. Rehabilitation treatment
 - iii. Alternative therapies
- b. A request for alternative assistance must be made in writing and submitted to the USA Swimming Director of Safe Sport for review and approval. To assist the survivor, the USA Swimming Safe Sport staff can facilitate preparing the request on the survivor's behalf. The written request must contain a description of the services sought, including promotional materials, brochure, or other program description, if available, as well as documentation of the program's appropriate licensures, if any.
- c. Each request will be considered on an individual basis.
- d. The initial level of alternative assistance is \$1,800.

Ongoing Assistance

- a. If a survivor has utilized the initial \$1,800 level of assistance from SwimAssist, he/she may request additional support for ongoing counseling or alternative assistance.
- b. The request must include specific amount of funding requested, the service to which the support will go, and a letter from the provider stating the value of the program for the survivor's recovery. The request will be reviewed for approval by the USA Swimming Director of Safe Sport.
- c. The USA Swimming Director of Safe Sport may approve ongoing assistance for up to a maximum of \$7,200.
- d. In the event a request for ongoing assistance is denied by the USA Swimming Director of Safe Sport, the request will be sent to the SwimAssist panel for additional review.
- e. The survivor may be asked to submit a progress report from his/her provider. The progress note need only indicate that the therapy has benefitted the client and that with further therapy, the client will continue to progress.

Funding

- a. All provider fees will be paid by USA Swimming directly to the provider as invoiced by the provider. The provider will be selected by the survivor.
- b. Reimbursement of the out-of-pocket expenses can be made to the survivor or their family. The survivor or their family must show invoices and proof of payment made. Any reimbursement amount will count towards the limits and approval levels detailed above.
- c. Invoices may be submitted to the USA Swimming Safe Sport staff contact for your case.
- d. USA Swimming must have a W9 from the provider in order to process payment.

Implementation

The SwimAssist Panel will be a three-person standing panel appointed by the Board Chair with the advice and consent of the USA Swimming Director of Safe Sport. The panel shall include a Safe Sport Committee member and an outside expert in the field. All members of the Panel are required to sign a confidentiality statement as a condition of service.

The USA Swimming Safe Sport staff will serve as the liaisons between survivors and USA Swimming to administer SwimAssist. At its discretion, staff can offer the Initial Counseling program. For requests of Ongoing Counseling or Alternative Assistance, staff will work with the survivor to complete the necessary paperwork and collect the supporting materials required to submit a request to the Director of Safe Sport. Staff will also be responsible for working with the USA Swimming finance department to complete check requests, reimbursements, and any other steps necessary to process payment.

For more information, please contact USA Swimming Safe Sport staff at safesport@usaswimming.org or 719-866-4578.

Please see: Appendix V: **SwimAssist Application Form.**

15.0 Denying a Safe Sport Club Recognition Application or Revoking a Safe Sport Club Recognition Application

Date of adoption / Last revision: June 27, 2022

The USA Swimming Safe Sport Club Recognition program allows a USA Swimming member club to demonstrate its commitment to creating a healthy and positive environment free from abuse for all its members through the development and implementation of club governance measures, Safe Sport policies and reporting mechanisms, Safe Sport best practices and training to athletes and parents.

Denying a Safe Sport Club Recognition Application

In the event a coach, registered official, club board member or club owner is under investigation for or is the subject of an open case with the U.S. Center for SafeSport and/or USA Swimming for the issues listed below, USA Swimming may, at its sole discretion deny recognizing the club as a Safe Sport Recognized Program or hold the club's application for Safe Sport Recognized Program designation pending the resolution of the matter.

- a. Potential violations for which a club may be denied Safe Sport Recognized Program designation include, but are not limited to:
- b. Violations of the U.S. Center for SafeSport Code for the Olympic and Paralympic Movements and/or the USA Swimming Code of Conduct;
- c. Violations of the Child Abuse Reporting Requirements;
- d. Multiple reported violations of club or USA Swimming policies, including, but not limited to, MAAPP, the Action Plan to Address Bullying and/or the Photography Policy; and/or
- e. Falsely representing or promoting the club as a Safe Sport Recognized Program prior to achieving such status.

A member club will be ineligible for recognition during any year in which a coach member registered with the club has served or is serving a period of (i) probation; (ii) temporary suspension; (iii) suspension; or (iv) ineligibility for an adjudicated or alleged violation of the SafeSport Code for the Olympic and Paralympic Movement or USA Swimming's Code of Conduct. Such club will remain ineligible for recognition until the first membership year after any such period of probation, temporary suspension, suspension or ineligibility is completed.

USA Swimming will communicate to the club in writing of a decision to deny a Safe Sport Recognized Program application or a decision to hold the club's application for Safe Sport Recognized Program designation pending resolution of the matter. The communication will include recommended steps the club should complete prior to renewing an application for Safe Sport Recognized Program designation.

Revoking Safe Sport Club Recognition Designation

In order to maintain the integrity of the Safe Sport Club Recognition designation, USA Swimming may, in its sole discretion, remove such designation from a member club for an adjudicated violation by the U.S.

Center for SafeSport and/or USA Swimming of a coach, official, athlete, club board member or club owner for violations including, but not limited to, the following:

- Violations of the U.S. Center for SafeSport Code for the Olympic and Paralympic Movements and/or the USA Swimming Code of Conduct;
- Violations of the Child Abuse Reporting Requirements; and/or
- Multiple reported violations of club or USA Swimming policies, including, but not limited to, MAAPP, the Action Plan to Address Bullying and/or the Photography Policy.

Any decision to remove such designation from a member club must be approved by the USA Swimming President and CEO, or his/her designee. Upon receiving approval from the USA Swimming President and CEO, or his/her designee, the involved club will be notified in writing that the Safe Sport Recognized Program designation has been revoked and directing the team to remove any public references to such designation. A club whose Safe Sport Recognized Program designation has been revoked may not reapply to Safe Sport Recognized Program designation for a period of one year.

16.0 USA Swimming Safe Sport Athlete Protection Education Policy

Date of adoption / Last revision: July 2023

Background

Since 2010, USA Swimming has required athlete protection education of all non-athlete members of USA Swimming. Further, the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act of 2017 requires USA Swimming, as the National Governing Body for the sport of Swimming, offer and provide consistent training to all adult members who are in regular contact (e.g., ongoing interactions during a 12-month period wherein the individual is in a role of direct and active engagement) with amateur athletes who are minors, and, subject to parental consent, to members who are minors, regarding prevention and reporting of child abuse.

The U.S. Center for SafeSport requires any of the following individuals who has regular contact with or authority over minor athletes to complete athlete protection education:

- a. USA Swimming members
- b. Employees or board members of USA Swimming, Zones, LSCs or member clubs
- c. Individuals within the governance or disciplinary jurisdiction of USA Swimming, Zones, LSCs or member clubs; and
- d. Individuals who are authorized, approved or appointed by USA Swimming, Zones, LSCs or member clubs to have regular contact with or authority over minor athletes.

Mandatory Training for Adult Members

The mechanism by which USA Swimming requires and tracks athlete protection education is through the privileges and responsibilities of membership. As set forth in Article 2.6.3 of the USA Swimming Corporate Bylaws, all adult members of USA Swimming, including athletes and junior coach members, must have satisfactorily completed athlete protection education as a condition of membership. Membership will not be conferred to an adult member of USA Swimming unless and until athlete protection education is satisfactorily completed. The following are required to be members of USA Swimming:

- a. Employees of USA Swimming, Zones, LSCs and member clubs;
- b. Individuals serving on the board of directors of USA Swimming, Zones, LSCs and member clubs;
- c. Volunteers of USA Swimming, Zones, LSCs and member clubs who interact directly and frequently with* or have authority over athletes as part of their regular duties (note: this does not include timers, meet marshals, computer operators, etc., who only have limited contact with athletes during a meet);
- d. Personal care assistants hired or appointed by USA Swimming, Zones, LSCs and member clubs, who act in a coaching capacity and/or who have direct and frequent contact with minor athletes other than those to whom they provide care; and
- e. Individuals with any ownership interest in a member club.

As required by the U.S. Center for SafeSport, individuals subject to this policy must complete athlete protection education on an annual basis. Upon initiating membership with USA Swimming or beginning a new role subjecting the individual to Article 2.6.3 of the USA Swimming Corporate Bylaws, the individual

must complete the SafeSport™ Trained Core course before participation. Upon completion, the individual's member record will update with a training requirement expiration date one year from the date of completion. Individuals can renew the athlete protection education requirement as early as 90 days prior to their expiration date by taking the appropriate refresher course. After completing three refresher courses in successive years, the individual will be required to start the training cycle anew with the SafeSport™ Trained Core course. If an individual permits their athlete protection education to lapse by failing to renew prior to the expiration date or by otherwise allowing membership to lapse, the individual will be required to retake the SafeSport™ Trained Core course again.

USA Swimming members are required to complete the athlete protection education through USA Swimming University accessed at <https://university.usaswimming.org/landing>.

Minor Athlete and Parent Training

USA Swimming will, on an annual basis, offer and give training to parents and minor athletes (subject to parental consent) on the prevention and reporting of child abuse. Free online training courses for parents and minor athletes on the prevention and reporting of child abuse are available any time at <https://university.usaswimming.org/landing>.

Exemption for Victims/Survivors

Completing the required athlete protection education may be triggering or re-traumatizing for victims/survivors. Exemptions for this requirement may be made on a case-by-case basis. Requests should be sent to safesport@usaswimming.org. Requests may also be made directly to the U.S. Center for SafeSport at exemptions@safesport.org.

Individuals with Limited English Proficiency

The U.S. Center for SafeSport provides the required athlete protection courses in English, Spanish, French. An individual subject to this policy may request an exemption from this Policy as a result of limited English proficiency by contacting safesport@usaswimming.org.

*Defined as ongoing interactions during a 12-month period wherein the individual is in a role of direct and active engagement.

17.0 Athlete Protection Training Requirement – Adult Athletes with Cognitive Disabilities

Date of adoption / Last revision: July 2023

The U.S. Center for SafeSport requires USA Swimming to provide regular and consistent training for all adults, including adult athletes, who interact with and have direct contact with minor athletes. USA Swimming requires, as a condition of membership, all athlete members age 18 and over complete Athlete Protection Training.

USA Swimming recognizes that the required training course may not be appropriate for some adult athlete members with cognitive disabilities. For any such adult athlete member, USA Swimming recommends the following:

1. If the Athlete Protection Training Course is appropriate for the adult athlete's cognitive level, the adult athlete should complete the Athlete Protection Training course with a parent or legal guardian(s).
2. In the event the Athlete Protection Training course is not appropriate for the adult athlete's cognitive level, the adult athlete should complete the most developmentally age-appropriate training offered by the U.S. Center for SafeSport (<https://athletesafety.org/training/index>). Once the age-appropriate training is completed, the completion certification shall be sent to safesport@usaswimming.org. USA Swimming will update the athlete's member record to reflect that the training requirement is complete.
3. In the event that none of the available trainings are cognitively appropriate for the adult athlete, the athlete's parent or legal guardian shall send an email explaining the circumstance to safesport@usaswimming.org. USA Swimming will update the athlete's member record to reflect that the training requirement is complete.

It is the responsibility of every athlete member to ensure the annual training requirement is met applying the criteria provided above.

Please contact USA Swimming at safesport@usaswimming.org with any questions.

18.0 USA Swimming Personal Assistant Policy

Date of adoption / Last revision: June 8, 2021

A Personal Assistant* is an individual who assists an athlete requiring help with activities of daily living and preparation for athletic participation. Personal Assistants provide support unique to the needs of the athlete(s) in their care. This support may include, but, is not limited to, mobility guidance, assistance with transfer, entering/exiting the pool, dressing, showering, toileting, medication administration, and communication. Some athletes require Personal Assistants to enable successful participation in the sport, while others need help to assure personal safety in practice and meet environments.

Identification and Approval of the Use of Personal Assistants

Coaches may approve the use of Personal Assistants at practice while Meet Referees approve the use of Personal Assistants for meets. It is recommended that coaches and referees ask the following questions to evaluate whether to approve a Personal Assistant:

1. Is the swimmer a swimmer with a disability as defined by USA Swimming?
2. Does the proposed modification facilitate participation by the swimmer with a disability?
3. Is the proposed modification fair to other swimmers in the event?
4. Is the proposed modification feasible?
5. Will this assistant have frequent contact with athletes? If so, are they a registered USA Swimming Member and have they been background checked?

Required USA Swimming Membership

Personal Assistants hired or appointed by USA Swimming, Zones, LSCs and member clubs, who act in a coaching capacity and/or who have direct and frequent contact with minor athletes other than those to whom they provide care must be members of USA Swimming. Personal Assistants who are only acting in this role at occasional meets and practices are not required to be a member of USA Swimming.

Specifically, a parent/legal guardian acting in the role of a Personal Assistant for their child whose care requires the parent/legal guardian to have frequent access to locker rooms, changing areas or similar spaces where other Minor Athletes are present is required to be a member of USA Swimming.

Personal Assistants Exception to the Minor Athlete Abuse Prevention Policy

Subject to the conditions below, certain exceptions are available to certain sections of the Minor Athlete Abuse Prevention Policy. Specifically:

One-on-one In-Program Contact interactions between a Minor Athlete and a Personal Assistant of whom membership is required are not required to occur at an observable and interruptible distance from another adult only when:

- a. the Personal Assistant is a non-athlete member of USA Swimming; and

- b. the minor athlete's parent/legal guardian has provided written consent for the Personal Assistant to work with the minor athlete.

In-Program one-on-one individual training sessions outside of the regular course of training and practice between a Personal Assistant of whom membership is required and minor athletes are not required to be observable and interruptible by another adult only when:

- a. the Personal Assistant is a non-athlete member of USA Swimming; and
- b. the minor athlete's parent/legal guardian has provided written consent for the Personal Assistant to work with the minor athlete.

One-on-one Electronic Communications between a Personal Assistant of whom membership is required and a minor athlete are not required to copy or include the minor athlete's parent/legal guardian only when:

- a. the Personal Assistant is a non-athlete member of USA Swimming; and
- b. the minor athlete's parent/legal guardian has provided written consent for the Personal Assistant to work with the minor athlete.

A Personal Assistant of whom membership is required may transport a minor athlete one-on-one during In-Program Travel and is not required to transport at least two minor athletes or another Adult Participant only when:

- a. the Personal Assistant is a non-athlete member of USA Swimming; and
- b. the minor athlete's parent/legal guardian has provided written consent for the Personal Assistant to work with the minor athlete.

A Personal Assistant of whom membership is required may share a hotel room, sleeping arrangement or overnight lodging location with an athlete, may have In-Program Contact in a hotel room, sleeping arrangement or overnight lodging location during In-Program Travel that is not observable and interruptible and is not required to follow two-deep leadership and maintain observable and interruptible environments when doing room checks during In-Program Travel only when:

- a. the Personal Assistant is a non-athlete member of USA Swimming; and
- b. the minor athlete's parent/legal guardian has provided written consent for the Personal Assistant to work with the minor athlete; and
- c. the minor athlete's parent/legal guardian has provided advance, written consent for the lodging arrangement.

Personal Assistants of whom membership is required are permitted to be with and assist minor athlete(s) in locker rooms, changing areas or similar spaces where other Minor Athletes are present.

Are Personal Assistants Covered by USA Swimming Insurance?

USA Swimming members engaging in covered activities with USA Swimming member clubs are covered by the USA Swimming provided general liability insurance. The USA Swimming provided general liability insurance is not affected by the activities of Personal Assistants of whom membership is not required but the USA Swimming provided excess accident insurance does not cover injuries resulting from or directly related to the actions of Personal Assistants who are not members of USA Swimming.

* A Personal Assistant for USA Swimming purposes is also known as a Personal Care Assistant in the U.S. Center for SafeSport 2022 Model MAAPP. This Personal Assistant Policy is consistent with the Center's 2022 Model MAAPP requirements and has been reviewed and approved by the U.S. Center for SafeSport.

19.0 Competition Category Policy

Date of adoption / Last revision: September 16, 2025\

1. Purpose

Pursuant to the Ted Stevens Olympic & Amateur Sports Act, 36 U.S.C. § 22501, et. Seq. (the “Act”), the U.S. Olympic & Paralympic Committee (“USOPC”) has certified USA Swimming as the national governing body for the sport of swimming, and this certification is dependent upon continued compliance with the requirements of the USOPC and the Act. If the USOPC and/or Congress find that USA Swimming is not in compliance with the USOPC’s requirements and/or the Act, the USOPC and/or Congress may sanction USA Swimming, up to and including decertification as the national governing body for the sport of swimming.

USA Swimming is committed to protecting opportunities for athletes participating in sport. As mandated by the USOPC, and pursuant to the Act, USA Swimming must continue to collaborate with various stakeholders with oversight responsibilities (e.g., the International Olympic Committee, World Aquatics, etc.) to ensure that women have a fair and safe competition environment consistent with [Executive Order 14201](#) and the Act. As required by Executive Order 14201, the definitions in [Executive Order 14168](#)⁷ shall apply to this Competition Category Policy (this “Policy”).

2. Application of this Policy

This Policy applies to all current and prospective athlete members of USA Swimming when competing in USA Swimming sanctioned meets. It supersedes all previous policies and prior decisions by USA Swimming addressing whether an athlete may compete in the Women’s Competition Category.

3. Men’s Competition Category

The Men’s Competition Category is open to all athletes who (a) meet the Executive Order’s definition of “men” or “boys”; (b) have transitioned, or are transitioning, to a male sex assignment; or (c) identify as non-binary. Those seeking to compete in the Men’s Competition Category, who do not meet the Executive Order’s definition of “men” or “boys”, must complete the Self-Identity Verification form, found [here](#), at least thirty days prior to the start of the first competition in which the athlete seeks to compete in the requested Competition Category. If the form is completed and signed by the athlete (or their legal guardian, if under eighteen years of age), USA Swimming will approve the Competition Category change. If an athlete is seeking to rescind a prior request to change Competition Categories, they should contact USA Swimming’s Secretary & General Counsel, with contact information found [here](#).

4. Women’s Competition Category

Only athletes who meet the Executive Order’s definition of “women” or “girls” may compete in the Women’s Competition Category. In registering for membership in the Women’s Competition Category, an athlete represents and warrants that they meet the Executive Order’s definition of “woman” or “girl.”

⁷ (a) “Sex” shall refer to an individual’s immutable biological classification as either male or female. “Sex” is not a synonym for and does not include the concept of “gender identity.”

(b) “Women” or “woman” and “girls” or “girl” shall mean adult and juvenile human females, respectively.

(c) “Men” or “man” and “boys” or “boy” shall mean adult and juvenile human males, respectively.

(d) “Female” means a person belonging, at conception, to the sex that produces the large reproductive cell.

(e) “Male” means a person belonging, at conception, to the sex that produces the small reproductive cell.

5. Applicability of World Aquatics Eligibility Rules

Effective June 20, 2022, World Aquatics implemented a Policy on Eligibility for the Men's and Women's Competition Categories (the "World Aquatics Policy"). (<https://resources.fina.org/fina/document/2022/06/19/525de003-51f4-47d3-8d5a-716dac5f77c7/FINA-INCLUSION-POLICY-AND-APPENDICES-FINAL-.pdf>). For an athlete to participate in any World Aquatics Competition, the athlete must first satisfy the eligibility criteria set forth in the World Aquatics Policy. If the World Aquatics Policy is subsequently revised, appropriate revision to this Policy will be considered. For an athlete to be selected by USA Swimming to a World Aquatics competition, they must also meet this Policy.

5. Other Eligibility Requirements Not Affected

Except as set forth herein, the application of this Policy shall not affect eligibility requirements or rules otherwise set out in USA Swimming's Rules and Regulations or the Operating Policy Manual.

6. Compliance with Anti-Doping Rules

Nothing in this Policy shall affect an athlete's obligation to fully comply with the Anti-Doping Rules of United States Anti-Doping Agency, the USOPC, World Aquatics, USA Swimming, or the organizer of an event in which the athlete competes. If the use of a substance on the World Anti-Doping Agency Prohibited List is contemplated in connection with a gender transition, then the athlete must first obtain a Therapeutic Use Exemption from the U.S. Anti-Doping Agency before that substance is used.

8. Appeals

Only USA Swimming may challenge an athlete's Competition Category. If USA Swimming seeks to challenge an athlete's Competition Category, based upon the athlete's membership registration, as a violation of this Policy, it may do so pursuant to Rule 304.3.9 of the Code of Conduct (i.e., "[a]ny act of fraud, deception or dishonesty in connection with any USA Swimming-related activity"). The National Board of Review Procedures in Policy 26 of the USA Swimming Operating Policy Manual will apply to such challenge. Evidence considered to establish an athlete's sex assigned at birth may include, but is not limited to, the athlete's original birth certificate.

III. Committees & Coordinators

20.0 General Policies for Committee Administration

Date of adoption / Last revision: December 19, 2024

COMMITTEES AND COORDINATORS

Unless otherwise specified in the USA Swimming Rules & Regulations, the USA Swimming Bylaws or this Operating Policy Manual, the Board Chair or the President & CEO shall appoint the non-athlete members of all Committees. A Committee may consist of only one member who will be known as the Coordinator.

Except as otherwise provided in the Policy Manual, Corporate Bylaws, or the Rules & Regulations:

- a. Non-athlete Committee members shall serve three (3) year terms
- b. Athlete Committee members shall serve two (2) year terms.
- c. Committee members' terms shall be staggered so that approximately one-third of all non-athlete members are appointed each year by the President & CEO
- d. Committees shall consist of volunteer members of USA Swimming who are not compensated for their services. The President & CEO may appoint voting members of the Board of Directors as ex-officio non-voting members of Committees. Athlete members and non-voting members of the Board of Directors shall be exempt from this rule.

TASK FORCES

The Board Chair or the Board of Directors may appoint one or more task force(s) to complete a specific objective where an existing Committee would not otherwise be appropriate. In each instance where a task force is established, the Board of Directors must also approve a budget for the activities and the administration of the task force. The term of service for a task force shall not exceed one year.

SUBCOMMITTEES

In addition to the Committee members, non-Committee members may also be appointed to Sub-Committees, task forces or working groups assigned to support the Committee's work, as approved by the USA Swimming staff leader or the President & CEO, unless otherwise specified. At least one-third (33.3%) of the voting membership of all Sub-Committees, task forces or working groups, shall be eligible athletes.

MISSION STATEMENT OF A COMMITTEE

Each Committee shall annually review the mission statement of the operating committees; the President & CEO shall approve any proposed changes.

ANNUAL GOALS OF A COMMITTEE

Each Committee shall establish a timetable or action plan for achieving these goals.

USA SWIMMING STAFF LEADER

A staff leader shall be assigned by the USA Swimming President & CEO to lead the committee. The staff leader shall serve as the principal channel of communication between the USA Swimming staff and the Committee. The staff leader shall facilitate communication among Committee members and USA Swimming officers. The staff leader is generally responsible for taking minutes of the meeting in the absence of a designated secretary of the Committee. The USA Swimming staff leader shall have voice but no vote in the meeting. Other duties of the staff leader include:

1. Scheduling all meetings of the Committee.
2. Providing virtual Committee meeting access to Committee members.
3. Tracking that committee members are USA Swimming members in good standing.
4. Ensuring all committee members complete requirements of committee service.
5. Set the annual goals of the committee, in consultation with the Committee and the Committee Chair, to support USA Swimming's priority results and Key Performance Indicators.
6. Conduct an annual onboarding for new and returning committee members, in conjunction with the Chair
7. Advise the President & CEO on non-athlete Committee appointments.
8. Provide committee meeting minutes approved by the Committee for posting to the USA Swimming website.
9. Approving the Committee Chair's proposed agenda for the meetings.

RESPONSIBILITIES OF COMMITTEE CHAIR OR COORDINATOR

1. The responsibilities of the Committee Chair and /or Coordinator include:
2. Proposing an agenda for all meetings.
3. Presiding at all meetings of the Committee and guiding the business of the Committee.
4. Keeping Committee members informed of the activities of the Committee or of USA Swimming since the last Committee meeting.
5. Introducing guests and presenters to the Committee.
6. Serving as the spokesperson for the Committee.
7. Appointing a secretary or other Committee member to take minutes of all meetings if the Committee Chair so chooses.
8. Reviewing the draft of the minutes prepared by the secretary (or other Committee member or staff leader) and making corrections as necessary so that they may be submitted to the USA Swimming staff leader and posted on the USA Swimming website within 30 days of the meeting.
9. Working with the USA Swimming staff leader to manage the programs and activities of the Committee within the approved budget.
10. Assuming responsibility for the Committee's compliance with the policies of USA Swimming.
11. Directing the Committee's activities towards the completion of its goals.
12. Maintaining regular contact with the USA Swimming staff leader.

IMPLEMENTATION OF ACTION ITEMS BY COMMITTEES

The implementation of action items shall be the responsibility of the appropriate member(s) of the USA Swimming staff. Action items will be implemented as follows:

1. A proposal or resolution passed by the Committee will become an Action Item for consideration by another Committee or by the Board of Directors or President & CEO, as appropriate.

2. All Action Items should be submitted in writing and shall include an estimate of the costs of implementation.

TERM LIMITS

Unless otherwise specified in the USA Swimming Rules & Regulations or in this USA Swimming Operating Policy Manual, the terms of each non-athlete appointment to a Committee shall be staggered so that one-third of the non-athlete appointments are made annually. A non-athlete member is limited to two (2) consecutive terms.

MEMBERSHIP REQUIREMENT

All members of any Committee, Sub-Committee, task force or working group must be current members in good standing of USA Swimming.

EQUAL OPPORTUNITY TO PARTICIPATE

It is the intent and purpose of USA Swimming to provide an equal opportunity to athletes, coaches, trainers, managers, administrators, officials, and other volunteers to participate in the governance of USA Swimming without discrimination on the basis of race, color, religion, age, gender, sexual orientation, disability, or national origin. No conditions or restrictions for participation in the governance of USA Swimming may be imposed unless otherwise set forth in the USA Swimming Rules & Regulations.

OPEN MEETINGS

All Committee meetings shall be open to all members of USA Swimming except in those situations where by majority vote of the body it would be in the interests of USA Swimming to hold a closed session (e.g., those relating to corporate or Committee personnel or legal matters).

CONFLICT OF INTEREST

All Committee members must complete the annual USA Swimming Conflict of Interest Disclosure Form and must disclose any perceived, potential, or actual conflicts at the beginning of each committee meeting. As outlined in the Conflict of Interest Policy, committee minutes must include the following when a potential conflict of interest is involved in a discussion:

1. The names of the persons who disclosed or otherwise were found to have an interest in connection with an actual or possible conflict of interest, the nature of the interest, any action taken to determine whether a conflict of interest was present, and the Ethics Committee's decision as to whether a conflict of interest in fact existed. If no committee members disclose conflicts, the lack thereof must also be recorded in the minutes.
2. The names of the persons who were present for discussions and votes relating to the transaction or arrangement, the content of the discussion, including any alternatives to the proposed transaction or arrangement, and a record of any votes taken in connection with the proceedings.

CODE OF CONDUCT AND ETHICAL PRACTICES

The USA Swimming Code of Conduct and the Statement of Ethics and Conflict of Interest Policy. These shall contain the requirements that each Officer, member of the Board of Directors, and members of other Committees, and each employee of USA Swimming shall annually agree in writing.

USA Swimming is committed to maintaining the highest tradition of excellence of building and maintaining supportive environments in which children and young adults may grow, learn, and prosper, not only as athletes but as citizens of our communities.

CONFIDENTIALITY

Items which are designated by the Committee Chair to be of a confidential or sensitive nature should not be disclosed outside the setting of the Committee. Members who knowingly divulge this information shall be subject to removal and possible expulsion from membership.

REGULAR MEETINGS

Committee meetings shall be held at a location determined by the Committee Chair and staff leader but will normally occur by video conference. All participants in all Committee meetings, regardless of the location, shall follow the United States Olympic and Paralympic Committee (USOPC) Code of Conduct or be asked to leave the subject premises and withdraw from the meeting immediately, without refund of fees or reimbursement of expenses.

SCHEDULING AND WRITTEN NOTICE OF MEETINGS

To the extent feasible, all meetings shall be scheduled three (3) months in advance of the meeting date. A written notice of all Committee meetings stating the time and place thereof shall be given to each Committee member by email to each member's last known email address at least thirty days before the meeting. In the event that more than one-third of the committee members are unable to commit to attend a meeting within fourteen (14) days of the meeting date, the respective USA Swimming officer may cancel the meeting. The attendance of a member at any meeting without protesting the lack or prior notice to or at the commencement of the meeting shall be deemed a waiver of notice.

MEETING EXPENSES

In order to conduct a Committee meeting, sufficient funds must have been previously budgeted and available to assume the expenses associated with the meeting. No meeting shall be scheduled or conducted in the event that a majority of its membership cannot be assured, barring extraordinary circumstances.

ATHLETE MEMBERSHIP

At least one-third (33.3%) of the voting membership of each Committee shall be eligible athlete members.

QUORUM & VOTING

The presence at a regularly scheduled meeting of one-half of those duly registered and eligible to vote shall constitute a quorum. There shall be no voting by proxy. Each member shall have one vote on each matter; the Committee Chair need not vote except to break or cause a tie. Unless otherwise specified, ex-officio members shall have a voice but no vote in the meeting. Invited guests may speak when recognized by the chair.

ATTENDANCE REQUIREMENTS

A non-athlete member who accumulates two (2) or more unexcused absences within one (1) calendar year may be removed by the Staff Leader in consultation with the Committee Chair and approval from the President & CEO.

REMOVAL

After a warning from the Committee Chair, a non-athlete member who continues to fail to contribute or fulfill assigned duties in a timely manner may be removed from their committee position by the Staff Leader in consultation with the Committee Chair and approval from the President & CEO. The President & CEO is empowered to remove a committee member appointed by the President & CEO for any other reason. A committee member who has been removed shall be notified in writing by the Staff Leader.

MEETING AGENDA

A preliminary written agenda of the meeting should be discussed with the USA Swimming staff leader at least seven (7) days in advance of the meeting, to the extent feasible. A Committee meeting agenda should follow the outline of:

- Call to Order
- Roll Call
- Approval of Previous Minutes
- Reports by Committee Members
- Old Business
- New Business
- Announcements
- Announcement of Date Place of Next Meeting

COMMITTEE MEETING MINUTES

The minutes of all Committee meetings shall be taken by a person designated by the chair as the secretary of the committee. The minutes should be prepared as an executive summary, not verbatim, and should include majority as well as any dissenting views. The attendance of members and guests present should be listed along with those members absent; a member whose absence is known in advance and is unavoidable may be excused in the discretion of the chair. Minutes shall be posted to the USA Swimming web site, except that items of a confidential or sensitive nature may be recorded separately and retained only in the USA Swimming staff leader files.

COMMUNICATIONS OUTSIDE OF THE COMMITTEE

All communications from the committee intended for a wide distribution and beyond the membership of the committee, including to the local swimming committees, shall first be reviewed by the USA Swimming communications staff and the staff leader.

AUTHORIZATION OF EXPENSES

Only the USA Swimming staff leader shall authorize expenditures against the approved budget of the Committee. There shall be no separate checking accounts for projects carried out under the direction of any Committee without the express authorization of the Board of Directors. All USA Swimming funds must be received and disbursed by USA Swimming.

FOOD AND BEVERAGE SERVICE

The cost of food and beverage service during Committee meetings and the costs of travel and per diem for officers attending the meetings will be charged to the appropriate budget. There shall be no expenditure of funds for food or beverage service during the annual Committee meetings held in conjunction with the annual meeting of the House of Delegates. Alcoholic beverages shall not be served during any meetings of USA Swimming.

HONORARIA

If budgeted, honoraria for speakers including coaches, athletes, and presenters, are permitted.

TELECONFERENCE MEETINGS

Committees shall be permitted to conduct businesses on behalf of USA Swimming by means of teleconference, video conferencing or other similar electronic means.

BALLOT BY E-MAIL

Any action which may be taken at any regular meeting of the committee may also be taken without a meeting under the following procedures: The Committee Chair shall distribute a written ballot to every member of the Committee entitled to vote on the matter. The ballot shall set forth the proposed action, provide an opportunity to specify approval or disapproval of the proposal, and provide a reasonable time within which to return the ballot. Approval by written ballot shall be valid only when the number of votes cast in favor of the proposed action within the time period specified constitutes a majority of the votes entitled to be cast.

21.0 Operating Committees

Date of adoption / Last revision: February 13,, 2025

The following committees shall report to the President & CEO or his or her designee:

Athletes' Advisory Council – as outlined in the USA Swimming Rulebook

Age Group Development Committee - as outlined in the USA Swimming Rulebook

Coach Advisory Council - as outlined in the USA Swimming Rulebook

National Team Steering Committee - as outlined in the USA Swimming Rulebook

Rules and Regulations Committee - as outlined in the USA Swimming Rulebook

Senior Development Committee - as outlined in the USA Swimming Rulebook

Club Development Committee

Mission Statement: To provide counsel and assistance for the development and implementation of programs that help build, support, and educate USA Swimming member clubs.

The Club Development Committee shall report to the President & CEO or their designee.

USA Swimming Leader: Director, Team Services

USA Swimming Staff Liaison: Team Performance and Business Operations Manager (as assigned by the Managing Director of Sport Development)

Membership: The Club Development Committee shall consist of twelve (12) voting members, as follows:

1. Four (4) eligible athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.
2. Eight (8) additional members appointed by the President & CEO, to include coaches and others to ensure a variety of perspectives to address the needs of different sizes and types of USA Swimming member clubs. Non-athlete appointments shall serve three-year terms, staggered so that one-third are named annually.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Leader or President & CEO.

Chairperson: The chair, who may be either an athlete or non-athlete member, shall be appointed by the President & CEO from the foregoing enumerated members and shall serve a one-year term as Chair.

Meetings: The committee shall meet monthly by video conference.

Responsibilities:

1. To conduct an on-going evaluation of the USA Swimming club system to identify the strengths and weaknesses;
2. To annually prioritize initiatives that support the development, implementation, and evaluation of programs and services with the intent to strengthen the USA Swimming club system, including the growth and business practices of individual clubs and provision of support in the areas of diversity, equity and inclusion;

3. To assist LSC's in providing their member clubs with new programs and services which are intended to increase the numbers of clubs and athlete registrations; and
4. To take such further actions as may be directed by the President & CEO.

Diversity, Equity, and Inclusion Committee

Mission: To assist USA Swimming in fostering a culture of inclusion and opportunity for people of diverse backgrounds and abilities.

The Diversity, Equity and Inclusion Committee shall report to the President & CEO.

USA Swimming Staff Leader DEI Committee: Program Director, Diversity, Equity, and Inclusion

USA Swimming Staff Leader Disability Sub-Committee: Program Director, Pre-Competitive Programs

Membership: The Diversity, Equity, and Inclusion Committee shall consist of twelve (12) voting members, as follows:

1. Four (4) eligible athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.
2. Eight (8) additional members appointed by the President & CEO. Non-athlete appointments shall serve three-year terms, staggered so that approximately one-third are named annually.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Leader or President & CEO.

Chairperson: The Chair, who may be either an adult athlete or non-athlete member, shall be appointed by the President & CEO from the foregoing enumerated members and shall serve a one-year term as Chair.

Disability Swimming Subcommittee: One of the foregoing enumerated members, who may be either an athlete or non-athlete member, shall be appointed by the Committee Chair each year to serve as the Disability Subcommittee Chair, who shall lead a subcommittee focused on supporting USA Swimming's efforts to encourage people with disabilities to participate in the sport of swimming and to facilitate their inclusion in USA Swimming programs through education and collaboration. The subcommittee shall be comprised of USA Swimming members who may be members of the DEI committee; the subcommittee shall have the requisite athlete representation.

Meetings: The committee shall meet monthly and will normally do so by video conference.

Responsibilities:

To support USA Swimming in:

1. Increasing participation of people from diverse populations.
2. Creating an atmosphere for athletes, coaches, staff and volunteers to address inclusion in an open and trusting atmosphere.
3. Creating initiatives and programming to educate athletes, coaches, staff and volunteers on the inequities and discriminations faced by underrepresented groups.
4. Partnering with other organizations and agencies to achieve our mission.

DEI Committee Members act as:

1. Advocates for USA Swimming and diversity through support for the organization, its staff, and

mission, vision, and key strategies.

2. Resources to USA Swimming, the LSCs and the broader swimming community through assistance with-DEI initiatives, dialogue, and expertise.
3. Liaisons to the LSC Diversity & Disability Chairs and Zone Diversity & Disability Coordinators.

International Relations Committee

Mission: To provide advice and support to staff and volunteer leadership to advance USA Swimming's continued leadership and success on the international stage.

The International Relations Committee shall report to the President & CEO.

USA Swimming Staff Leader: Director, International Games Operations

USA Swimming Staff Liaison: Director, Performance

Membership: The International Relations Committee shall consist of the following:

1. Four members of USA Swimming with relevant international experience, appointed by the IRC Chair and the President & CEO to three-year terms, staggered so that approximately one-third are named annually.
2. Two coach members of USA Swimming with relevant international experience, appointed by the Coach Advisory Council. Priority may be given to those who currently hold or have previously held roles with World Aquatics and PanAm Aquatics.
3. A sufficient number of eligible athlete members so as to constitute at least 33.3% of the voting membership. Athlete members shall be appointed by the AAC to staggered terms of two years. At least fifty percent of the athlete members must meet the requirements of 10-Year Athlete representatives.
4. The following individuals shall be non-voting Ex-Officio members: The Board Chair, Immediate Past Board Chair, President & CEO, and Managing Director, National Team of USA Swimming
5. Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Chair: The President & CEO shall appoint the Chair of the International Relations Committee to a one-year term. The Chair may either be the Staff Liaison (if also serving as one of the non-athlete voting members of the Committee) or one voting member of the Committee. The Chair of the Committee shall be an Ex-Officio member of the National Team Steering Committee.

LSC Development Committee

Mission: To provide resources that advance the success of LSCs

The LSC Development Committee shall report to the President & CEO.

USA Swimming Staff Leader: LSC Services Senior Manager

Membership: The LSC Development Committee shall consist of twelve (12) voting members, as follows:

1. Four (4) eligible athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.

2. Eight (8) additional members appointed by the President & CEO to staggered terms of three (3) years.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Chairperson: The Chair, who may be either an adult athlete or non-athlete member, shall be appointed by the President & CEO from the foregoing enumerated members and shall serve a one-year term as Chair.

Meetings: The committee shall meet as necessary and will normally do so by video conference.

Responsibilities:

1. To assist USA-S staff in strengthening LSC governance and operations by providing educational opportunities and mentoring for LSC boards and officers;
2. To provide a national network to enhance the sharing of information and ideas among LSC leaders;
3. To work with LSCs to meet expectations as identified by USA Swimming;
4. To assist USA-S staff in developing effective communications between USA-S and LSCs.
5. To assist USA-S staff in overseeing the LSC Evaluation and Achievement Program (LEAP)

Officials' Committee

Mission: To support USA Swimming in the development of programs to recruit, educate, train, and certify a diverse team of USA Swimming officials to provide high quality and consistent officiating for athletes at all levels of swimming.

The Officials Committee shall report to the President & CEO.

USA Swimming Staff Leader: Senior Director, Legal & Membership Affairs

USA Swimming Staff Liaison: Director, National Events

Membership: The Officials Committee shall consist of twelve (12) voting members, as follows:

1. Four (4) eligible athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.
2. Eight (8) non-athlete members appointed by the President & CEO. Non-athlete appointments shall serve three--year terms, staggered so that three will expire in each of two years and two will expire in the other year

In addition, serving as ex-officio members with voice but no vote shall be:

1. The immediate past Officials Committee Chair
2. The Program & Events Coordinator
3. The Rules and Regulations Committee Chair
4. The YMCA National Officials Chair
5. The USA Swimming member of the FINA Technical Swimming Committee

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Chairperson: The chair, who may be either an adult athlete or non-athlete member, shall be appointed by the President & CEO from the foregoing enumerated members. The Committee Chair shall be appointed

annually and may, at the pleasure of the President & CEO, serve in that capacity for up to, but no longer than, four (4) consecutive years.

Meetings: The committee shall meet as necessary and will normally do so by video conference.

Responsibilities:

1. Promulgate officials' minimum performance standards, as agreed to by the LSC Officials Chairs, for all USA Swimming sanctioned or sponsored events.
2. Develop and publish educational materials and conduct training for officials through workshops and webinars.
3. Establish standards for and manage the certification of all officials above the LSC level.
4. Develop and maintain testing materials for officials at all levels including open water swimming. Develop and maintain questions for the coach foundation test.
5. Maintain an ever-evolving national program to train, educate and inspire mentors and evaluators for the LSC (N2) and National (N3) levels thereby providing incentive for officials to achieve their highest goals.
6. Develop and implement specific programs to support and grow a diverse population of officials at all levels and positions.
7. Maintain historical data regarding meet attendance, certifications, evaluations, and mentoring sessions for current official members. Consult with USA Swimming staff regarding software enhancements for a tracking system for the above.
8. Work with and provide guidance for LSC Officials Chairs and Zone Officials Chairs in order to support local swim officiating programs throughout diverse geographic and demographic regions.
9. The Officials Chair, together with the Program & Events Coordinator and others as appropriate, will review and approve the selection of officials for all USA Swimming Championships and other USA Swimming competitions when requested by USA Swimming, in accordance with established policies, and endeavor to emphasize a diverse demographic representation at national events.
10. The Officials Chair, together with the Program & Events Coordinator, will in consultation with the International Relations Committee, identify potential nominees for appointment to the FINA and PanAm Aquatics officials' lists for submission to the President & CEO of USA Swimming.
11. Develop specialized programs as necessary to ensure quality officiating at Open Water Meets.
12. Facilitate a process that allows for opportunity and succession planning for a pool of diverse talents and officials at the highest levels of officiating to include two-star and above.
13. Work with other swimming bodies to promote fairness and consistency of officiating for all athletes.
14. Assist staff in maintaining a current roster of LSC Officials Chairs and Zone Officials Chairs.
15. Publish and circulate the officials selection criteria for five star and Trials meets for both stroke and turn judges and assigned positions.

See **Appendix IV for Officials Committee – Apprentice Official, Appendix V for Officials Committee – National Championship Policy, Appendix VI for Officials Committee – International Championship Policy**

Open Water Committee

Mission: The Open Water Committee shall assist USA Swimming in developing and promoting successful Open Water Swimming programs at all levels of competition.

The Open Water Committee shall report to the President & CEO.

USA Swimming Staff Leader: Director, National Team Open Water

Membership: The Open Water Committee shall consist of nine (9) voting members as follows:

1. Three (3) eligible athlete members with Open Water Competition Experience, who have retired from competition. At least fifty percent (50%) of the athlete members must meet the requirements of 10-Year Athlete representatives.
2. The Open Water Swimming Head Coach from the previous Olympic games.
3. Two (2) coach members who have expertise in Open Water program and athlete development, appointed by the Coach Advisory Council.
4. Three (3) additional non-athlete members who have expertise in Open Water program and athlete development, appointed by the President & CEO.

All committee members shall serve a term commencing with appointment and extending until the end of the annual House of Delegates meeting following the next Olympic Games.

In addition:

1. The Managing Director, National Team and the Chair of the National Team Steering Committee shall be non-voting ex-officio members of the Committee.
2. A member of the Officials Committee who has Open Water experience, selected by the President & CEO in consultation with the Chair of the Officials Committee, shall serve as a non-voting ex-officio member of the Open Water Committee.
3. Once the Head Open Water Olympic Coach is named for the upcoming Olympic Games, he or she shall become an ex-officio non-voting member of the Open Water Committee, if not already on the committee.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Chairperson: The Chair of the Open Water Committee shall be appointed by the President & CEO from the foregoing enumerated members to a term of one year. The Chair of the Open Water Committee shall be an Ex Officio member of the National Team Steering Committee with voice but no vote.

Meetings: The Committee shall meet quarterly, normally by video conference.

Responsibilities:

1. Recommendations to USA Swimming for development and review of programs and policies regarding the safety of athletes, officials, and spectators involved in open water swimming.
2. Advising USA Swimming on development programs to recruit, train, and educate open water coaches, officials, and volunteers.
3. Advising USA Swimming on the development of Open Water Swimming programs designed for success in international competition.
4. Endorsing selection procedures for athletes, coaches, and staff members of all Open Water National Team and National Junior Teams

Operational Risk Committee

Mission: To review USA Swimming historical loss trends and current activities for operational risk and safety considerations; develop guidelines & mitigation recommendations regarding operational risk management and safety during training, competition, and other activities.

The Operational Risk Committee shall report to the President & CEO.

USA Swimming Staff Leader: Senior Director, Risk Management

Membership: The Operational Risk Committee shall consist of twelve (12) voting members, as follows:

1. Four (4) eligible athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.
2. Eight (8) non-athlete members appointed by the President & CEO, with emphasis given to members who are geographically distributed, and who have expertise or experience in safety (with preference given to those who have acquired such outside of the sport). Non-athlete appointments shall serve three-year terms, staggered so that approximately one-third are named annually.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Responsibilities:

1. Recommend guidelines, policies, and programs to manage operational risks.
2. Promote the implementation of guidelines, policies, and programs to manage operational risks.

Registration/Membership Committee

Mission: To advise USA Swimming staff in the development of consistent policies and procedures and to provide support in administering and communicating those policies and procedures among LSC Registration / Membership Coordinators.

The Registration / Membership Committee shall report to the President & CEO.

USA Swimming Staff Leaders: Manager, Membership Affairs; Senior Advisor, Membership and Data Service

USA Swimming Staff Liaison: Manager, Member Success

Membership: The Registration / Membership Committee shall consist of twelve⁸ (12) voting members, as follows:

1. Four (4) athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.
2. Eight (8) non-athlete members appointed by the President & CEO, with strong consideration given to current LSC Registration Chairs. Non-athlete appointments shall serve three-year terms, staggered so that one-third are named annually.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Chairperson: The chair, who may be either an adult athlete or non-athlete member, shall be appointed by the President & CEO from the foregoing enumerated members and shall serve a one-year term as Chair.

Meetings: The committee shall meet at least every other month by video conference.

⁸ In 2024, the Registration / Membership Committee will absorb the Times and Recognition Committee. To preserve the term length of those who previously served on the Times and Recognition Committee, for 1 year the Registration / Membership Committee will be comprised of 14 people: five (5) athlete members appointed by the AAC (in consultation with the AEC) and nine (9) non-athlete members appointed by the President & CEO. In 2024, one non-athlete member and one athlete member of the Registration / Membership Committee will conclude their terms and the Committee will assume a twelve (12) person membership and the appointment procedure outlined in this manual.

Responsibilities: The Registration / Membership Committee provides advice and support to USA Swimming regarding:

1. Creating and implementing policies for the registration of athletes (year-round, seasonal and outreach), non-athletes (coaches, officials, apprentice officials, others), clubs, and organizations for approval by the House of Delegates and/or the Board of Directors
2. Coordinating the administrative procedures of all membership registration.
3. Empowering, supporting and educating LSC Registrars through direct communication and training opportunities.
4. Providing input on and making implementation recommendations for current and future SWIMS enhancements.
5. Assisting in the development of procedures and criteria for entry of times from all USA Swimming sanctioned and approved meets and observed swims by designated SWIMS Times Module Officers in each LSC
6. Verifying compliance of potential new records [e.g., World, American, U.S. Open, National Age Group with published rules and standards

Developing and implementing a selection process for Scholastic All-American

Subcommittees, Working Groups, and Task Forces:

1. Subcommittees, working groups, and task forces are appointed by the Registration / Membership Committee Chair with the advice and consent of the staff leader(s).
2. The purpose of the subcommittee, working group, or task force is stated upon appointment, the chair or leader is designated, and a duration for the appointment is noted (e.g. by November 1, XXXX, or one year, and so on.)
3. Meeting notifications and any relevant materials should be distributed to participants, the Registration / Membership Committee Chair, and staff leaders prior to the meeting.

Safe Sport Committee

Mission: To support USA Swimming's commitment to provide a healthy and safe environment free from abuse for all its members, especially athletes, through the planning, implementation, and coordination of USA Swimming's Safe Sport program.

The Safe Sport Committee shall report to the President & CEO.

USA Swimming Leader: Senior Director, Legal & Membership Affairs

USA Swimming Liaison: Program Director, Safe Sport

Membership: The Safe Sport Committee shall consist of twelve (12) voting members, as follows:

1. Four (4) eligible athlete members appointed by the AAC (in consultation with the AEC), each of whom shall serve staggered two (2) year terms;
2. Two (2) coach members appointed by the Coach Advisory Council, each of whom shall serve staggered three (3) year terms;
3. One (1) subject-matter expert from outside USA Swimming, appointed by the President & CEO, who shall serve a three (3) year term; and
4. Up to five (5) at-large members appointed by the President & CEO, each of whom shall serve staggered three-year terms.

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Leader or President & CEO.

Chairperson: The chair, who may be either an adult athlete or non-athlete member, shall be appointed by the President & CEO from the foregoing enumerated members and shall serve a one-year term as Chair.

Meetings: The committee shall meet at least bi-monthly and will normally do so by video conference.

Responsibilities:

1. Advise, counsel, support and assist staff in the creation, execution and continual review of USA Swimming's member protection policies, guidelines, educational programs, reporting and adjudication procedures, and make recommendations to the USA Swimming Board of Directors for such changes to existing policies, guidelines, programs, and procedures, as well as recommendations for new ones, as are appropriate;
2. Raise the awareness of member protection and the availability of member protection educational resources within the swimming community, including at the LSC and club levels;
3. Assist staff in coordinating and ensuring that the athlete and member protection education requirements for membership are properly developed, implemented, and executed;
4. Assist staff in achieving compliance with U.S. Center for SafeSport and USOPC requirements; and
5. Take such further actions as may be directed by the President & CEO.

Sports Medicine and Science Committee

Mission: To assist and support the development, implementation, and evaluation of medical and science-based programs for USA Swimming.

The Sports Medicine and Science Committee shall report to the President and CEO.

USA Swimming Staff Leader: Director, Sports Medicine and Science

Membership: The Sports Medicine and Science Committee shall consist of nine (9) voting members, as follows:

1. Three (3) eligible athlete members appointed by the AAC (in consultation with the AEC) to staggered terms of two (2) years.
2. Six (6) additional members appointed by the President & CEO to three-year terms, staggered so that one-third are named annually.
3. The Managing Director, National Team and the National Team Steering Committee Chair shall be non-voting ex-officio members

Non-committee members may also be appointed to sub-committees or task forces assigned to support the committee's work, as approved by the USA Swimming Staff Leader or President & CEO.

Chairperson: The Chair shall be appointed by the President & CEO from the foregoing enumerated members and shall serve a one-year term as Chair. The Chair shall be an ex-officio member of the National Team Steering Committee.

Meetings: The Committee shall meet as necessary, normally by video conference.

Responsibilities:

1. Assist staff in the development, implementation and evaluation of medical and science-based programs for USA Swimming, including the production of educational resources/materials for promulgation, as appropriate, to LSCs and member clubs;
2. Coordinate programming with the Age Group Development and Senior Development committees;
3. Expedite and implement decisions regarding those programs as necessary; and
4. Support the National Team Division and the National Team Steering Committee in all scientific and medical areas as they relate to the National Team.

22.0 Coordinators

This section is currently in the process of being drafted, reviewed, and finalized. In the case of any questions please reach out to Denise Thomas at USA Swimming (dthomas@usaswimming.org).

23.0 USA Swimming Athletes' Executive Committee (AEC) – Operating Policy Manual

Date of adoption / Last revision: November 18, 2021

PURPOSE AND MISSION STATEMENT

The AEC aims to ensure that all athletes of USA Swimming, from the grassroots level to the National Team level, are represented and have their voices heard in the USA Swimming governance process. The AEC aims to ensure that the athlete voice is strong on the USA Swimming Board of Directors, on all USA Swimming National Committees, in all Zones, and in all LSCs. Athlete representatives serving on the AEC are expected to be USA Swimming's most dedicated and experienced athlete representatives.

OPERATING PROCEDURES

- a. **General membership** – The AEC shall have thirteen (13) voting members. At the discretion of the AEC chair, ex-officio members may be included on the committee. Ex-officio members of the AEC shall have voice, but no vote. Voting members of the AEC must meet the following criteria to be eligible to run for the AEC:
 - i. Be at least eighteen (18) years of age, a member of USA Swimming in good standing and have:
 - I. At least one year of satisfactory leadership and/or governance experience in USA Swimming that extends beyond LSC representation; or
 - II. Professional or leadership experience relevant to the AEC.
 - ii. At the time of their election, all members of the AEC must qualify as an Actively Engaged Athlete
 - iii. Not concurrently serving as a Zone Athlete Representative.
 - iv. At least one (1) member of the AEC shall be a member of an LSC from each Zone's geographic area at all times. LSC membership shall be determined for a member's tenure on the AEC at the time of their initial election to the AEC. Only the elected members of the AEC shall be counted for the purpose of determining whether sufficient geographic representation exists on the AEC.
- b. **Voting members**
 - i. The Voting Members of the AEC shall be:
 - I. Eleven (11) At-Large Members of the AEC elected by the Senior LSC Athlete Representatives and athlete members of National Committees, and approved and appointed by the USA Swimming Athletes' Advisory Council (AAC)
 - II. The USA Swimming AAC Representative selected by the USA Swimming AAC Chair.
 - III. One (1) Athlete Member of USA Swimming Board of Directors determined by the Athlete Members of the USA Swimming Board of Directors.
- c. **Non-voting members**
 - i. The following individuals may serve as an Ex-officio member of the committee with voice, but no vote:
 - I. The Senior Zone Athlete Representative from each of the four Zones.
 - II. At the discretion of the AEC Chair, a past Chair of the AEC.

d. Terms of office

- i. AEC At-Large Members shall serve two (2) year terms. The term of office shall commence at the conclusion of the annual meeting of the House of Delegates following the Annual Business Meeting at which they are elected. Terms for At-Large Members shall be staggered so that roughly one-half (1/2) of the At-Large Members are elected annually.
- ii. The USA Swimming AAC Representative shall serve a two (2) year term as a member of the AEC. The AAC Representative shall be selected by the USA Swimming AAC Chair.
- iii. The Athlete Member of the USA Swimming Board of Directors shall serve a two (2) year term as a member of the AEC.
- iv. Members of the AEC shall serve no longer than four (4) consecutive years on the AEC. Exceptions to this provision include:
 - I. Members may serve more than four (4) consecutive years if currently completing a term as an officer of the AEC. Members exempt from the term limits under this provision may not serve more than five (5) consecutive years on the AEC.

OPERATING PROCEDURES

- a. The officers of the AEC shall be the Chair, the Administrative Vice Chair, the Leadership Chair, and the Programming and Events Chair. The AEC shall elect its own officers from among its voting members by majority vote in even numbered years at the first meeting following the Annual Business Meeting.
 - i. Only the eleven (11) At-Large Members of the AEC may serve as AEC officers. Officers of the AEC shall serve no more than two (2) consecutive two (2) year terms in a given position.
 - ii. An At-Large Member of the AEC may not hold two (2) officer positions simultaneously.
 - iii. The officers of the AEC shall be elected in the following order: Chair, Administrative Vice Chair, Leadership Chair, Programming and Events Chair. AEC members must declare their intention to run for each officer position prior to the election.
 - iv. Officers of the AEC shall be elected by majority vote of the AEC. In the event that no candidate receives a majority of votes cast, the candidates receiving the two (2) highest vote totals shall advance to a run-off election.
 - v. The election of each officer position shall be facilitated by a member of the AEC not running for that position.
 - vi. An election will be held to fill an outgoing AEC officer's term if the Operating Procedures provision D. 4. A) applies. The vacancy will be filled by the candidate receiving the next highest number of votes in the election of At-Large Athletes Executive Committee members, for a term of one (1) year.

REMOVAL OF OFFICERS AND AEC MEMBERS

- a. Any officer or At-Large AEC member who has failed to attend to their official duties or responsibilities or has done so improperly may be removed from office.
- b. The removal of an AEC officer from their officer position, as outlined below, does not remove them from the AEC.
 - i. At least one-third (1/3) of the voting members of the AEC shall recommend the removal of an officer in writing to the AEC Chair to begin the procedure to remove an officer.
 - ii. Should one-third (1/3) or more members of the AEC call for the removal of an officer, the AEC Chair shall call for an AEC meeting at which the removal of the officer shall be discussed.

- iii. The AEC shall meet not less than fourteen (14) days and not more than thirty (30) days after one third (1/3) of the committee recommends the removal of the officer.
- iv. At least seven (7) days written notice shall be given prior to any meeting at which action is taken on the removal of an officer. The officer facing removal shall be given the opportunity to speak at the meeting at which action could be taken.
- v. At least a quorum of the committee must be present during any meeting at which action is taken on the removal of an officer.
- vi. At least two-thirds (2/3) of the AEC vote shall be required to remove an officer from their position.

VACANIES

- a. If a vacancy occurs on the AEC, a successor shall be appointed to fill the term of the vacated office using the following procedure:
 - i. A vacancy in an At-Large Member position shall be filled with an appointment recommended by the AEC Chair, confirmed by a majority vote of the AEC and approved and appointed by the USA Swimming AAC.
 - ii. A vacancy in the USA Swimming AAC Representative position shall be filled by an appointment made by the USA Swimming AAC.
 - iii. A vacancy in the Athlete Member of the USA Swimming Board of Directors position shall be filled by a determination of the USA Swimming Board of Directors Athlete Members.
- b. If a vacancy occurs on the AEC, a successor shall be elected to fill the term of the vacated officer position by a majority vote of the AEC.

MEETINGS

- a. **Meetings** - Each year, the AEC should meet at least once per quarter remotely and in-person at the discretion of the AEC Chair and the USA Swimming staff lead. A meeting of the AEC may be called by the AEC Chair or by one third (1/3) of the voting membership of the AEC
- b. **Meeting Notice** - Meeting notice should be provided to all AEC members at least twenty-one (21) days prior to all in-person meetings, at least five (5) days prior to all electronic meetings at which action is taken, and at least three (3) day prior to all electronic meetings at which not action is taken. An email to committee members listing the time, date and location of a meeting shall constitute notice. An emergency meeting may be called by the AEC Chair; meeting notice shall be provided at least twenty-four (24) hours in advance.
- c. **Quorum** – The presence in-person or by electronic means of the majority of voting AEC Members shall constitute a quorum at any meeting of the AEC. Voting by proxy shall be prohibited.
- d. **Minutes** – Minutes shall be taken during all meetings.
 - i. The staff liaison shall record a summary of the proceedings of each meeting of the AEC.
 - ii. The proceedings of each meeting of the AEC Sub-Committees shall be recorded by a designee of the Sub-Committee Chair.
- e. **Voting** – The thirteen (13) voting members of the AEC shall have both voice and vote in all AEC matters. A majority vote of the members present is required for action, except for the removal of an officer during which at least two-thirds (2/3) of the AEC vote shall be required.
- f. **Open Meetings** – All meetings of the AEC and Sub-Committees shall be conducted in open session except in those situations it would be in the interests of USA Swimming or the AEC to hold a closed session, as determined by the AEC Chair.

MEMBERS

- a. **Chair** – The AEC Chair shall lead and direct the voice of the AEC. The responsibilities of the AEC Chair shall be as follows:
 - i. To conduct all meetings of the AEC, or to designate another member to conduct the meetings of the AEC.
 - ii. To call and schedule meetings of the AEC; to notify AEC members of upcoming meetings of the AEC.
 - iii. To regularly communicate with the USA Swimming AAC Chair and the Chairs of AEC Sub-Committees and task forces, as well as any other liaisons.
 - iv. To assist the Athletes' Programming and Events Vice Chair in coordinating and running meetings as needed.
 - v. To work with the Staff Liaison to propose and adhere to an AEC budget.
- b. **Administrative Vice Chair** – The AEC Administrative Vice Chair shall assist the AEC Chair in leading and directing the voice of the AEC. The responsibilities of the AEC Administrative Vice Chair shall be as follows:
 - i. In the absence of the AEC Chair, to assume the responsibilities and duties of the AEC Chair.
 - ii. To generally assist the AEC Chair in all the duties outlined in VII.A.
 - iii. To regularly communicate with the AEC Sub-Committee Chairs and task forces.
- c. **Leadership Chair** – The Leadership Chair shall recruit new athletes to serve on National Committees. The Leadership Chair shall prepare athlete representatives for future leadership roles through intentional succession planning and education programs. The responsibilities of the Leadership Chair shall be as follows:
 - i. To serve as the AEC Leadership Sub-Committee Chair.
 - ii. To organize, educate, and train athletes serving on national and local level committees and task forces to ensure that the athlete voice is heard at all levels of the USA Swimming governance structure.
 - iii. In coordination with USA Swimming Staff, provide the AEC Chair with intentionally selected candidates for placement on National Committees and task forces.
 - iv. To assist the Athletes' Programming and Events Vice Chair in coordinating and running meetings, as needed.
- d. **Programming and Events Chair** – The Programming and Events Chair shall coordinate meetings, events, and educational opportunities and throughout the year. The responsibilities of the Programming and Events Chair shall be as follows:
 - i. To serve as the AEC Programming and Events Sub-Committee Chair.
 - ii. To organize and plan athlete meetings and other events throughout the year.
 - iii. Responsible for executing programs to educate and informing the athlete members of USA Swimming.
- e. **At-Large Members** – The seven (7) At-Large Members shall be actively participating members of the AEC and shall assist and communicate with the AEC officers as directed.
 - i. To complete projects as assigned by AEC officers.
 - ii. One (1) AEC At-large member shall be appointed by the AEC Chair with the advice and consent of the committee as the Sub-Committee liaison to facilitate transactions between the Leadership Sub-Committee and the Programming and Events Committee.
 - iii. Two (2) At-Large Members shall be appointed by the AEC Chair with the advice and consent of the committee to serve on the Programming & Events Subcommittee.
 - iv. One (1) AEC At-Large Member shall be appointed by the AEC Chair with the advice and consent of the committee to serve as the DEI liaison to ensure diversity, equity, and

- inclusion best practices within the AEC in collaboration with the DEI National Committee Athlete Representatives.
- v. No At-large member shall serve in more than one of the capacities listed in E.3-5.
 - f. **USA Swimming AAC Representative** – The USA Swimming AAC Representative shall serve as a member of the USA Swimming AAC and meet the USOPC’s requisite criteria.
 - i. To report to and advocate for the AEC regarding the business of the AAC.
 - ii. To assist in communicating the business of the AEC by contributing to relevant publications and media outputs.
 - iii. To engage regularly with athlete and non-athlete leaders from LSCs as determined by the Athletes’ Leadership Chair.
 - g. **Athlete Member of the USA Swimming Board of Directors** – The Athlete Member of the USA Swimming Board of Directors on the AEC shall serve as a member of the USA Swimming Board of Directors. The responsibilities of the Board of Directors Representative shall be as follows:
 - i. To report to the AEC regarding the business of the Board of Directors
 - ii. To assist in communicating the business of the AEC to the USA Swimming Board of Directors.
 - iii. To engage regularly with athlete and non-athlete leaders from LSCs as determined by the Leadership Chair.

USA SWIMMING ATHLETES’ EXECUTIVE COMMITTEE SUB-COMMITTEE

a. Leadership Sub-Committee

- a. **Members** - The members of the Leadership Sub-Committee shall be the Leadership Chair, the four (4) Senior Zone Athlete Representatives, and up to four (4) additional members. The remaining members of the Leadership Sub-Committee shall be appointed by the AEC Chair, with the advice and consent of the AEC.
- b. **Duties**
 - i. Devise and execute a National Athlete Representative succession plan to ensure that athlete leaders are educated and retained.
 - ii. Define best practices for LSC athlete representation programs and governance structures (such as Athlete Committees, elections, succession planning, etc.). The Sub-Committee should use outside resources (Board Source, etc.) as well as previous experience in defining these best practices.
 - iii. Provide and create educational resources in conjunction with Programming & Events Subcommittee, for LSC athlete representatives to use to ensure that LSC athlete representatives can apply the best practices.
 - iv. Facilitate discussion between athletes and non-athletes about aspects of athlete leadership and/or athlete governance.

b. Programming and Events Subcommittee

- a. **Members** - The members of the Programming and Events Sub-Committee shall be the Programming and Events Chair, two (2) AEC at-large members and up to six (6) additional appointees. The members of the Programming and Events Sub-Committee shall be appointed by the AEC Chair with the advice and consent of the AEC.
- b. **Duties**
 - i. Plan and organize events and workshops at the USAS Convention and other meetings, as assigned by the AEC or AEC Chair.
 - ii. Work with the Leadership Sub-Committee to create content that is communicated and presented effectively to the athlete members of USA Swimming.
 - iii. To manage physical and digital content developed by the AEC.

AMENDMENTS

Any provision of these Policies and Procedures may be amended at any scheduled meeting of the Athletes' Executive Committee by a simple majority vote.

24.0 USA Swimming Athletes' Advisory Council (AAC) – Operating Policy Manual

Date of adoption / Last revision: December 19, 2024

MISSION STATEMENT AND PURPOSE

The AAC shall be responsible for:

- a. reviewing the programs and services offered by the USA Swimming National Team division;
- b. evaluating and proposing rules and regulations that directly affect the National Team Athletes’
- c. addressing the specific needs of the National Team Athletes in preparation for major international events;
- d. evaluating and developing projects and conducting long term plans in all areas concerning National Team Athletes;
- e. reporting to the members of the National Team Steering Committee and Open Water Steering Subcommittee any issues that warrant attention from those groups; and
- f. fulfilling its duties set forth in the USOPC Bylaws, including: selecting athlete representatives to serve on committees and defining sanctioned competition for purposes of athlete representative eligibility.

The AAC is committed to supporting all USA Swimming athletes, not just those at the National Team level. Specifically, the AAC will strive to support and protect the interests of National Junior Team athletes, 10-Year, 10-Year+ Athletes, and 2-Year Athletes. As part of this effort, the AAC will partner with the Athletes’ Executive Committee (“AEC”) to evaluate and develop projects and conduct long-term planning in all areas concerning USA Swimming athletes.

OPERATING PROCEDURES

a. Voting Members

- a. The AAC shall consist of nine voting members who meet the requirements of 10-Year Athlete representatives directly elected by athletes who meet the same standards as 10-Year Athletes.
- b. The voting members may include the U.S. Olympic & Paralympic Committee (“USOPC”) AAC representative and the USOPC AAC alternate.

b. Non-Voting Members

- a. AEC Chair shall serve as an ex-officio member with voice but no vote.
- b. Up to two additional Actively Engaged Athlete Representatives may be appointed by the AAC Chair, in consultation with the AEC Chair, with voice but no vote.

c. Terms of Office

- a. Each AAC voting member shall serve a two-year term, staggered so that one-half of such members are elected each year.⁹

⁹ Note: The AAC was first created and elected in 2021. In order for the initial AAC members to have sufficient time to develop the AAC, their terms were staggered so that one-half of the committee will serve 2 years and the other half will serve 3 years (excluding the USOPC AAC Representative and Alternate who will serve on the AAC during their time in those positions). The second AAC election will be conducted in 2023; those elected will serve 2-year terms per this manual.

- b. There shall be no term limits, but voting members must be eligible to serve pursuant to the USOPC Bylaws at the time of election.
- d. **Committee Officers**
 - a. Chair: The Chair shall be elected by the voting members. The responsibilities of the Chair shall include:
 - i. To present and support all motions and proposals of the AAC to the appropriate USA Swimming governing bodies
 - ii. To conduct all meetings of the AAC, or appoint another member to conduct the meeting
 - iii. To schedule meetings of the AAC; to notify the AAC members of the upcoming meetings
 - b. Vice Chair: The Vice Chair shall be elected by voting members. The responsibilities of the Vice Chair shall include:
 - i. In the absence of the Chair, to assume all responsibilities and duties of the AAC Chair
 - ii. To generally assist the AAC Chair in all their duties.
 - c. Election of Officers
 - i. The AAC shall elect its officers from among its voting members by majority vote at the first meeting.
 - d. Terms of Officers
 - i. Officers shall hold 1-year terms
- e. **Removal & Resignation of Athlete Committee Members.** As the appointing body for all 10-Year, 10-Year+, and 2-Year Athletes, the AAC has the power to remove all athletes from USA Swimming committees.
 - a. Any athlete committee member (including members of the AAC) who has failed to attend to their official duties or responsibilities or has done so improperly may be removed by the AAC.
 - i. Within the AAC, an athlete committee member can be removed by majority vote of the other committee members.
 - b. Any athlete committee member who resigns will be replaced by the AAC to finish out the term of the athlete who resigned.
 - i. An athlete committee member who resigns from the AAC will be replaced by an election. The elected athlete will finish out the term of the athlete who resigned.

MEETINGS

- a. **Regular Meetings:** Meetings shall occur monthly virtually. There will be at minimum one in-person meeting per year at a location determined by the AAC Chair and USA Swimming Staff.
- b. **Quorum:** A majority of AAC members shall indicate a quorum.
- c. **Minutes:** Minutes shall be taken during all meetings. A USA Swimming staff, Chair, or Vice Chair will record a summary of proceedings of each AAC meeting.
- d. **Voting:** The nine (9) voting members of the AAC shall have voice and vote in all AAC matters. A majority of members is required for a motion to pass.
- e. **Action Without a Meeting:** The AAC shall allow action without a meeting to be communicated via email in between regular meetings. Action without a meeting may be taken if notice is sent to each member, and each member by the time stated in the notice either votes in writing for or against such action, abstains in writing from voting, fails to respond or vote, or fails to demand in writing that action not be taken without a meeting. The notice shall state the action to be taken, the time by which a member must respond, that failure to respond by the time stated will have the same effect as abstaining, and that failure to demand in writing by the time stated that action not be taken

without a meeting will have the same effect as abstaining. The action will be taken if there are affirmative votes equal or exceed the minimum number of votes that would be necessary to take such action at a meeting.

- f. **Open Meetings/Closed Session:** All AAC meetings shall be conducted as open sessions, except in those situations it would be of interest to USA Swimming staff or AAC members to hold a closed session, as determined by majority vote of the AAC.

ELECTIONS¹⁰

- a. Beginning in 2023, elections for open AAC seats will be held annually in September.
- b. USA Swimming staff will send an email to all eligible 10-Year Athletes, announcing the number of open seats, the election timeline, and how to apply
- c. The application will request the following disclosures:
 - a. Doping violations
 - b. US Center for Safe Sport Violations
 - c. Periods of ineligibility
 - d. Felony convictions
- d. The application will also require completion of the Conflict of Interest Disclosure Form, to be reviewed by USA Swimming's Ethics Committee
- e. Eligible athletes will be placed on the ballot. USA Swimming staff will conduct the election via email and electronic ballot. All 10-Year Athletes will be eligible to vote. At the close of the election, USA Swimming staff will announce the results. New committee members' terms will begin in September.

ATHLETE COMMITTEE

- a. Appointments
 - i. Athlete committee appointments for any open seats will occur annually in the fall, following the annual meeting of the House of Delegates. An email will be sent by the AAC to all eligible 10-Year and 10-Year+ Athletes; the email will announce the open seats, the application process, and the timeline for appointment. It will also explain that all applicants but be members of USA Swimming in good standing.
 - ii. The application will request the following disclosures: any doping violations, U.S. Center for SafeSport violations, USA Swimming Safe Sport violations, periods of ineligibility, and felony convictions. USA Swimming Staff will review the disclosures to ensure the eligibility of all applicants.
 - iii. The application will also inquire about any potential conflicts of interest, to be reviewed by USA Swimming's Ethics Committee.
 - iv. The AAC will review the names, applications, and disclosures of eligible athletes and vote to appoint athletes to open committee seats.
 - v. Once the committee athletes have been selected, the AAC will inform the applicants of their appointments.
- b. Seeking Exceptions from USOPC Athlete Representation Working Group
 - i. In appointing athletes to committees, the AAC will abide by the athlete representation requirements in the USOPC Bylaws and the USA Swimming Bylaws, Rulebook, and Operating Policy Manual.

¹⁰ The election for the USOPC AAC Representative and Alternate will be conducted separately by USA Swimming Staff pursuant to the requirements of the USOPC.

- ii. To the extent that the AAC would like to seek a higher standard, addition, restriction, or exception to the USOPC's athlete representation requirements, the AAC should discuss and vote to submit the request to the National Governing Body Athlete Representation Review Working Group for review and approval.
- iii. The following are examples of when the AAC might seek an exception:
 - i. Use of proportional or weighted voting to achieve the necessary level of athlete representation in the House of Delegates.
 - ii. Designation of additional events beyond Delegation Events to expand the pool of eligible 10-Year or 10-Year+ Athletes.
 - iii. Changing a committee's status as either Designated or Other, per the USOPC Bylaws.

CONFLICT OF INTEREST

- i. Per USA Swimming's Statement of Ethics and Conflict of Interest Policy, all members of the AAC must submit annual conflict of interest disclosures to USA Swimming's Ethics Committee.
- ii. The Ethics Committee will review the disclosures and determine whether a conflict of interest exists and if there are any mitigating measures that could be implemented to manage or avoid the potential conflict.
- iii. AAC members will abide by the instructions of the Ethics Committee as to whether disclosure and/or recusal are required at meetings and/or in votes for certain topics.

AMENDMENTS

- a. Any provision in this Manual may be amended by majority vote.

25.0 LSC Development Committee Policies and Procedures

Date of adoption / Last revision: June 2023

MISSION

To support LSCs through shared communication of available resources

GENERAL COMMITTEE RESPONSIBILITIES

- a. Providing opportunities and resources which strengthen LSC governance and operations.
- b. Enhancing the sharing of leading practices and information among LSCs.

COMMITTEE MEMBER RESPONSIBILITIES

- a. Attend and participate in all meetings of the committee throughout the year as scheduled.
- b. Acknowledge the importance of the cooperative effort needed to evolve programs and projects by completing committee assignments within the timeline assigned by the chair and/or staff leader. Fully participate in the brainstorming, creating, vetting, executing and evaluation of ideas and/or programs that support the committee's mission and responsibilities.

GENERAL COMMITTEE PROCEDURES

- a. Meetings
 - a. Notification of scheduled committee meetings and the agenda are provided at least one week prior to the meeting to all committee members and staff.
 - b. Relevant files/materials for the meeting are linked in the agenda.
 - c. Committee member reports are posted in the committee Teams at least 2 days prior to the meeting date.
 - d. In the event someone is unable to participate in a scheduled meeting, the committee chair and staff leader are notified.
- b. Files and Minutes
 - a. The staff leader (or designee) is responsible for composing the minutes of the meeting.
 - b. Minutes are posted in Teams by the staff leader (or designee) following the meeting.
 - c. Minutes and related files are in Teams and posted on the USA Swimming website by the staff leader.
- c. Committee Budget Request Procedure
 - a. The staff leader submits to the Managing Director, Sport Development
- d. Resigning from the Committee
 - a. Any committee member may resign by orally advising the Committee Chair or by submitting a written resignation specifying an effective date of the resignation. In the absence of a specified effective date, any such resignation shall take effect upon the appointment of a successor.
- e. Committee Vacancies
 - a. Mid-term vacancies – In the event of a mid-term vacancy in, or permanent incapacity of the committee member, the Committee Chair shall appoint a successor, with the advice and consent of the staff leader & Managing Director, Sport Development Division & CEO or

designee, to serve the remainder of the term, or until the next regularly scheduled period to fill committee openings. The appointment will not count against the term limit.

- f. Committee Organization Structure
 - a. LSC Development Committee > Committee Chair > Staff Leader > Managing Director, Sport Development > CEO

LSC EVALUATION AND ACHIEVEMENT PROGRAM (LEAP)

General

Each LSC shall be required to comply with the USA Swimming LEAP Program as outlined in the LSC Affiliation Agreement.

Submission Process

LSC's will complete the LEAP Program through the USA Swimming LEAP Teams link provided to LSC leaders by the appropriate Team Services advisor.

Evaluation

- a. General
 - a. LSC's must maintain LEAP program compliance according to the published schedule shown in Appendix B. Submitted materials will be reviewed and critiqued by the USA Swimming staff and/or designees. LSCs successfully renewing the LEAP Program every two (2) years will remain compliant with the LSC Affiliation Agreement.
- b. Evaluation Schedule
 - a. At least 60 days prior to the scheduled renewal date, the LSC will receive notification from USA Swimming of the upcoming LEAP renewal deadline.
 - b. Deadline: Submissions will be reviewed by the appropriate Team Services Advisor and referred to the LSC for correction if needed. LSCs will have a maximum of 30 days to update deficiencies, or they will be designated as non-compliant with the LSC Affiliation Agreement.
- c. Evaluation Guidelines
 - a. Each required item, and any additional items designated as needing to be updated by the Team Services Advisor in each of the three (3) LEAP categories must be completed successfully to remain compliant with the LSC Affiliation Agreement.
- d. Approval of LEAP Compliance
 - a. Upon successful renewal of the LEAP program, the LSC will be notified by the appropriate Team Services Advisor as being compliant with the LEAP requirement outlined in the LSC Affiliation Agreement.
- e. Appeals
 - a. An LSC shall have the right to dispute any unapproved LEAP item. To appeal, an LSC shall submit a written appeal to USA Swimming describing the issue in question.
 - b. If the LSC feels that its appeal has been wrongly denied, it may submit the appeal to the Managing Director, Sport Development for consideration. The decision of the USA Swimming BOD shall be final.

Failure to Maintain Compliance with the LEAP Program

An LSC that fails to submit, or has uncorrected deficiencies as outlined above, shall be considered non-compliant with the LSC Affiliation Agreement, and will be referred to the USA Swimming Board of Directors for further action

LSC RESOURCE LIBRARY

Purpose

To provide convenient online access to LSC leading practice material from the LEAP program and other areas of LSC Governance for interested members.

Location

The library contents are located on the USA Swimming website under About/LSCs.

Responsibility

Responsibility for the library resides with USA Swimming staff.

Submittal Process for Library Content

Members of the LSC Development Committee or staff may recommend materials that should be shared in the LSC Resources Library. The inclusion of recommended items for the LSC Resources Library is not automatic. USA Swimming staff retains discretion over items in the LSC Resources Library.

SERVICE RECOGNITION

Retiring LSC Development Committee members will be verbally recognized at the November committee meeting for their service to USA Swimming.

SUBCOMMITTEES & TASK FORCES

General Procedures

- a. Working groups and task forces are appointed by the LSC Development Committee Chair with the advice and consent of the staff leader.
- b. The purpose of the Working Group or task force is stated upon appointment, the chair or leader is designated, and a duration for the appointment is noted. (e.g., by November 1, XXXX or one year, and so on.)
- c. Meeting notifications and any relevant materials should be distributed to the participants, the LSC Development Committee Chair, and staff leader prior to the meeting.
- d. Notes of the meetings are posted in Teams.

26.0 National Board of Review

Date of adoption / Last revision: December 19, 2024

As a voluntary membership organization, where membership is a privilege and not a right, USA Swimming may censure, enjoin, place on probation, suspend for a definite or indefinite period of time with or without terms of probation, fine, or expel any member of USA Swimming, including any athlete, coach, manager, official, and member of any committee, as well as any person participating in any capacity in the affairs and/or attending activities of USA Swimming, the Zones or Local Swimming Committees (“LSC”). This ability exists even if such person is a non-member of USA Swimming but acting in a capacity or situation that requires a USA Swimming membership (a “Participating Non-Member”). USA Swimming may take such action outlined above against a member or Participating Non-Member who has violated any of its rules or regulations, who aids, abets, and encourages another to violate any of its rules or regulations, or who has acted in a manner which brings disrepute upon USA Swimming, the Zone, the LSC, or the sport of swimming.

I. Original and Exclusive Jurisdiction of the NBOR

The National Board of Review (“NBOR”) has original and exclusive jurisdiction to hear:

- a. Any complaint involving athletes or other members, or Participating Non-Members, during a national or international event;
- b. Any complaint under Article 301.1 of the USA Swimming Rules & Regulations against any individual or organizational member of USA Swimming or organization affiliated with USA Swimming alleging the denial of (or a threat to deny) any eligible swimmer, coach, trainer, manager, official or administrator the opportunity to participate;
- c. Any complaint under Articles 304.3.1 through 304.3.12 of the USA Swimming Rules & Regulations against any member of USA Swimming, including any athlete, coach, manager, official, member of any committee, or a Participating Non-Member;
- d. Any complaint initiated by USA Swimming, which shall be prosecuted by and may be appealed by the President & CEO;
- e. Any complaint under Article 304.3.14 of the USA Swimming Rules & Regulations that is not heard pursuant to the U.S. Center for SafeSport’s SafeSport Code for the Olympic and Paralympic Movement;
- f. Any appeal initiated pursuant to adverse action taken by the USA Swimming Board of Directors against an LSC for alleged violations of an LSC Affiliation Agreement;
- g. Any appeal initiated pursuant to an adverse action taken against an athlete for alleged violations of the applicable USA Swimming team rules for a USA Swimming international team trip;
- h. Any complaint under USA Swimming’s Whistleblower and Anti-Retaliation Policy, initiated by the USA Swimming Ethics Committee pursuant to that Policy, or any complaint of retaliation initiated by the complaining party if the Ethics Committee determines that it will not initiate a complaint in its own name;
- i. Any matter to determine whether a member or prospective member who fails to meet the automatic qualification criteria of USA Swimming’s Background Check Policy is eligible for membership and if so under what conditions;
- j. Any complaint involving a member, former member or prospective member found by the U.S. Olympic & Paralympic Committee (the “USOPC”) to have violated its rules, policies and/or procedures, or the Ted Stevens Olympic and Amateur Sports Act;

- k. Any complaint filed against USA Swimming regarding USA Swimming's alleged violation of or noncompliance with USOPC rules, policies and/or procedures, or the Ted Stevens Olympic and Amateur Sports Act;
- l. Any matter to determine whether any member, former member, or prospective member found by a state or federal jurisdiction to have violated a local, state, or federal law is eligible for membership and if so under what conditions; or
- m. Any protest of a referee or meet jury's ruling, pursuant to Article 102.22.5(B) and any appeals of the Program & Events Coordinator's decision regarding fines pursuant to Article 207.7.3(C).

II. Discretionary Jurisdiction

- a. Upon a majority vote of the Board of Directors, the NBOR may be assigned exclusive and immediate jurisdiction at any stage of any matter outlined above in Section I , when in its sole discretion, the best interests of USA Swimming shall be served thereby, or when compliance with regular USA Swimming or Zone procedures would not be likely to produce a sufficiently early decision or do justice to the affected parties.
- b. If discretionary jurisdiction is so assigned, the NBOR shall comply in every instance with all requirements of procedural due process as set forth in these Procedures. The NBOR may set such procedural time limitations as it may deem necessary in order to reach a decision, which shall do justice to the affected parties under particular circumstances.
- c. The NBOR may assess fees and costs against any party other than USA Swimming or any Committee thereof.

III. Authority of the NBOR

The NBOR shall have the power and authority to do the following:

- a) Impose and enforce penalties for any violation of the Rules & Regulations, administrative or technical, of USA Swimming;
- b) Determine an individual's eligibility and right to participate;
- c) Vacate, modify, sustain, reverse, or stay any decision or order properly submitted on appeal, or remand the matter for further action;
- d) Investigate any election impropriety (other than allegations of violations of the campaigning rules in Corporate Bylaw 6.3.3(D), which will be referred to the USA Swimming Ethics Committee) or cause for removal of a national officer or national committee member and take corrective action;
- e) Interpret any provision of the Rules & Regulations of USA Swimming with the exception of the technical rules (Parts One and Seven);
- f) Review any revocation, suspension, or reinstatement of membership, or challenge the granting or denial of membership; and
- g) Issue such orders, prohibitory or mandatory in nature, as may be necessary pending a final decision of the NBOR.

IV. Filing of Complaints, Initial Inquiry and Investigation

- a. Filing of Complaints
 - 1. All complaints within the exclusive jurisdiction of the NBOR as set forth above shall set forth the allegations and shall be filed in writing with the President & CEO (or their designee, collectively, the "CEO"), the Secretary & General Counsel (or their designee, collectively the "General Counsel"), and the Chair of the Board of Directors (the "Board Chair").
 - 2. A complaint may be filed online via USA Swimming's online reporting tool at: <https://fs22.formsite.com/usaswimming/ViolationReportingForm/index.html>.

3. A copy of reports filed online will be sent to the CEO, the General Counsel, and the Board Chair.
- b. Initial Inquiry
 1. Upon receipt of a filed complaint, the CEO shall promptly perform an initial inquiry. The initial inquiry is intended to determine whether the complaint satisfies the personal and subject matter jurisdiction of the NBOR, including whether the factual allegations—if taken as true—give rise to an actionable claim. It is anticipated that the initial inquiry will take no longer than ten business days.
- c. Investigation of Complaints
 1. If a complaint survives initial inquiry, the CEO shall initiate an investigation, anticipated to take no longer than six weeks, of the matter as follows:
 - i. In matters involving allegations of physical abuse of an athlete by a coach, a committee of three coaches appointed by the Board Chair shall make a determination with such investigative assistance by the CEO as the committee may request and report as to whether the coach's conduct is outside the customary and acceptable bounds of coaching. If such matter is referred to the U.S. Center for SafeSport, the SafeSport Code or the Olympic and Paralympic Movement shall apply.
 - ii. In those matters involving allegations under USA Swimming's Whistleblower and Anti-Retaliation Policy, the Ethics Committee shall make the investigation and report.
 2. In all other matters, the CEO shall make the investigation and report.
 3. Upon the initiation of an investigation beyond the initial inquiry stage, a notice of investigation will be sent to the subject of the complaint, as well as the club's head coach and/or Board president, if applicable. The notice of investigation will include a statement as to which USA Swimming rule was allegedly violated.
 4. Dismissal of Complaints
 - i. During the initial inquiry and/or the investigation, a complaint may be dismissed for reasons including, but not limited to:
 - ii. The reporting party declined to participate;
 - iii. There is insufficient evidence to support the claims; or
 - iv. There is no remedy available, even if the claims are found to be supported.
- d. The initial inquiry and/or the investigation may include the following steps, among others:
 - i. A review of relevant documentation or policies; and/or
 - ii. Interviews with the witnesses.

V. Disposition After Investigation

After the initial inquiry and investigation have been completed, the CEO may attempt to settle the matter with the opposing party or decide to initiate a complaint in the name of USA Swimming by filing the complaint with the Chair of the NBOR ("NBOR Chair") and requesting a hearing.

Any decision by the CEO not to forward a complaint to the NBOR following an investigation shall be reviewed by the Board Chair for a final decision. The CEO may also seek an emergency hearing as set forth below in Section VII.

If the CEO does not initiate a complaint in the name of USA Swimming, then the CEO may:

- a. Cause further investigation to be conducted into the alleged violations;
- b. Seek to mediate or settle the complaint; or
- c. Advise the complaining party that while USA Swimming will not initiate a complaint in its own name, the complaining party may request USA Swimming assist with mediating the complaint or the

complaining party may file their complaint directly with the NBOR Chair by submitting a petition directly to the NBOR Chair. USA Swimming shall share the procedural history of the complaint with the NBOR Chair, to confirm that the matter is properly before the NBOR Chair; USA Swimming may further share its investigation with the NBOR Chair to assist with the NBOR Chair's assessment of the matter.

If the investigation is conducted by the Ethics Committee under USA Swimming's Whistleblower and Anti-Retaliation Policy, after the investigation is complete, the Ethics Committee may decide to initiate a complaint in the name of the Ethics Committee by filing a petition with the NBOR Chair and requesting a hearing. If the Ethics Committee does not file a petition with the NBOR Chair, it may advise the complaining party that, while the Ethics Committee will not initiate a complaint in its own name, the complaining party may still file their petition with the NBOR Chair. The Ethics Committee shall share the procedural history of the complaint with the NBOR Chair, to confirm that the matter is properly before the NBOR Chair; the Ethics Committee may further share its investigation with the NBOR Chair to assist with the NBOR Chair's assessment of the matter.

VI. Settlement Agreements

Any settlement agreement between the parties must be memorialized in writing and submitted to the NBOR Chair. The NBOR Chair may then decide whether to accept or reject the settlement agreement. If the NBOR Chair accepts the settlement agreement, they will issue an order documenting that decision. If the NBOR Chair issues such order, no further investigation into the complaint is warranted, and the complaining party may not file their complaint directly with the NBOR Chair pursuant to Paragraph V(c).

VII. Expedited Procedures and Emergency Hearing

- a. After the investigation, the CEO or other petitioning party may seek expedited procedures and/or an emergency hearing. Upon such request, the NBOR Chair may order an emergency hearing before the NBOR to determine (1) if the member should be suspended and/or (2) only in the case of an athlete being dismissed from an international team, whether the dismissal was warranted. If an emergency hearing is ordered, the NBOR shall conduct the hearing and publish its results within twenty-one days. Until the NBOR makes a decision, all proceedings shall be confidential and not subject to disclosure to anyone other than the parties and witnesses. The Ethics Committee may also seek an emergency hearing. Any decision made at an emergency hearing will remain in effect pending the outcome of a full hearing before the NBOR.
- b. Any athlete seeking expedited procedures and/or an emergency hearing regarding their removal from an international team should reference the selection procedures for the international team in question for the process to file a complaint.

VIII. Pre-Hearing Matters

a. Petition

1. For matters initiated in the name of USA Swimming, the CEO shall send a petition and the results of the investigation to the NBOR Chair. For matters not initiated in the name of USA Swimming, a complaining party may submit a petition directly to the NBOR Chair.
2. Once a petition is submitted, the NBOR Chair shall have 14 days, unless there is just cause for a delay, to decide whether to assign the matter for a hearing or dismiss the complaint. If the NBOR Chair decides to assign the matter for a hearing, the NBOR Chair will empanel a hearing body and issue a Notice of Hearing.

b. Hearing Panel Composition

1. Each case submitted to the NBOR shall be assigned by the NBOR Chair to a panel consisting of members of the NBOR Committee, unless conflicts or other reasons require panel members who are not members of such Committee. The appointment of any member

- to a hearing panel who is not a member of the NBOR Committee shall be confirmed by the Board Chair and the General Counsel.
2. Each hearing panel shall consist of not fewer than three members and not more than five members, with a sufficient number of eligible athlete representatives so as to satisfy the requirement that such athletes constitute one-third of the hearing panel, to hear and decide the case. If the content of a matter before the NBOR involves governance, finance or elite athletes, the panel must be comprised of one-third 10-Year Athlete representatives. Each hearing panel will have a hearing panel Chair who shall be the NBOR Chair or a Vice Chair of the NBOR.
 3. Conflict of interest disclosure forms will be distributed to each member of the NBOR Committee annually. Additionally, when empaneling a hearing panel, the NBOR Chair will distribute a conflict of interest form to each potential panel member and the General Counsel will review the conflict of interest disclosure forms prior to empaneling members for a hearing. An alleged failure to disclose a conflict of interest will be submitted to the Ethics Committee for review under the USA Swimming Statement of Ethics and Conflict of Interest Policy.
 4. Hearing panel members and Board of Directors appeal panels shall:
 - i. Uphold the integrity and independence of the respective hearing panel;
 - ii. Avoid any impropriety or the appearance of impropriety in connection with service as a hearing panel member and swimming-related activities generally; and
 - iii. Perform the duties of a hearing panel member impartially and diligently.
 5. Hearing panel members shall recuse themselves from participating in any matter pending before their respective hearing panel:
 - i. In which their impartiality might be reasonably questioned;
 - ii. Where they have a personal bias or prejudice concerning a party in the pending matter or have personal knowledge of disputed evidentiary facts concerning the pending matter (other than knowledge obtained as a hearing panel member or known generally to a substantial portion of the membership of the respective LSC or USA Swimming);
 - iii. Where they or a member of their family are a party or are likely to be a material witness in the pending matter;
 - iv. Where they or a member of their family have an interest that could be substantially affected by the outcome of the proceeding; or
 - v. Where they or a member of their family have served or are serving as counsel in the pending matter or are members of a law firm that served or is serving as counsel in the pending matter.
 6. Hearing panel members shall recuse themselves as soon as they become aware of facts that give rise to the duty to do so by giving notice to the NBOR Chair, or in the case of the NBOR Chair or Board of Directors appeal panel members, to the General Counsel, as applicable.
 7. By written notice to the chair of the hearing panel or the General Counsel, in the case of Board of Directors appeal panel members, any party may request that a panel member recuse themselves or be disqualified from serving on the pending matter stating the reasons for recusal or disqualification with specificity. Such notice will be provided to the Ethics Committee by the chair of the hearing panel or the General Counsel. Such notice shall be given at least 14 days prior to the scheduled date of the hearing on such matter, or, if the party sustains the burden of proving good cause for the lateness of the notice, as soon as reasonably possible after discovery of the reason for the need for recusal. The named hearing panel member shall reach a decision on the matter and notify the Ethics Committee of that decision within seven days of receipt of the party's notice. If the member's decision

is not in favor of recusal, then the Ethics Committee may, if appropriate, disqualify the member from participation in the pending matter. If there is no disqualification, the hearing shall be conducted as scheduled and, unless it is a hearing before the Board of Directors, the party giving the notice may appeal the disqualification decision, together with the hearing decision.

8. In the event of a recusal or disqualification, a substitute hearing panel member shall be appointed in the same manner as the original hearing panel members were appointed.

c. Notice of Hearing

1. The NBOR Chair shall set a hearing date, which shall be not less than forty-five nor more than ninety days from the date of issuance of the Notice of Hearing. The Notice of Hearing shall include the following:
 - i. The name of the Respondent(s).
 - ii. A statement of charge, which shall be set forth in sufficient detail to give the Respondent(s) reasonable notice of the charges and the facts supporting the charges, which shall include the Petition.
 - iii. The consequences or remedy requested if a violation is determined to have occurred.
 - iv. The name of the Petitioner(s).
 - v. The date the Response is due.
 - vi. The date, time, and place (or the fact that the hearing shall be conducted by conference call) of the hearing¹¹.
 - vii. The names of the members of the NBOR Panel.
 - viii. The possible penalties.
 - ix. The right of appeal and the time limit to file for an appeal.
 - x. Any other general information, including the right to be represented by counsel or other representative, to have witnesses testify, and to submit any and all evidence which is relevant to the issues.
 - xi. A reference to USA Swimming's Conflict of Interest Policy, which is required to apply to hearing panel members per Article VIII.b.3 of this Policy.
2. The NBOR Chair shall deliver the Notice of Hearing, together with a copy of the Petition received by the CEO to the Respondent(s) and a copy of the Notice of Hearing to the Petitioner(s).

d. Response

1. The Respondent(s) shall have thirty days from the date of issuance to submit a written Response to the charges, which may include a request for dismissal based on a lack of jurisdiction or failure to state a claim on which relief can be granted. The Response shall be delivered to the NBOR Chair, the CEO, and the Petitioner(s) or their counsel.

e. Reply

1. The Petitioner(s) shall have ten days from the date of delivery of the Response to submit a written Reply. The Reply shall be delivered to the NBOR Chair, the CEO, and the Respondent(s).

f. Time Limits

1. Upon showing of good cause, the NBOR Chair may decrease or increase the time limits for any of the foregoing.

g. Pre-Hearing Matters

The NBOR Chair is empowered to issue scheduling orders regarding briefs and rule on all pre-hearing discovery motions; witness lists (and reasonable limits on the number of witnesses that may be called at the hearing), exchange of hearing exhibits and similar pre-

hearing matters, and otherwise make all procedural (including, without limitation, a request for a continuance), evidentiary, and technical decisions and rulings with respect to hearings (unless such matters arise during the hearing, in which case the hearing panel chair may make such decisions and rulings as they deem appropriate).

IX. Hearing

For hearings conducted other than through the receipt of written statements, the NBOR shall cause a recording or transcription to be made of the proceedings.

If a party provides advanced written notice that they are unavailable to attend the hearing at the scheduled time, the NBOR Chair shall reschedule the hearing at such date and time that all parties are available to attend. A hearing may proceed without a party if that party attempts to cancel a second scheduled hearing that they previously agreed to attend or if any party fails to be available at the appointed time without advance notice. However, judgement shall not be reached merely because of the person's absence. If the NBOR determines that the hearing cannot proceed without the absent party, the NBOR may adjourn the hearing and reschedule it for such time as the absent party can be present.

The hearing shall be opened by the recording of the place, time, and date of the hearing, and the presence of the NBOR panel members, parties, counsel, if any, and any other witnesses or observers.

Each party may then present an opening statement setting forth generally the party's view of the issues in dispute, the relief sought, and what they hope to prove by the presentation of evidence.

Petitioner may then present their claims, evidence, and witnesses, who shall be subject to cross-examination by the other party. Respondent may then present their claims, evidence, and witnesses, who shall also be subject to cross-examination by the other party.

Petitioner(s) may then be allowed an opportunity to rebut any testimony or evidence presented by the Respondent(s) after the presentation of Respondent(s).

For matters in which the Petitioner is seeking a lifetime ban, each party should receive 90 minutes to present its evidence. For matters in which the Petitioner is seeking a suspension for a period of years, each party should receive 60 minutes to present its evidence. In an uncontested matter (where a Respondent chooses not to participate), the Petitioner should receive 30 minutes to present a condensed version of its case. Additional time may be provided at the discretion of the hearing panel chair.

The NBOR panel may question any person at any time. The NBOR panel has the discretion to vary these procedures but shall afford all parties a full and equal opportunity to present any material or relevant evidence.

X. Decision

A decision may be rendered by the NBOR panel at the time of the hearing and reduced to writing within five days. The written decision shall be delivered to the parties within seven days after the hearing. Otherwise, the NBOR panel shall reach a decision as soon as administratively practicable (but not more than twenty-one days after the conclusion of the hearing) and shall deliver the written decision within seven days thereafter.

The written decision shall set forth the right of appeal under this policy to the Board of Directors.

XI. Stay

The NBOR shall have the authority to stay the enforcement of its decision during the time allowed for an appeal, with the decision going into effect automatically if no appeal is perfected during the allowable period.

XII. Delivery

The delivery of all Notices of Hearing to Respondent(s) and all final Decisions to the non-prevailing party(ies) shall be overnight express delivery. Delivery of all other pleadings, orders, and communications may be by electronic mail or other means, as directed by the NBOR Chair.

XIII. Appeal

Any real party in interest, including any officer of USA Swimming or the CEO, may appeal any decision of the NBOR as follows: matters heard by the NBOR pursuant to its original jurisdiction, heard *de novo*, or heard pursuant to its discretionary jurisdiction, may be appealed to the Board of Directors within thirty days of the date of the issuing of its written decision. Decisions of the Ethics Committee, under USA Swimming's Statement of Ethics and Conflict of Interest Policy, may be appealed to the Board of Directors within thirty days of the date of the issue of a written decision.

The Petition on appeal is to be served upon the CEO, as well as the other party(ies) to the NBOR proceeding, and shall be accompanied by a \$250 filing fee payable to USA Swimming. The Petition shall set forth the grounds for appeal, including both factual and legal allegations of error in any earlier proceeding.

Unless the Board of Directors by majority vote decides otherwise, the review by the Board of Directors shall be on the basis of the record and written briefs and shall not be a *de novo* hearing. The Secretary & General Counsel may establish a hearing panel consisting of at least five members (all of whom must be members of the Board of Directors and at least one-third of whom must be 10-Year Athlete representatives) to hear any appeal, including appeals heard as *de novo* hearings. The decision of the hearing panel shall be final with the same force and effect as if the full Board of Directors heard the matter.

The Board of Directors may assess fees and costs against the losing party.

For matters involving the opportunity of any amateur athlete, coach, trainer, manager, administrator, or official to participate in amateur athletic competition, upon demand of USA Swimming or any aggrieved amateur athlete, coach, trainer, manager, administrator, or official, the matter may be submitted to binding arbitration with an arbitral organization designated by the USOPC, after an appeal is heard by the Board of Directors and the Board of Directors renders its decision.

XIV. Confidentiality

Hearings conducted before the NBOR or the Board of Directors regarding alleged Code of Conduct violations shall be closed to the public.

All investigations conducted by the CEO regarding alleged Code of Conduct violations and all proceedings before the NBOR and the Board of Directors regarding alleged Code of Conduct violations shall be and remain confidential until the NBOR, or Board of Directors if an appeal is filed, has rendered its final decision, except:

- a. Information that is necessary to disclose in the course of an investigation to witnesses and other appropriate parties;
- b. Information disclosed pursuant to a subpoena or court order;
- c. Information disclosed to complaining parties or victims;
- d. Information disclosed by USA Swimming in response to disclosures by other parties or witnesses in the proceeding; and
- e. Information disclosed to law enforcement.

For the purposes of this section, a decision shall be considered final when either: (1) the NBOR has rendered its final decision and the 30-day appeal period has run without an appeal being filed; or (2) a

party has appealed the decision of the NBOR to the Board of Directors and the Board of Directors has rendered its final decision on such appeal.

USA Swimming shall also disclose information, including, but not limited to, the initiation of an NBOR proceeding and its outcome, to a member club, LSC or Zone where an employee or volunteer of such club, LSC or Zone has been alleged in a complaint to have violated the Code of Conduct.

A redacted summary of each final decision of the NBOR and Board of Directors that includes a finding of a violation of the Code of Conduct may be published at the discretion of USA Swimming.

XV. Full Faith and Credit

See Article 401 of the USA Swimming Rules & Regulations.

XVI. NBOR Special Panel Procedures

USA Swimming has instituted background screening for coaches, non-athlete members, and certain athlete members, pursuant to USA Swimming's Background Check Policy. The background screening process is designed to flag criminal background information that constitutes a violation of USA Swimming's Code of Conduct, or otherwise fails to meet the automatic qualification criteria of USA Swimming's Safe Sport Program.

USA Swimming membership is a privilege. As is set forth in Article 304.1 of the USA Swimming Rules & Regulations, the privilege of membership may be withdrawn or denied by USA Swimming at any time where USA Swimming determines that a member or prospective member's conduct is inconsistent with the mission of the organization or the best interest of the sport and those who participate in it.

The USA Swimming background check report will return a "Review – Eligible for Dispute," "Review – Eligible for Appeal" or "Pass" score. A "Review – Eligible for Dispute" score is an automatic disqualifier for membership and can only be appealed on the grounds that the negative information in the subject's report is incorrect. A "Review – Eligible for Appeal" score indicates that the report includes public record information that, if correct, may not meet membership criteria. However, such a score is not an automatic ban to membership. Instead, the applicant is required to go through the NBOR special background check panel ("NBOR Special Panel") hearing process and an NBOR Special Panel will determine if membership is appropriate and if so under what conditions.

a. Pre-Adverse Action Letter

An individual whose background screen report returns a score of "Review – Eligible for Appeal" will receive a pre-adverse action letter that provides two options:

Option #1: The individual can challenge the accuracy of the information.

Option #2: The individual can acknowledge the accuracy of the report and appeal the negative membership decision. In order to request an appeal, the individual should contact USA Swimming by sending an email to backgroundcheck@usaswimming.org. The request should include the applicant's full name, date of birth, and the Request ID in the applicant information section of the background check report.

Individuals have 15 business days to respond to the pre-adverse action letter. If the individual fails to respond to the letter within 15 business days, USA Swimming will assume that there is nothing in the background check that the individual disputes and, as a result, may take any necessary actions regarding the individual's membership status or lack thereof.

In all cases, USA Swimming reserves the right to bring a NBOR hearing on the basis of background check report information, even if an applicant withdraws from the membership process.

b. Appeal Hearings – Scheduling

USA Swimming will schedule a background check appeal hearing before the NBOR Special Panel as soon as is practical.

c. Appeal Hearings – Hearing Panel Composition

Each NBOR Special Panel shall consist of three members with a sufficient number of eligible athlete representatives to satisfy the requirement that such athletes constitute one-third of the NBOR Special Panel, to hear and decide the case. Any time the content of a matter before the NBOR involves elite athletes, the NBOR Special Panel must be comprised of 10-Year Athlete representatives. Each NBOR Special Panel will have a Chair who shall be the NBOR Chair or a Vice Chair.

When empaneling a NBOR Special Panel, the NBOR Chair will distribute a conflict of interest form to each potential panel member and the General Counsel will review the conflict of interest disclosure forms prior to empaneling members for a hearing. An alleged failure to disclose a conflict of interest will be submitted to the Ethics Committee for review under the USA Swimming Statement of Ethics and Conflict of Interest Policy.

d. Appeal Hearings – Case Disposition Information

Once a background check appeal hearing has been scheduled, the individual must provide the USA Swimming Background Check Coordinator (the “Background Check Coordinator”) with all available documentation regarding the criminal matter’s final disposition, including all documents related to any sentence, fine or conditions of probation imposed by the court. The hearing may be canceled if the individual does not provide all such documentation to the Background Check Coordinator by the stated deadline in the initial request by the Background Check Coordinator. However, if an individual fails to provide documentation by the deadline stated by the Background Check Coordinator, such that the hearing is canceled, USA Swimming may go forward with a second scheduled hearing without the documentation and ask the NBOR Special Panel to consider the lack of documentation in its finding.

e. Appeal Hearings – Notice of Hearing

The Background Check Coordinator shall set a hearing date, which shall be not more than sixty days from the date the individual requests an appeal hearing. The USA Swimming Background Check Coordinator shall prepare and distribute a Notice of Hearing, which must include the following:

- i. The name of the Respondent(s).
- ii. A statement of charge, which shall be set forth in sufficient detail to give the Respondent(s) reasonable notice of the charge(s) to be addressed.
- iii. The date, time, and conference call access information for the hearing.
- iv. The names of the members of the NBOR Special Panel.
- v. Any other general information, including the right to be represented by counsel, to have witnesses testify, and to submit any and all evidence which is relevant to the issues.

The Background Check Coordinator shall deliver the Notice of Hearing, together with Hearing Packet to the NBOR Special Panel, the individual, and USA Swimming’s designee. The Hearing Packet will contain, at a minimum, a copy of the individual’s member record, a copy of the individual’s background screen report, and a copy of available documentation regarding the criminal matter’s final disposition, including all

documents related to any sentence, fine, or conditions of probation imposed by the court, along with any additional information submitted by the individual.

f. Appeal Hearing

The NBOR Special Panel shall cause a recording or transcription to be made of the proceedings.

If the individual provides advanced written notice that they are unavailable to attend the hearing at the scheduled time, the Background Check Coordinator shall reschedule the hearing to such date and time that all parties are available to attend. However, a NBOR Special Panel hearing may proceed without the individual if the individual attempts to cancel a second scheduled hearing that they previously agreed to attend or if they fail to be available at the appointed time without advance notice. The hearing will not proceed in the absence of USA Swimming.

The hearing may proceed in the absence of a hearing panel member only in the event the individual agrees to do so. The recording from the hearing will be provided to the absent panel members for review. If the individual does not agree to do so, or if either the individual or USA Swimming is not present, the Chair of the NBOR Special Panel will adjourn the hearing and reschedule it for such time as the absent party can be present.

The hearing shall be opened by the recording of the time and date of the hearing, and the presence of the NBOR Special Panel members, parties, counsel, if any, and any other witnesses or observers. USA Swimming may then present an opening statement setting forth generally USA Swimming's view of the charges to be addressed.

The NBOR Special Panel Chair will begin by ensuring all participants are aware the hearing is being recorded, swearing in the membership applicant, and questioning the individual. Following completion of the Chair's questioning, the other NBOR Special Panel members will be afforded the opportunity to question the individual. USA Swimming will also be afforded the opportunity to question the individual. Following the completion of questioning, the individual will be allowed to present its witnesses and make any other pertinent statements.

USA Swimming will close by providing its recommendation to the NBOR Special Panel. At that time, USA Swimming the individual, along with the individual's counsel and any witnesses, will be dismissed so that the panel may deliberate.

g. Appeal Hearing – Decision

The NBOR Special Panel Chair will draft a written decision. The written decision will generally be rendered within seven business days of the hearing and will be distributed to all parties.

XVII. ADDITIONAL RESOURCES

Contact information for individual who are responsible for the Policy and enforcement of the Policy:

- Michelle Steinfeld, Secretary & General Counsel (msteinfeld@usaswimming.org)
- Derek Paul, Associate General Counsel (dpaul@usaswimming.org)

Office of the Athlete Ombuds

The USOPC Office of the Athlete Ombuds offers independent, confidential advice to elite athletes regarding their rights and responsibilities in the Olympic and Paralympic Movement, and assists athletes with a broad range of questions, disputes, complaints, and concerns.

Athlete Ombuds Confidentiality and Privacy Policy

- a. In general.—The Office of the Athlete Ombuds shall maintain as confidential any information communicated or provided to the Office of the Athlete Ombuds in confidence in any matter involving the exercise of the official duties of the Office of the Athlete Ombuds.
- b. Exception.—The Office of the Athlete Ombuds may disclose information described in subparagraph (A) as necessary to resolve or mediate a dispute, with the permission of the parties involved.
- c. Judicial and administrative proceedings.—(i) In general.—The ombudsman and the staff of the Office of the Athlete Ombuds shall not be compelled to testify or produce evidence in any judicial or administrative proceeding with respect to any matter involving the exercise of the duties of the Office of the Athlete Ombuds. (ii) Work product.—Any memorandum, work product, notes, or case file of the Office of the Athlete Ombuds—(I) shall be confidential; and (II) shall not be—(aa) subject to discovery, subpoena, or any other means of legal compulsion; or (bb) admissible as evidence in a judicial or administrative proceeding.
- d. Applicability.—The confidentiality requirements under this paragraph shall not apply to information relating to—(i) applicable federally mandated reporting requirements; (ii) a felony personally witnessed by a member of the Office of the Athlete Ombuds; (iii) a situation, communicated to the Office of the Athlete Ombuds, in which an individual is at imminent risk of serious harm; or (iv) a congressional subpoena.

Contact Information:

Phone: 719-866-5000

Email: ombudsman@usathlete.org

Website: usathlete.org

USOPC Integrity Portal

Any individual may report concerns confidentially, or anonymously, online using the USOPC Integrity Portal (<https://secure.ethicspoint.com/domain/media/en/gui/53006/index.html>). If preferred, individuals may call the USOPC Integrity Hotline at 1-877-404-9935 to report their concern over the phone

XVIII. Anti-Retaliation Statement

USA Swimming strictly prohibits any retaliation, as defined in the Whistleblower and Anti-Retaliation Policy. Reports of Prohibited Conduct, as defined in the Whistleblower and Anti-Retaliation Policy, should be made to the USA Swimming Ethics Committee, at the following email address: ethicscommittee@usaswimming.org.

XIX. Banned for Life Policy

Membership is a privilege, not a right, and members who demonstrate that they are not able to interact with children appropriately sacrifice that privilege. USA Swimming cannot be put in a position where it is required to develop, coordinate, monitor, or evaluate any type of “rehabilitation” program for members who have demonstrated that they are not able to interact with minors appropriately. NBOR panels that consider putting “rehabilitative” requirements on a member are putting an unreasonable strain on USA Swimming’s time and resources, and present potential liability issues for USA Swimming should members who have been sanctioned with any kind of “rehabilitative” requirement by a NBOR panel re-offend once they return to membership. As a result, such “rehabilitative” requirements or conditions must be avoided by NBOR panels.

The most severe penalty USA Swimming can assign is to permanently expel a member and add their name to the public list of individuals permanently suspended or ineligible. USA Swimming recognizes that sanctions imposed on members or former members cannot exceed restrictions on privileges tied to membership. For instance, USA Swimming cannot prohibit an expelled member from coaching for a non-member organization, giving private lessons, or running an unaffiliated swim camp, etc.

An individual cannot be banned for life in a specific membership category for life; a ban for life must be across all membership categories.

A ban for life is a permanent expulsion from membership. Individuals who have been banned for life and have exhausted or waived appeal opportunities do not have any recourse to subsequently request that their name be removed from the list, or request to be re-admitted for membership.

27.0 USA Swimming Coach Advisory Council Operating Policy Manual

Date of adoption / Last revision: January 27, 2024

1 Purpose

- A. The USA Swimming Coach Advisory Council ("CAC") is an operating committee reporting to the USA Swimming President & CEO or their designee.
- B. The CAC aims to ensure that all USA Swimming member coaches, from coaches with athletes at the grassroots level to those with athletes on the USA Swimming National Team level, are represented and have their voices heard in the USA Swimming governance process.
- C. The CAC shall lead, direct and represent the voice, opinions and viewpoints of all non-athlete coach members within USA Swimming.

.2 Membership

- A. GENERAL MEMBERSHIP – The CAC shall have a maximum of eighteen (18) total voting members.
- B. VOTING COACH MEMBERS – must meet the following criteria to be eligible to be elected to the CAC:
 - i. A member of USA Swimming in good standing.
 - ii. Have at least one year of governance experience within USA Swimming, such as, but not limited to Zone, LSC board or committee membership.
 - iii. Not concurrently serving as a Zone Coach Representative.
 - iv. Not concurrently serving on a USA Swimming Committee or the USA Swimming Board of Directors.
 - v. At least three (3) members from each gender shall be represented.
- C. VOTING 10-YEAR ATHLETE REPRESENTATIVES OR 10-YEAR+ ATHLETE REPRESENTATIVES
 - i. Six (6) 10-Year Athlete representatives and/or 10-Year+ Athlete representatives appointed by the Athletes' Advisory Council.
 - ii. It is preferred that such appointed members have leadership experience in a coaching role.
 - iv. The 10-Year Athlete representatives or 10-Year+ Athlete representatives shall serve a two (2) year term, not to exceed three consecutive terms.

.3 Election Procedures - The voting non-athlete coach members will be elected through a direct election which may be via a web-based election format.

A. Eligible Voters

- i. All currently registered non-athlete coach members of USA Swimming.

B. Nomination Procedure

- i. Self-Nominations must be submitted to the CAC staff leader no later than 30 days prior to election.
- ii. Self-Nominations will include a brief written statement of intent which may include any other information pertaining to the nominee's ability to serve the mission of the USA Swimming CAC.
- iii. Must be coach member in good standing at the time of nomination, as verified by USA Swimming.
- iv. Potential conflicts of interest will be handled consistent with USA Swimming's Conflict of Interest policy.

C. Slate will be published to the USA Swimming website no later than 10 days prior to election.

.4 CAC OFFICERS

- A. The officers of the CAC shall be its Chair, its Administrative Vice Chair and its Secretary.
- B. The CAC Chair shall lead and direct the voice of the CAC. The responsibilities of the CAC Chair shall be as follows:
 - i. To present and support all motions and proposals of the CAC to the appropriate USA Swimming and/or LSC committees or legislative bodies
 - ii. To conduct all meetings of the CAC, or to designate another member to conduct the meetings of the CAC.
 - iii. To call and schedule meetings of the CAC; to notify CAC members of upcoming meetings of the CAC.
 - iv. To oversee selection of seven (7) voting non-athlete coach members from the Council to the House of Delegates.
 - v. To regularly communicate with any sub-committees and working groups.
- C. Administrative Vice Chair – The CAC Administrative Vice Chair shall assist the CAC Chair in leading and directing the voice of the CAC. The responsibilities of the CAC Administrative Vice Chair shall be as follows:
 - i. In the absence of the CAC Chair, to assume the responsibilities and duties of the CAC Chair.
 - ii. To generally assist the CAC Chair in all the duties.
 - iii. To regularly communicate with the CAC sub-committee chairs and working groups.
- D. Secretary - The responsibilities of the Secretary shall be as follows:
 - i. To record minutes of all CAC meetings.
 - ii. Oversight of election proceedings in cohort with USA Swimming staff.
 - iii. Disseminate all minutes in a timely manner to all CAC members for approval.
 - v. Maintain meeting calendar.

.5 ELECTION OF OFFICERS

- A. The CAC shall elect its officers from among its voting members by majority vote at the first meeting after the CAC elections. In the event that no candidate receives a majority of votes cast, the candidates receiving the two (2) highest vote totals shall advance to a run-off election. The election of each officer position shall be facilitated by a member of the CAC not running for that position.
- B. The officers of the CAC shall be elected in the following order: Chair, Administrative Vice Chair, Secretary. CAC members must declare their intention to run for each officer position prior to the election.
- C. A member of the CAC may not hold more than one officer position simultaneously.

.6 REMOVAL OF OFFICERS OR CAC MEMBERS

- A. Any CAC coach member who has failed to attend to their official duties or responsibilities or has done so improperly may be removed from the CAC.
 - i. At least one-third (1/3) of the voting members of the CAC may recommend the removal of a coach member of the CAC by submitting a written request to the CAC Chair.
 - ii. Should one-third (1/3) or more members of the CAC call for the removal of a coach member, the CAC Chair shall call for a CAC meeting at which the removal of the coach member shall be discussed.
 - iii. At least seven (7) days written notice shall be given prior to any meeting at which action is taken on the removal of a coach member. The coach member facing removal shall be given the opportunity to respond at the meeting at which action could be taken.
 - iv. At least two-thirds (2/3) of the CAC vote shall be required to remove a coach member from the CAC.

B. The CAC may remove any coach member officer who has failed to attend to their official duties or responsibilities or has done so improperly. This action removes an CAC officer from their officer position but does not remove them from the CAC.

- i. At least one-third (1/3) of the voting members of the CAC shall recommend the removal of an officer by submitting a written request to the CAC Chair.
- ii. Should one-third (1/3) or more members of the CAC call for the removal of an officer, the CAC Chair shall call for a CAC meeting at which the removal of the officer shall be discussed.
- iii. At least seven (7) days written notice shall be given prior to any meeting at which action is taken on the removal of an officer. The officer facing removal shall be given the opportunity to respond at the meeting at which action could be taken.
- iv. A two-thirds (2/3) of the CAC vote shall be required to remove an officer from the CAC.

C. Any CAC Athlete Member who has failed to attend to their official duties or responsibilities or has done so improperly will be recommended to the AAC for removal from the CAC.

.7 VACANCIES

A. If a vacancy occurs on the CAC, a successor shall be appointed to fill the term of the vacated office using the following procedure:

- i. A vacancy in a coach member position shall be filled with an appointment made by the CAC Chair and confirmed by a majority vote of the CAC.
- ii. A vacancy in a 10-Year Athlete representative or 10-Year+ Athlete representative position shall be filled by the AAC.

B. If a vacancy occurs in a CAC officer position, a successor shall be elected by a majority vote of the CAC to fill the term of the vacated officer position.

.8 MEETINGS

A. MEETINGS – The CAC will meet at least quarterly and will usually do so virtually. In-person meetings of the CAC may be held at a location determined by the CAC Chair and USA Swimming staff. A special meeting of the CAC may be called by the CAC Chair or by one-third (1/3) of the voting membership of the CAC.

B. MEETING NOTICE – Meeting notice should be provided to all CAC members at least twenty-one (21) days prior to all in-person meetings, at least five (5) days prior to all virtual meetings. An email sent to CAC members e-mail address registered with USA Swimming listing the time, date and location of a meeting shall constitute notice.

C. QUORUM – The presence in-person or by electronic means of the majority of voting CAC members shall constitute a quorum at any meeting of the CAC. Voting by proxy shall be prohibited.

D. MINUTES – Minutes shall be taken during all meetings.

- i. The Secretary shall record a summary of the proceedings of each meeting of the CAC.
- ii. The proceedings of each meeting of the CAC sub-committees shall be recorded by a designee of the sub-committee Chair.

E. VOTING – The eighteen (18) voting members of the CAC shall have both voice and vote in all CAC matters. A majority vote of the members present is required for action, except for the removal of an officer during which at least two-thirds (2/3) of the CAC vote shall be required.

F. OPEN MEETINGS – All meetings of the CAC and associated sub-committees shall be conducted in open session except in those situations it would be in the interests of USA Swimming or the CAC to hold a closed session, as determined by a majority vote of the CAC.

Amendments

Any provision of this Policy manual may be amended by a simple majority vote.

28.0 National Team Steering Committee Policy Manual

Date of adoption / Last revision: March 31, 2021

The purpose of this manual is to document the procedures used by the Steering Committee and the National Team Division of USA Swimming.

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1. AUTHORITY OF USA SWIMMING

USA Swimming is the national governing body for swimming in the United States. USA Swimming is a member of United States Aquatic Sports (USAS), the member organization for aquatic sports to The Federation Internationale de Natation Amateur (FINA) and the United States Olympic and Paralympic Committee (USOPC). The rules of FINA, USOC and USAS may be obtained from the secretaries of the respective organizations.

The National Team Steering Committee shall operate under the direction of the National Team Managing Director to create a National Team program; expedite decisions regarding that program; and plan for specific needs of the National Team in preparation for international competition.

The Managing Director, National Team is empowered with all decision-making authority necessary for the formulation, development and implementation of the National Team program. This authority encompasses, but is not restricted to, schedule planning, team and staff selection, participation requirements, discipline, and selection criteria.

The Managing Director, National Team will work in a cooperative manner with the Steering Committee in exercising this authority. The Steering Committee shall review, comment, and endorse the report of the Managing Director, National Team.

2. NATIONAL TEAM STEERING COMMITTEE

In cooperation with the Managing Director, National Team, the Steering Committee is responsible for overseeing competition of the United States National Team at international meets and for recommending services to the National Team and National Junior Team programs. The Steering Committee, through its chair-person, reports to the USA Swimming President & CEO.

a. Functions of the Steering Committee

Under the direction of the Managing Director, National Team, the functions of the Steering Committee are:

- Endorsing selection procedures for athletes, coaches, and staff members of all National Teams, Open Water Teams, and National Junior Teams
- Endorsing the USA Swimming National Team Quadrennium Plan, developmental programs, training camps, and pre Games training

b. Membership of the Steering Committee

The Steering Committee shall be formed at the annual meeting of the House of Delegates in the year preceding the Olympic Games. The terms of the newly elected members commence on the day following the conclusion of the Olympic Games and end the last day of the following Olympic Games.

There shall be a maximum of ten members in the Committee elected or selected as follows:

- Eight coaches:
 - Preceding Head Women's Olympic Coach
 - Preceding Head Men's Olympic Coach
 - The Head Women's Coach for the two Long Course World Championships preceding the Olympic Games
 - The Head Men's Coach for the two Long Course World Championships preceding the Olympic Games
 - Two coaches appointed by the Chair of the Board in consultation with the Managing Director, National Team
- Two athletes selected by the Athletes Committee, one female/one male, both former USA National Team members
- Once the new Head Olympic Coaches are named, they shall become ex-officio members of the Steering Committee, if not already on the committee
- Ex-officio: the Chair of the Senior Development Committee, and the Chair of the Sports Medicine Committee
- Staff liaison: Managing Director, National Team

The Committee may name additional ex-officio members. The Managing Director, National Team shall be an ex-officio member of the Steering Committee without membership in the USA Swimming House of Delegates.

Any vacancies on the committee shall be filled by appointment by the President & CEO in consultation with the Managing Director, National Team.

The chair of the committee shall be elected by its voting members.

Note: The National Team Division issues proper notices for meetings; prepares agendas and Steering Committee bulletins; maintains proper records of proceedings; prepares and distributes minutes; maintains current addresses of Steering Committee members; attends to Steering Committee correspondence and reports and provides administrative services as required.

3. OPEN WATER STEERING COMMITTEE

In cooperation with the Managing Director, National Team and the National Team Steering Committee, the Open Water Steering Committee is responsible for overseeing competition of the United States Open Water National Team at international meets and for recommending services to the Open Water National Team and Open Water National Junior Team programs. The Open Water Steering Committee, through its chair-person, reports to the National Team Steering Committee and the USA Swimming President & CEO.

a. Functions of the Open Water Steering Committee

Under the direction of the Managing Director, National Team and the National Team Steering Committee, the functions of the committee are:

- Endorsing selection procedures for athletes, coaches, and staff members of all Open Water National Team and National Junior Teams
- Endorsing the USA Swimming Open Water National Team Quadrennium Plan, funding programs, training camps, and pre-Games training

b. Membership of the Open Water Steering Committee

The Open Water Steering Committee shall be formed at the annual meeting of the House of Delegates following the Olympic Games. The terms shall conclude on the last day of the following Olympic Games.

The Open Water Steering Committee shall consist of:

- Open Water Olympic Team Head Coach
- Five members appointed by the Steering Committee, in consultation with the Managing Director, National Team
- Two athletes with open water experience
- Once the new Head Open Water Olympic Coach is named, he or she shall become an ex-officio member of the Open Water Steering Committee, if not already on the committee
- Ex-Officio: Managing Director, National Team and the USA's representative on the FINA Technical Open Water Swimming Committee
- Staff liaison: Open Water Program Director

The Committee may name additional ex-officio members.

Any vacancies on the committee shall be filled by appointment by the President & CEO in consultation with the Managing Director, National Team and National Team Steering Committee.

The chair of the committee shall be elected by its voting members.

4. SPORTS MEDICINE AND SCIENCE COMMITTEE

a. Functions of the Sports Medicine and Science Committee

The Sports Medicine and Science Committee shall develop and assist in the implementation and evaluation of medical and science-based programs for USA Swimming, coordinate programming with the Age Group Development, Senior Development and Medical Committees; expedite and implement decisions regarding those programs as necessary; and support the National Team Division, the Steering Committee in all scientific and medical areas as they relate to the National Team.

b. Membership of the Sports Medicine and Science Committee

The Sports Medicine and Science Committee is composed of ten members, as follows:

- One member elected by Steering Committee
- Two members appointed by Steering Committee Chair in consultation with the Managing Director, National Team
- Five members appointed by the President & CEO of USA Swimming
- Two athletes
- Staff liaison: Athlete Services Director

The term of non-athlete members shall be staggered so that 25% of the non-athlete members are appointed annually.

The Managing Director, National Team and the Steering Committee Chair shall be non-voting, ex-officio members of the Sports Medicine and Science Committee.

The Chair of the Sports Medicine and Science Committee shall be appointed by the President & CEO in consultation with the Managing Director, National Team and the Steering Committee Chair. The Chair of the Committee shall be an ex-officio, non-voting member of the Steering Committee.

The Chair will:

- Serve as the liaison between the Steering Committee, USA Swimming, the USOC, FINA and USAS regarding medical issues and questions
- Be responsible for submitting reports covering all medical requirements for international travel
- Develop and maintain a list of qualified medical staff to accompany USA Swimming teams in international competition.

5. NATIONAL TEAMS

a. National Team Selection

The National Team, the National Open Water Team, and the National Junior Team will be named by the Managing Director, National Team. The criteria for team selection will be determined by the Managing Director, National Team and presented to the Steering Committee.

b. Representation

When a team is selected by USA Swimming for an international competition, the swimmers shall represent the United States under the direction of the Managing Director, National Team.

c. Eligibility

Registered USA Swimming swimmers, who are citizens of the United States, are eligible for international competition as representatives of the United States. Additional eligibility criteria may be noted in that event's selection procedures.

d. Notification

When a swimmer becomes eligible for selection to a U.S. team for international competition, the personal coach and the swimmer shall be notified.

6. TRIALS

The Steering Committee, under the direction of the Managing Director, National Team, shall determine the date and locations of Trials meets and set time standards and other qualifications for participation. The Trials shall be held prior to the entry deadline for the relevant competition, preferably with enough lead time for National Team Division to complete the necessary preparation for the team's departure.

There shall be no limit to the number of events a competitor may enter at Trials, provided they are qualified by time standard.

If Trials for the following events are held in conjunction with the USA Swimming National Championships, only United States citizens eligible to be selected to these teams will be allowed to compete in the championship finals from which team selections are chosen: Pan American Games, Pan Pacific Championship, World Championships, and Olympic Games Trials. Non-citizen athletes may compete in all relays, but in individual preliminary events and consolation finals only. When the selection of more than one of the above teams necessitates picking athletes from beyond 8th place in a specific event, this rule also applies to the consolation finals in that event. Finals will be seeded accordingly.

7. NATIONAL TEAM HONOR CODE

a. Purpose

The Managing Director, National Team will establish and enforce an Honor Code that will be adhered to by all athletes and staff while participating in any aspect of the National Tea/National Junior Team program. The behavior expectations and penalties for failure to comply will be clearly understood by all team members and strictly enforced by the Managing Director, National Team.

One set of guidelines will be applicable for all National Team functions.

Minimum guidelines to be presented to the team and staff immediately upon assembly of the team should include, but are not limited to:

- Curfew
- Team meeting
- Team functions
- Team uniform and dress code
- Alcohol, tobacco and controlled substances
- Duration of USA Swimming guidelines
- Part Four of the current USA Swimming Rules and Regulations related to penalties and review

b. Discussion and Acknowledgement

Immediately upon assembly of the team, the Managing Director, National Team (or their designee) shall convene a meeting of the National Team for the purpose of discussing and explaining the standards of conduct as set forth in the Honor Code. Each athlete, each staff member and any other person accompanying the team shall sign the Honor Code and agree to be bound by Honor Code without reservation.

The Managing Director, National Team, after informing the staff and team captain(s), may modify the Honor Code as the circumstances may require from time to time, and shall give reasonable notice thereof to all team members.

c. National Team Discipline Enforcement Procedure

The following procedure shall apply to any violation of the Honor Code or the USA Swimming Code of Conduct (Article 304, USA Swimming Rules & Regulations) by an athlete that occurs during a National Team trip, including any training camps conducted as part of the trip. The Managing Director, National Team shall designate the two Head Coaches and the team captains to investigate the violation. Upon completion of the investigation, the Managing Director, National Team shall decide whether to proceed with the complaint and, if so, what penalty to assess.

Where the penalty to be assessed will result in the athlete being denied the opportunity to compete, i.e. being scratched from the event and sent home:

- The athlete shall be notified of the penalty assessed, provided a copy of these procedures and notified that he/she has a right to an expedited hearing pursuant to these procedures.
- If the athlete elects to accept the penalty, the Managing Director, National Team shall enforce the penalty and no hearing shall be held. If the athlete requests a hearing, the Managing Director, National Team shall form a hearing panel of three members. The panel shall include at least one athlete member and shall not include either the investigating staff member or the Managing Director, National Team.
- The Managing Director, National Team and/or the investigating staff member, on behalf of USA Swimming, shall present the facts of the violation to the hearing panel. Both USA Swimming and the athlete shall have the opportunity to present any additional evidence considered relevant by the panel and may call witnesses. After hearing the relevant facts and testimony, the hearing panel shall determine if the athlete did in fact violate the Honor Code or USA Swimming Code of Conduct and, if so, shall assess the penalty deemed appropriate by the panel.

- The decision of the hearing panel shall be provided to the Managing Director, National Team and the athlete. The Managing Director, National Team shall be responsible for enforcing the penalty.
- This procedure shall also be followed in the case of an alleged violation of the Honor Code or the USA Swimming Code of Conduct by a coach, physician, trainer/massage therapist, manager, administrator or official that occurs during a National Team trip, including any training camps conducted as part of the trip, where the penalty is to be assessed during the trip
- If a conflict of interest occurs then the person who is involved in the conflict shall recuse themselves from the panel.

Where the penalty to be assessed will result in the athlete being denied the opportunity to compete after completion of the trip or will not result in the athlete being denied the opportunity to compete:

- The athlete shall be notified of the penalty sought and that he/she has a right to a hearing pursuant to Part Four of USA Swimming Rules and Regulations.
- If the athlete elects to accept the penalty, USA Swimming shall enforce the penalty and no hearing shall be held. If the athlete requests a hearing, the Managing Director, National Team shall send the results of the investigation, together with the penalty, to the Chairman of the National Board of Review. The Chairman of the National Board of Review shall conduct a hearing with all rights of appeal pursuant to Part Four of the USA Swimming Rules and Regulations.

At any assembly of USA Swimming athletes where the National Team Honor Code is discussed and acknowledged by signature, the policies as set forth in the section on the National Team Honor Code of the Policy Manual shall be in force.

The full National Team Honor Code can be obtained from the USA Swimming National Team Division.

29.0 Zone Directors' Council Policy Manual

Date of adoption / Last revision: April 19, 2024

MISSION STATEMENT AND PURPOSE

Serving as a connecting link in the USA Swimming Community to build awareness and trust through shared communication and education.

The ZDC shall be responsible for:

- A. providing advice to and informing the Board of issues and opportunities within the four Zones.
- B. understanding the programs and services offered by the USA Swimming;
- C. addressing the specific needs of the Zones and LSCs, in operations and planning;
- D. evaluating projects and long-term plans in all areas concerning Zones and LSCs;
- E. reporting to the members of the Board of Directors and staff of USA Swimming any issues that warrant attention from those groups; and
- F. fulfilling its duties to the four Zones by creating a connection to the governance of USA Swimming through communication, Zone policies and an understanding of the procedures of USA Swimming.

The ZDC is committed to supporting all USA Swimming members. Specifically, the ZDC will strive to support and protect the interests of all four Zones and the LSCs within. As part of this effort, the ZDC may partner with other Committees and Councils to evaluate and assist projects and conduct long-term planning in all areas concerning USA Swimming.

OPERATING PROCEDURES

A. Voting Members

- 1. The ZDC shall consist of twelve voting members.
- 2. Coach Director, Non-Coach Director, and Athlete Director from each Zone.

B. Non-Voting Members

- 1. The Junior Athlete Director from each Zone.

C. Other Designated Contributors

- 1. The ZDC requests a liaison of their choice from the following bodies to have voice but no vote:
 - i. Board of Directors
 - ii. Coach Advisory Council
 - iii. CEO or their staff designee

D. Terms of Office

- 1. Each ZDC voting member's term shall be determined by each Zone's policy and procedure regarding terms set for Zone Directors.

E. Council Co-Chairs

- 1. Each of the two Co-Chairs elected must hold a different Zone Director role (Coach, Non-Coach, Athlete).
- 2. Each Co-Chair must be from a different Zone.
- 3. The responsibilities of the Co-Chairs shall include:
 - i. To present and support all motions and proposals of the ZDC to the appropriate USA Swimming governing bodies;
 - ii. To conduct all meetings of the ZDC or appoint another member to conduct the meeting;

- iii. To schedule meetings of the ZDC and to notify the ZDC members of the upcoming meetings; and
 - iv. To follow USA Swimming's Operating Policy Manual's "Responsibilities of Committee Chair or Coordinator."
- 4. Election of Co-Chairs
 - i. The ZDC shall elect its Co-Chair(s) from among its voting members by majority vote.
 - 1. When needed, election(s) shall occur at the first meeting following the USA Swimming House of Delegates meeting.
 - a. Separate elections must take place to ensure different Zone Director roles.
 - 2. When needed, due to resignation, a special election will take place following the resignation to fill the Co-Chair position for the remainder of the term.
 - ii. Co-Chair Election will be facilitated by the ex-officio ZDC Co-Chair.
- 5. Terms of Co-Chairs
 - i. Co-Chair shall serve for the remainder of their term as a Zone Director, as determined by each Zone.

MEETINGS

- A. **Regular Meetings:** Meetings shall occur monthly virtually. It is recommended that there be at minimum one in-person meeting per year at a location determined by the ZDC Chair and USA Swimming Staff.
- B. **Attendance:** It is the expectation of the ZDC that all members will be in attendance at each meeting. In the event a member is unable to attend a meeting, notice shall be sent to Co-Chairs in advance of the meeting.
- C. **Quorum:** A majority of voting ZDC members, with each Zone represented, shall indicate a quorum. A quorum is required for a motion to pass.
- D. **Minutes:** Minutes shall be taken during all meetings. An appointed ZDC member will record a summary of proceedings of each ZDC meeting.
- E. **Voting:** The twelve (12) voting members of the ZDC shall have voice and vote in all ZDC matters.
- F. **Action Without a Meeting:** The ZDC shall allow action without a meeting to be communicated via email in between regular meetings. Action without a meeting may be taken if notice is sent to each member, and each member by the time stated in the notice either votes in writing for or against such action, abstains in writing from voting, fails to respond or vote, or fails to demand in writing that action not be taken without a meeting. The notice shall state the action to be taken, the time by which a member must respond, that failure to respond by the time stated will have the same effect as abstaining, and that failure to demand in writing by the time stated that action not be taken without a meeting will have the same effect as abstaining. The action will be taken if there are affirmative votes equal or exceed the minimum number of votes that would be necessary to take such action at a meeting.
- G. **Open Meetings/Closed Session:** All ZDC meetings shall be conducted as open sessions, except in those situations it would be of interest to USA Swimming staff or ZDC members to hold a closed session, as determined by majority vote.
- H. **Amendments:** Any provision of these Policies and Procedures may be amended at any scheduled meeting of the Zone Directors' Council by a simple majority vote.

IV. Financial Policies

30.0 Financial Policies: Controls and Procedures

Date of adoption / Last revision: November 20, 2022

USA Swimming is dedicated to ensuring that all financial operations are conducted under the highest standards of integrity and ethics and in compliance with strict internal controls to safeguard the organization's assets and provide a strong financial foundation. USA Swimming operates on a calendar year, and all financial records are maintained on an accrual basis. Please contact USA Swimming Finance Business Unit for the comprehensive "Financial Policies and Procedures" document which further outlines the below topics and areas.

FINANCIAL REPORTS

External Reports:

The Chief Financial Officer shall prepare unaudited financial statements, quarterly and annually, for the Board of Directors. Financial statements are to be prepared in compliance with generally accepted accounting principles on the accrual basis and contain budget to actual amounts and variances. Reports will be provided for and discussed at the Board meetings.

Annual Audit:

The Audit Committee will engage an independent CPA annually to conduct an audit and audited financial statements will be presented to the Board of Directors. The annual audited financial statements may either be presented for acceptance to the Board of Directors at its April/May meeting or via a Board Action Without a Meeting (if necessary to fulfill USOPC reporting requirements given the current cadence of the USA Swimming Board meetings). After acceptance, the audited financial statements are posted on the website.

BUDGET PROCESS AND APPROVAL

Budget Preparation:

All expenditures made in the name of the corporation are subject to and governed by the annual operating budget approved by the Board of Directors. An annual budget for capital expenditures is also included in the operating budget.

The initial part of the budget process begins with the staff. According to the following timetable, the Chief Financial Officer (CFO) and Finance Business Unit will work collaboratively to prepare, analyze, and review revenues and expenditures with the applicable divisions, which are then reviewed with the Chief Executive Officer (CEO). The Business Unit Leaders will work with the committee chairs, vice chairs, and department heads to determine the financial needs for existing and ongoing programs and committees. They will also prepare proposals for any new programs the committees or departments deem appropriate for the coming year.

Please reference Performance Monitoring Report 3.6 – Budget for additional management parameters and Board governance policies pertaining to financial planning.

The Role of the Vice-Chair Fiscal Oversight:

With regard to the budget process, the Vice-Chair Fiscal Oversight should be the functional liaison between the staff and the Board. The Vice-Chair Fiscal Oversight's responsibility is to work with the CEO and the CFO to assure that the product that is delivered to the Board of Directors is in proper form and prepared in accordance with the budget policy and USA Swimming's strategic quadrennial Game Plan. It is not the Vice-Chair Fiscal Oversight's function to determine appropriateness of any specific budget items. It will, however, be appropriate for the Vice-Chair Fiscal Oversight to participate fully in the review process as a member of the Board.

Budget Amendments and Review:

The budget should be approved as a living document, one with built-in flexibility. The CEO should be charged to live within the budget. This means that he/she must be ever vigilant as to overrunning any specific budget category. He/she should be looking at the whole of the divisional budgets to determine that the intent of the Board of Directors is being carried out by the expenditure of funds within the division. It is, ultimately, the CEO's responsibility to review and approve all changes in the manner in which budgeted funds are to be expended. Minor changes to the budget programs already approved should be handled administratively by the CEO. The CEO is responsible to the Board to bring the overall expenditures in at year-end within budget. For new programs adopted during the year, and previously approved programs that have been greatly expanded, the Board will consider budget amendments to adequately fund the programs. Annual deficit spending is at the sole determination of the Board.

In order to determine that funds are being spent in conformity with the budget, a quarterly budget to actual expenditures report will be provided to the Vice-Chair Fiscal Oversight, and members of the Board by the CFO. Forecasts for the current quadrennium will be prepared and updated quarterly to assist with financial planning and budget preparation.

Budget Timetable:

April - November: Budget preparation, collaboration, and analysis begins and continues to be refined and finalized for the applicable year(s). The CFO continuously reviews and analyzes with CEO, Business Unit leaders, and Vice-Chair Fiscal Oversight.

November/December BOD Meeting: Proposed Budget distributed to Board of Directors ahead of the Board meeting. Board of Directors meet to review, amend, and approve the Proposed Budget.

OPERATING RESERVES

Philosophy:

The establishment and maintenance of a funded Board-Designated Operating Reserve is a high priority. This will enable USA Swimming to support strategic business practices and to:

- Manage cash flow interruptions.
- Minimize the need for working capital borrowing.
- Meet commitments, obligations, or other contingencies.
- Generate investment income.

Policy:

The purpose of this policy is to establish and maintain a funded Board-Designated Operating Reserve, unencumbered and uncommitted, at a level relative to the annual program funding and the costs of operating and maintaining the organization.

The Operating Reserve is intended to serve a dynamic role and is available to be utilized as needed rather than being static, devoted only to generating interest income.

Definitions:

Board-Designated Operating Reserve – Amounts reported in the Unrestricted Net Assets section of the balance sheet and identified as Board-Designated Operating Reserve.

Costs of Operating and Maintaining the Organization – USA Swimming's net expenses for Program Services and Administration as reflected by the approved annual budget.

Funded Board-Designated Operating Reserve – A fund consisting of liquid assets and investments. Liquid assets are those that may be converted to cash quickly and easily. It is not required that Board-Designated Operating Reserve be physically segregated in a separate bank or investment account although USA Swimming may decide to do so.

Strategies and Procedures:

Board-Designated Operating Reserve shall be accounted for separate and apart from Undesignated Operating Funds.

The Investment Committee will have the responsibility for developing and recommending policies and guidelines for the investment of the Operating Reserve assets and the Board of Directors will approve such policies and guidelines.

The Operating Reserve goal will be to achieve and maintain at least six months of Program Funding and Operating Costs as defined in Section III.

Sources:

Assets for the **Board-Designated Operating Reserve** accounts will come from the retained earnings of the organization.

Uses:

Internal line of credit for use to financially operate the organization.

Funds to meet unfunded and unexpected organization needs.

Funds for emergency and emerging needs of subsidiaries.

Funds to make up a deficiency in budgeted revenue, either in results or collection experience.

Governance:

Depletion of the Operating Reserve will be evidenced by a negative balance in Undesignated Operating Funds. The procedure for approving use of the Operating Reserve Funds will be as follows:

By approval of the Board of Directors to fund unusual expenditures out of reserves.

By extraordinary expenses or loss of revenue and (or) investment losses. In this case, the following procedure will be followed:

The CFO will inform the Board Chair, the Vice-Chair Fiscal Oversight, and the CEO.

The Vice-Chair Fiscal Oversight will inform the Board of Directors at its next scheduled meeting.

If the Operating Reserve is and has been less than 75% of the targeted reserve level for two consecutive years, the Board of Directors, in the absence of any extraordinary circumstances, will adopt an operational budget that includes a projected surplus sufficient to rebuild the Operating Reserve Fund to its targeted reserve level over the following two years.

Maintenance:

The status of the funded **Board-Designated Operating Reserve** will be calculated (at least) at the end of each fiscal year based upon audited financial results.

Operating Reserve Ratio Calculation

The calculation formula will be based upon amounts defined in Section III as follows:

Unrestricted, Board-Designated Operating Reserve as of 12/31 = [Budgeted Annual Operating Budget] x 6/12

Example: \$19,118,295 = \$38,236,590 x 6/12

The adequacy of the Board-Designated Operating Reserve will be determined as follows:

Example:

Total Net Assets	\$31,175,406
Less: Board Designated USSIC Net Assets	<u>(\$8,956,083)</u>
Total Undesignated Net Assets	\$22,219,323

Less: Net Fixed Assets	(\$4,547,890)
Less: Prepaid Rent	(\$4,626,185)
Add: Deferred Revenue	<u>\$9,354,041</u>
Adjusted Undesignated Net Assets	\$22,399,289

Board-Designated Operating Res. (1/2 Budget)	<u>\$19,118,295</u> (above)
Excess Operating Reserve	\$3,280,994 (calc)

The Operating Reserve Ratio Calculation will be presented to the Vice-Chair Fiscal Oversight following approval of the financial audit results by the Audit Committee. The Vice-Chair Fiscal Oversight will consider the adequacy of the Operating Reserve amount and will recommend any changes as deemed necessary.

Policy Review:

This policy will be reviewed every four years by the Vice-Chair Fiscal Oversight or sooner if conditions warrant. Any changes thereto will be approved by the Board of Directors.

PURCHASING

POLICY: USA Swimming will employ sound business practices when purchasing goods and services to reduce costs and avoid conflicts of interest. Procurement of goods and services should be made by appropriate personnel and according to company guidelines. Please contact USA Swimming Finance Division for the “Financial Policies and Procedures” document which includes a Purchasing section.

COMMITTEE ACCOUNTING PROCEDURES

There shall be no separate checking accounts for projects carried out under the direction of any committee without the express authorization of the Board of Directors.

All USA Swimming funds must be received and disbursed by the Corporation.

LSC REPORTING REQUIREMENTS

Please reference the “LSC Affiliation Agreement” for all LSC financial and non-financial requirements.

LSC INSURANCE COVERAGE

Please reference the “LSC Affiliation Agreement” for all LSC insurance requirements.

AUTHORIZATIONS

Disbursement authorization (checks and electronic) is granted by the Board of Directors to the Board Chair, Vice-Chair Fiscal Oversight, CEO, and, when relevant, certain Business Unit leaders .

Number of signatures required:

Less than \$100,000 requires any one signature

\$100,000 and over requires two signatures

\$300 petty cash fund is authorized for national headquarters operation.

The “Financial Policies and Procedures” document further outlines Authorization limits and internal controls.

COACHING HONORARIA

Honoraria for coaches and speakers for age group and developmental camps/events, and coaching development, if provided for in the budget, are permitted. Honoraria for coaches for national team camps and events (e.g., Olympic Game, World Championships, Pan Pacific Championships, other international camps and competitions, preparatory camps or events for any of the preceding, etc.) are not permitted.

An allowance for incidentals for coaches on international team trips (competitions and camps) are permitted but shall not exceed \$20 per day, a portion of which may be taxable per IRS rules.

31.0 Investment Policy Statement for USA Swimming, Inc

Date of Adoption / Last revision: February 8, 2024

Please reference the USA Swimming website linked below for the organization's Investment Policy Statement.

<https://www.usaswimming.org/about-usas/governance/rules-policies>

32.0 USA Swimming Travel Policy and Expense Reimbursement

Date of adoption / Last revision: Revised February 28, 2022

Purpose:

This policy outlines expenses that are reimbursable on behalf of those traveling for USA Swimming and USA Swimming Foundation ("USA Swimming") business.

Policy Statement:

The travel policy objective of USA Swimming is to provide for the safety and well-being of the staff, volunteers, contractors, and athletes while traveling on behalf of the organization, while ensuring that reasonable cost management is enforced.

While this policy contains suggested expense limits, we expect all travelers to use sound reasoning and professional judgement when incurring expenses on behalf of the organization. As a non-profit organization, we have a fiduciary responsibility to spend conservatively and to avoid the appearance of extravagance. In general, excessive spending, upgrades, luxurious, or extravagant purchases (as determined by the CFO) will not be reimbursed.

Business expenses must be appropriate, reasonable, customary, and necessary.

USA Swimming recognizes that in some instances, unique business-travel-related expenses not addressed in this policy might be incurred. These will be reviewed on a case-by-case basis and approval (in advance, when possible) for these types of expenses must be obtained from the CFO. All comments or requests for interpretation of this policy should be directed to the CFO or Director of Accounting.

General Information

1. *Applicability*

This policy applies to all employees, volunteers, contractors, coaches, athletes and others (collectively defined as travelers) requested by management to incur expenses on behalf of USA Swimming. Approvers are responsible and will be held accountable to review and approve expenses in accordance with this policy.

2. *Reporting*

Itemized receipts will be required for all reimbursed expenses. Credit card receipt proof of payment will NOT be accepted as the sole form of receipt. All reimbursed expenses require a business purpose be documented. Expense reports need to be processed within 10 days (staff) and 60 days (volunteers & athletes). Expense reports that are not processed within 60 days may result in non-reimbursement from USA Swimming.

3. *Exceptions to Policy*

Requests for exceptions to this policy will require approval from the Business Unit Leader. Approval should be submitted at time of booking to the travel agent or included in Concur. Policy exceptions can be made to reasonably accommodate all USA Swimming Travelers with disabilities.

Air Travel

1. Use of Travel Agent/Concur Online Booking Tool

All air travel will be booked utilizing the USA Swimming's online booking tool (Concur) or through the USA Swimming designated travel agency. To maximize cost savings, every effort should be made to book travel at least 21 days in advance when possible.

2. Airline Carriers

USA Swimming is participating in the United Airlines "United Pass Plus" program, allowing for discounted rates. However, travelers may book with any carrier providing the fare is cost effective.

3. Class of Service

Lowest logical fare (defined as lowest coach class airfare at time of booking, in consideration of business schedule) will be utilized for all travel. First class/business class can only be booked at the traveler's expense. Any other fare class must be preapproved by a Strategy Team member and CFO.

4. Frequent Flyer/Traveler Loyalty Programs and Preferred Seating

Benefits accrued from frequent flyer and other traveler loyalty programs may be retained and used by the individual traveler.

5. Upgrades

Costs associated with domestic (including Hawaii & Alaska) upgrades are the responsibility of the traveler. For information associated with international flights, see Appendix II.

6. Personal Flights

When personal travel is included with a USA Swimming itinerary, the additional cost of the personal travel will be paid directly to Finance by the traveler before the ticket can be issued. Fares that result in a savings to USA Swimming will not be reimbursed to the traveler. The proposed itinerary including business and personal travel is compared to the lowest available coach class round-trip fare (determined prior to travel) for determining personal cost. Companion travel should never dictate business travel. Business travel should be booked first and companion travel should be booked to the business travel.

7. Unused Tickets

Travelers are expected to exchange unused tickets for future travel.

8. Travel Changes and Cancellation

If a flight needs to be cancelled or changed, it is the responsibility of the traveler to cancel the reservation prior to travel by contacting the USA Swimming designated travel agency, Concur, or airline. The traveler may be responsible for cancellation or change fees if incurred for personal reasons. Please be cognizant of excessive change fees.

9. Reimbursements for Airfare Purchased Outside USA Swimming

In the event a circumstance occurs where airfare must be purchased outside of Concur or USA Swimming's travel agency, reimbursements will only be approved up to the cost of airfare that USA Swimming could have provided for the same travel (based on 21-day advance booking).

Ground Transportation

The most cost-effective, safe, and efficient ground transportation should be used.

1. Rental Cars

USA Swimming's preferred vendor is National/Enterprise and should be utilized when a car rental is needed. When traveling with a group, rental cars should be shared to minimize costs. When renting a car for domestic travel, travelers should not accept offered rental insurance as USA Swimming has coverage.

When renting a car for international travel, travelers should accept offered rental insurance.

Every effort should be made to refuel rental vehicles before returning to the rental agency to avoid high fuel surcharges.

2. Airport Parking

Economy level airport parking should be utilized. Reimbursement for garage parking at Denver International Airport will not be reimbursed for stays in excess of two nights unless preapproved by applicable Strategy Team member.

3. Business Use of Personal Vehicle

Travelers must have a valid driver's license and have insurance in compliance with all state laws. Mileage is reimbursed at the rate established by the IRS. This mileage allowance is in lieu of actual expenses for gasoline, oil, repairs, and depreciation. Utilization of a personal vehicle in lieu of flights will be reimbursed at the mileage rate established by IRS and may not exceed the costs associated with a roundtrip airfare (determined by cost booked at least 21 days prior to departure).

USA Swimming is not responsible for any theft or damage to vehicles or other personal property while a personal car is being used for a business purpose.

4. Other

Ride share services, airport shuttles, taxi, Uber, and Lyft services are allowable methods of ground transportation. Tolls, ferries, and parking expenses incurred are reimbursable. Parking tickets, moving violations, fines, penalties, towing charges, accidents and theft losses are not reimbursable.

Lodging

1. Hotels

USA Swimming's preferred vendor, Bonvoy (Marriott/Sheraton Properties) must be utilized when a hotel stay is necessary. Other arrangements can be made when Bonvoy hotels are more expensive and/or are not available.

2. Groups

Groups of ten or more people are booked by USA Swimming staff through the Marriott group agent.

3. Receipt Requirement

All individuals on USA Swimming business are required to itemize all hotel costs, such as: room cost, applicable taxes, internet service, parking, and meals.

4. Cancellations

Travelers are responsible for reviewing and adhering to hotel cancellation policies at the time of booking. No-shows or late cancellation charges are the responsibility of the traveler unless caused by circumstances beyond traveler's control.

Other Travel Considerations

1. Per Diem

Staff – USA Swimming will provide employees a per diem allowance to defray a portion of meal costs. The daily rate for per diem must be prorated for partial days and reduced if meals are

provided by USA Swimming or its affiliates (Sponsors, LSCs, coaches, etc.) Staff are encouraged to take advantage of on-site hospitality at events and breakfasts/meals provided at hotels. Where groups of staff dine together, the Senior-most staff member in attendance should pay for the meal. Again, per diem should be adjusted (excluded) for those meals. For domestic travel, USA Swimming follows current IRS regulations for per diem reimbursements utilizing the High-Low method for different cities within the contiguous United States. These rates are circulated, annually, and copies can be obtained from Finance. For Hawaii, Alaska, and international cities, USA Swimming provides 70% of the published IRS rates for those locations. International rates begin upon arrival in the foreign country and end upon departure from the foreign country. "High" domestic rates are used for all cities in Canada and Mexico.

- When it is necessary for a staff member to travel for the day (doesn't involve overnight stay), the staff member may not submit for per diem related to incidentals or breakfast but may submit for lunch per diem and dinner per diem if required to work after 7:00 p.m.
- Incidentals are included as a portion of daily per diem and is defined by IRS as fees & tips to porters, baggage carriers, and hotel staff, and fees for carts. Reimbursements for these items will not be granted.

Volunteers, Contractors, Athletes – Per diem may be provided at flat dollar amounts not to exceed \$50 per day for actual meeting/event dates (not to include travel days). No per diem is provided for travel days and no deductions will be calculated for meals provided by USA Swimming. Program managers can continue providing flat dollar amounts that are less than the \$50 per day based on their budgetary needs.

2. **Business Meeting Meals**

Business meeting meals and entertainment are allowable when meeting with business associates, the meeting took place where active business was conducted, and had a specific business purpose that clearly benefited the mission of USA Swimming. Documentation of business purpose and attendees are required.

3. **Passport, Visas, Expedited Security Enrollments, and Immunizations – Staff Only**

Swimming employees will be reimbursed for all costs associated with international travel such as passport fees, passport photos, visa applications, immunizations (when applicable) and COVID testing (when required).

TSA Pre-check or Global Entry enrollment fees are a reimbursable expense for staff who take five or more business trips per year.

Other Reimbursable Expenses

Additional expenses which qualify for reimbursement or direct payment by USA Swimming include:

- Airline baggage fees
- Business-related internet charges
- Changes to existing travel itineraries with Business Unit Leader approval
- Laundry when on a trip of more than 7 days

Non-Reimbursable Expenses

Examples of expenses that are not considered business costs include, but are not limited to:

- Amounts spent in excess of those considered reasonable

- Airline Club membership dues
- Cash value (perceived) of free-fare tickets or those booked with miles or free-certificates
- Childcare
- Costs for personal guests
- Damages incurred to any form of lodging rental accommodations
- Fines or fees related to credit cards, bank fees, or late fees – including annual fees
- Health spa services – massage services
- Incidentals for fees and tips given to porters, baggage carriers, and hotel staff. These incidentals are provided under the daily per diem amounts
- Movies (in-room or in-flight)
- Parking tickets, traffic fines and penalties, towing charges, accidents and theft losses
- Pet care
- Personal membership dues (including airport parking membership)
- Personal travel expenses: medical items, sundries and recreational reading, Advil, gum, candy, magazines and newspapers
- Purchase of alcohol on flights

Travel Policy Quick Guide		
Air travel	• Concur/USA Swimming Travel Agency Bookings Only • United Airlines offers discounted rates through contracted United Pass Plus program • May book any carrier providing the fare is cost effective • Lowest Available Economy Class Airfare • Book at least 21 days in advance • Costs Associated with upgrades are the responsibility of the traveler	TRANSPORTATION
Rental Car	• Utilize ride share services where available to include airport shuttles, taxis, etc. • Enterprise/National is preferred vendor • USA Swimming provides insurance for all domestic rentals • Purchase insurance through agency when traveling internationally	
Personal Use of Automobile	• Mileage is reimbursable at the IRS rate when personal car is used • Mileage should not exceed cost of round-trip airfare • Traveler provides insurance	
Tolls & Parking Fees	• Economy level airport parking should be utilized • No reimbursements for garage parking for travel in excess of two nights unless preapproved by Strategy Team member	
Hotels	• Refundable room rate should always be used when booking • Bonvoy hotel chain is preferred vendor • Groups should be booked through agent	HOTELS

Per Diem	• Staff utilize IRS High-Low method – See Finance for current rates • Volunteers, Contractors, Coaches & Athletes – Flat dollar amounts not to exceed \$50 per day (no per diem for travel days)
Travel & Business Meeting Meals	• Itemized receipts required for all meals – credit card summary receipts are NOT acceptable • Business purpose and attendees are required for all meals • Per Diem for staff should be adjusted by any meals paid by USA Swimming
Expense Reports	• Staff must submit within 10 days of travel • Volunteers, Contractors, Coaches and Athletes must submit within 60 days of travel

APPENDIX I

Enterprise/National Rental Cars

Enterprise/National is USA Swimming's preferred car rental company and should be utilized whenever a rental car is necessary.

Insurance Coverage in the United States

When USA Swimming contracted car rental rates are booked with Enterprise or National (Account Number XZ12940) and the rented vehicles are used in accordance with the executed agreement, the negotiated pricing includes collision damage waiver with a \$0 dollar deductible and liability limits of \$100,000/\$300,000/\$50,000.

Insurance Coverage Outside the United States

Should renting a car internationally be required and advantageous to USA Swimming, it is recommended that the traveler should accept the additional collision and liability insurance (LDW/CDW) offered by car rental agencies.

Insurance Coverage if car rental is not through Enterprise/National

When USA Swimming contracted car rental rates are booked with other companies, and the rented vehicles are used in accordance with the executed rental agreement (coverage applies if rental is clearly business related and that there is no deviation from the business purpose – no personal use), USA Swimming's insurance policy provides protection for bodily injury, death or property damage up to \$1,000,000. Damage to the rental vehicle is provided subject to a \$1,000 deductible. The State Auto policy provides a \$1,000,000 limit of liability coverage over any coverage provided by the rental agency. Insurance identification cards are available through USA Swimming's Director of Risk Management.

In the event of an accident and or damage

- Report the accident to local authorities and obtain a copy of the police report.
- Contact the rental company and complete an accident report (this does not apply for personal/private car accident).

- If possible, take pictures of the damage to the vehicles involved in the accident (using mobile phone camera if available) and exchange accident/insurance information.
- Contact USA Swimming as soon as possible via email or phone to riskmanagement@usaswimming.org (719.866.4578), State Auto Insurance Companies (303.951.5866) and james.gauss@ioausa.com (407.998.4274).

APPENDIX II

Team Travel

To provide added comfort, athletes who are members of the current year National Team and are attending an Operation Gold international event may book preferred seating (Economy Plus) or where appropriate an upgradable ticket taking into consideration best fares/alternatives for athlete and USA Swimming. This policy is not in addition to the preferred carrier policy.

Confirmed seats are required for all athletes, coaches, and staff.

All athletes, coaches, and staff (in that order) should be in window or aisle seats if they are available. If only middle economy plus seats are available, the USA Swimming travel agent will consult with the program manager.

Economy plus seating (or its equivalent) will be purchased for athletes, coaches, and staff (in that order) for all international flights. It will also be purchased for any domestic flights exceeding four hours prior to an international connection flight. Return economy plus seating will be at the discretion of the program manager.

USA Swimming will purchase upgradable fares for pool athletes with a top 8 world ranking and open water athletes competing in the 10k event for operation gold competitions providing athletes the ability to upgrade to business class seats using grants or personal funds. Athletes must submit credit card information prior to booking the business class seat. If they plan to use a grant, they will be reimbursed.

Baggage

When traveling internationally, USA Swimming will reimburse the cost of extra baggage fees, not to exceed two standard bags. USA Swimming will not reimburse fees for oversized and/or overweight bags, unless the athlete, coach, or staff member was asked to carry items for the team.

Group Air Travel

For group or team travel, the program manager, in coordination with the USA Swimming travel agent, can establish point(s) of assembly or routing options designed to facilitate the efficiency of group travel.

Whether to use a block will be determined by the program manager, in coordination with the USA Swimming travel agent, based on the number of participants, time of booking, travel dates, and flight availability.

Charter Flights

Where teams are moving from one location to another as a team, charter flights may be considered and utilized. Charters may be considered if a location is difficult to travel to or if flight times on commercial airlines are not beneficial to performance. Charter flights should be researched and negotiated with multiple providers.

Leadership Team

Members of the USA Swimming Strategy Team or other approved travelers are subject to the rules outlined in the Travel Policy, with the following exception:

Within reason, may fly business class on international flights where there is an overnight flight leg and/or meeting following day of flight and is limited to a maximum of \$1,000 each direction.

Staff Only

Failure to follow the above Travel Policy may result in disciplinary action up to and including termination of employment.

V. Club, LSC, and Zone Policies

33.0 Requirements for New Club Membership

Date of adoption / Last revision: February 21, 2025

USA Swimming offers two classes of membership: (1) group members, including clubs, seasonal clubs, and organizations; and (2) individual members, including athletes, coaches, officials, and other non-athletes. Outlined below in Section I are the requirements for new clubs. Seasonal clubs and college/university clubs are subject to separate requirements, found in Section II.

I. New Club Requirements. New clubs must complete the following as part of the application process.

A) Coordinate with the LSC Registrar on the following:

- Confirmation of club name and club code.
- Confirmation of education requirements.
 - A key component of the new club requirements is coach membership and education. All Coach members working for a USA Swimming member club must complete the requirements found on USA Swimming's website [here](#). This does not include employees who do not coach USA Swimming athlete members, i.e., Masters and Learn-to-Swim.
 - Additionally, Head Coaches (defined below) of new clubs must meet the specified education requirements, which include completion of:
 - Welcome to USA Swimming.
 - Quality Coaching Framework.
 - Core Certification – Full Course.
 - Club Leadership and Business Management School (CLBMS). For more information see Section I.B.
- Confirmation of experience requirements.
 - There are three options to be considered a Head Coach for the purposes of this document.
 1. An individual must have a minimum of four years of head swim coach experience at a USA Swimming club. Provisional Coach and Junior Coach members cannot be Head Coaches.
 2. Alternatively, in calculating the required four years of experience, USA Swimming may accept head swim coach experience gained while coaching a YMCA team, a college/university program, or other comparable institution that owns a club team (e.g., school district, parks and recreation department, Boys & Girls Club of America, private club, military, a Jewish Community Center, etc.). High school and summer league coaching experience does not qualify as relevant experience for this section.
 - At its sole discretion, USA Swimming may require additional education based on the coach's experience. For example, if the coach has been a head coach for four or more years at a YMCA, USA Swimming may still require them to take courses within USA Swimming University.
 3. Alternatively, a coach may request to be considered a Head Coach by proving a minimum of two consecutive years of swim coaching experience, in addition to the completion of the following within USA Swimming University:
 - American Development Model – Age Group or Senior.
 - Head Coach Certification (Bronze Level).
 - Two Legacy Coaching Courses – Jon Urbanchek and one of choice.

- B) For each new club, the Head Coach and one Key Leader (non-athlete adult member) must complete the CLBMS 101 online course. For the purposes of this document, “Key Leader” is defined as the individual listed alongside the Head Coach for each new club type. The new club type listed below corresponds to the same notations in Section I.E).
- (i) Board Governed – Head Coach and Board President (or Board President’s designee).
 - (ii) Privately Owned – Head Coach and member Club’s owner (if not the same person as the Head Coach). If the Head Coach is the member Club’s owner, the second participant is designated by the Head Coach.
 - (iii) Institutionally Owned – Head Coach and their supervisor (or supervisor’s designee).
- C) Establish a legal identity that matches (or is similar) to the Club name and obtain an Employer Identification Number (EIN). Please consult a local attorney or CPA for advice on setting up your legal entity in compliance with federal, state, or local laws.
- D) USA Swimming Bylaw 2.6.5(B) requires non-athlete membership in USA Swimming for all individuals serving on the boards of directors of Club members. All Club members must comply with this requirement at all times as a condition of membership in USA Swimming.
- E) According to USA Swimming Bylaw 2.6.11, Club members must have one of the following structures:
- (i) at least one member Coach and a board of directors or other governing board; or
 - (ii) at least two member Coaches in good standing; or
 - (iii) at least one member Coach in good standing and affiliation with an institution recognized by USA Swimming (note: facility use of such institutions for meets and/or practices is not sufficient to meet that requirement).

The following items must be completed and uploaded as part of the online SWIMS application.

- F) A strategic plan, which includes:
- Team overview (narrative summary of your program – who, where, why).
 - Mission statement/vision statement.
 - Marketing description/overview.
 - The marketing description/overview must include a statement confirming that the applicant understands and agrees to abide by USA Swimming’s Code of Conduct, including Article 304.3.11, which prohibits:
“Action, other than through general advertising, by a coach, owner, officer, volunteer, representative, or employee of a swim club, or a USA Swimming or LSC employee, either through direct contact with an athlete or the encouragement of others, to recruit or otherwise encourage an athlete who is already a member of a USA Swimming member swim club to leave that club, unless the acting party receives prior written approval to recruit or encourage the athlete to change affiliation from the designated club representative of the athlete’s existing USA Swimming-member swim club or contact is initiated by the athlete, the athlete’s parent or authorized representative.”
 - Success metrics/key performance indicators.
 - Head Coach resume.
 - Key Leader’s relative experience or resume.
 - First-year budget.

- G) An emergency action plan (EAP) along with the Club member's safety action plan (SAP) for each facility the team will use.
 - The EAP is the facility's document outlining how various types of emergencies are handled and assigns roles to specific facility personnel.
 - The Club member should also develop an SAP for the roles its personnel will play in the facility's EAP during an emergency.
- H) A team handbook to include:
 - [MAAPP Policy](#) – may use USA Swimming template.
 - [Codes of conduct](#) for:
 - Athletes
 - Parents
 - Staff
 - [Bullying policy](#).
 - [Photography policy](#).
 - Media Waiver – must create your own.
- I) A signed facility contract or the [Facility Use Confirmation Form](#) (for each facility to be used by the team).
- J) Once the application materials are submitted to USA Swimming, staff will review the documents. If any further steps are required, the applicant will be notified. After all documentation is completed, a staff member will conduct an interview with the Head Coach and key personnel as needed and will approve the application if all requirements are met. If approved, both the applicant and the LSC will be notified.
- K) Once final approval has been granted, the applicant must pay the LSC fee and USA Swimming fee online to become a registered Club member.

II. Seasonal Club and College/University Club Requirements. Seasonal clubs or college/university clubs must minimally complete the following steps as part of the application process. Seasonal clubs are a sub-category of group membership defined in USA Swimming Bylaw 2.3.1(B). A college/university club, as used here, encompasses a distinct set of year-round USA Swimming member Clubs associated with a college/university. College/university clubs do not have athlete members who are minors unless they are enrolled in the associated college or university and a member of the college/university's swim team. USA Swimming has the exclusive authority to determine if a club is eligible for this classification.

- A) Coordinate with the LSC Registrar on the following:
 - Confirmation of club name and club code.
 - Fulfill all Coach membership requirements, including [USA Swimming coach education](#).
 - Head Coaches of new seasonal clubs must meet the specified education requirements, including completion of:
 - Welcome to USA Swimming.
 - Quality Coaching Framework.
 - Core Certification – Full Course.
 - Recommendation of ADM Age Group.
- B) Establish a legal identity that matches (or is similar to) the club name and obtain an EIN.

- Universities can use the school's EIN.
- C) A signed facility contract or the [Facility Use Confirmation Form](#) (for each facility to be used by the team).
- D) Submit an EAP along with the club's SAP for each facility the team will use.
- The EAP is the facility's document outlining how various types of emergencies are handled and assigns roles to specific facility personnel.
 - The club should also develop an SAP for the roles its personnel will play in the facility's EAP in an emergency

By beginning and completing the new club application, the applicant acknowledges that they will comply with all USA Swimming rules, policies, procedures, codes of conduct, and regulations, and all federal, state, and local laws at all times.

34.0 Officials Certification Standards for Utilization by LSC Officials

Date of adoption / Last revision: April 19, 2024

The following standards have been established to provide a clear and uniform path for members who wish to become officials at the local level and enable LSCs to develop and conduct programs to recruit, certify, educate, train, and mentor USA Swimming officials and to provide competent and consistent officiating for our athletes. Furthermore, LSCs are required to implement these standards beginning February 1, 2024. Additionally, all LSCs are required to recognize the certified status of visiting and transferring officials from other LSCs.

The standards are being implemented expressly to facilitate the ability of officials to officiate in LSCs other than the one they received their certification. Additionally, these standards are intended to:

- Ensure a clear and consistent knowledge of the rules.
- Provide sufficient time in training to assure familiarity with all levels of competition.
- Provide opportunity to work on the deck and advance through the certification process.
- Allow automatic acceptance of officials' certifications between all LSCs.
- Ensure professionalism and teamwork while in attendance at a swim event both on and off the deck.

Any LSC official that holds an LSC certification as of 2/1/2024 will be grandfathered into that certification without additional training.

For the positions of Stroke & Turn and Starter, members who have five (5) plus years of USA Swimming as a 13 & Over athlete or coach member need only complete half of the on-deck apprentice requirements provided they show competency in the position, at the discretion of the LSC Officials' Chair (LSC OC) or designee. An athlete or coach may not officiate at a session in which they are competing or coaching.

In the event it is believed that an official has not shown the necessary competency in the position after completion of

the required training and apprentice sessions, the LSC OC, or designee, shall provide the official with a written action plan of the steps needed to successfully obtain certification. Written notice shall be provided to the official within two (2) weeks of the last apprentice session (or submission of the appropriate documents to the Certifier), and a copy shall be provided to the LSC OC. An apprentice may always request additional training.

Defined Terms: The following terms are specifically defined herein for the exclusive use of this document. Nothing in this Defined Terms section is intended to define any of these terms for any purpose outside of the Certification and training of USA Swimming Officials.

Certifier: An official designated by the LSC OC to certify training is complete and who shall record it in Officials Tracking System (OTS).

Clinic: Formal in person or online training clinic, recorded in OTS. Current LSC training curriculum will stay in place until USA Swimming Online Certification Training is available. When USA Swimming training curriculum is available, then that will be the required training.

Certification: The act of certifying. An official must meet certain requirements to be certified in a particular position.

Qualified Recertification Session: Qualified Recertification Sessions are Sessions officiated by certified officials which count towards the Recertification requirements listed in this document. In order for a Session to count as a Qualified Recertification Session, it must meet the following criteria: 1) the Session must include strokes and/or medley relays; 2) the Session must not be a Time Trial; 3) the Session must not contain only freestyle events, even if including both individual freestyle events and freestyle relays; 4) the Session must occur at a competition which is either a Sanctioned USA Swimming meet, a YMCA meet for which an LSC has issued an approval (as defined in USA Swimming Rule 202.6), or, an NCAA National or Conference Championship competition; provided, however only 25% of an official's total required Qualified Recertification Sessions will count for officiating at an NCAA National or Conference Championship competitions.

Satisfactory Performance: Demonstrates the requisite knowledge of the applicable rules and satisfactorily performs the on-deck protocols and duties for the position. Deficiencies must be provided by LSC OC, or designee, in writing to the affected official with an Action Plan to success.

Session: Any portion of a meet distinctly separated from other portions by locale, time, or type of competition, i.e., preliminaries and finals; morning and evening; Senior or Age Group, etc.. All Sessions at Sanctioned USA Swimming competitions and YMCA meets for which an LSC has issued an approval (as defined in USA Swimming Rule 202.6) shall be recorded into OTS by the granting LSC's Officials' Chair or their designee. Sessions from other types of meets may be entered into OTS at the discretion of the LSC, strictly for tracking purposes.

Trainer: An official designated by the Referee at a meet, or the LSC OC, who has been certified in the position for at least one (1) year. If an official meeting the one (1) year requirement is not on deck, the Referee may select the most experienced certified official(s) to be a Trainer(s).

Training Sessions: Training Sessions are Sessions which count towards the Education and Training requirements listed in this document. In order for a Session to count as a Training Session, it must meet the following criteria: 1) the Session must include strokes and/or medley relays; 2) the Session must not be a Time Trial; 3) the Session must not contain only freestyle events, even if including both individual freestyle events and freestyle relays; 4) the Session must occur at a competition which is either a Sanctioned USA Swimming meet or a YMCA meet for which an LSC has issued an approval (as defined in USA Swimming Rule 202.6). An LSC may designate that their LSC Championships meets are expressly excluded as Training Sessions.

USA Swimming Membership: Completed all USAS member associated requirements before being certified in any position.

Online Testing:

- A certification test with a score of 80% or greater is required.
- A recertification test with a score of 80% or greater is required every three years:

- The Stroke and Turn recertification test recertifies Stroke & Turn Judge and Chief Judge (if held).
- The Starter recertification test recertifies Starter and Stroke & Turn Judge.
- The Referee recertification test recertifies Referee, Administrative Official, Starter, Chief Judge (if held), and Stroke & Turn Judge.
- The Administrative Official recertification test recertifies Administrative Official.

Recertification:

- The Stroke & Turn recertification procedures recertify Stroke & Turn Judge LSC certification.
- The Chief Judge recertification procedures recertify Chief Judge and Stroke & Turn LSC certifications.
- The Starter recertification procedures recertify Starter and Stroke & Turn Judge LSC certifications.
- The Administrative Official recertification procedures recertify Administrative Official LSC certification.
- The Referee recertification procedures recertify Referee, Administrative Official, Starter, Chief Judge (if held), and Stroke & Turn Judge LSC certifications.

Certification Expirations and Recertification Timelines:

- To remain continuously certified, officials must meet the Recertification requirements prior to their certification expiration date.
- The certification expiration date for officials shall be:
 - The December 31st two years after the year of certification if the certification occurred between January 1st and June 30th of the year of certification.
 - December 31st three years after the year of certification if the certification occurred between July 1st and December 31st of the year of certification.

TIMER (Minimum Age 11)	
Education & Training	None except pre-meet briefing. Performance monitored by Chief Timer and/or Referee during meet.
Evaluation & Certification	No evaluation or certification required.
Renewal	Based on Satisfactory Performance.
STROKE & TURN Junior Official (Age 16-17) effective 9/01/2024	
Education & Training	Member of USA Swimming. Attend Stroke & Turn Clinic training. Pass USA Swimming Stroke & Turn Judge certification test. Apprentice a minimum of four (4) Training Sessions total over two (2) different meets with a Trainer (<i>cannot make a disqualification during those apprentice Sessions.</i>) Satisfactory Performance.

Evaluation Certification	&	Apprenticeship signed off by a Certifier. Must complete certification within one (1) year from the month of Clinic. May officiate in competitions below LSC Championships for 12&U athletes.
Recertification every 3 years		When a Jr Official turns eighteen (18), their Jr. ST certification will convert to certified ST once the adult membership requirements have been met. Time as a Jr ST official will convert to the S&T renewal cycle.
STROKE & TURN (Minimum Age 18)		
Education & Training		Member of USA Swimming. Attend Stroke & Turn Clinic training. Pass USA Swimming Stroke & Turn Judge certification test. Apprentice a minimum of four (4) Training Sessions total over two (2) different meets with a Trainer (<i>cannot make a disqualification during those apprentice Sessions</i>). Satisfactory Performance.
Evaluation Certification	&	Apprenticeship signed off by a Certifier. Must complete Certification within one (1) year from the month of Clinic. May officiate in any LSC meet.
Recertification every 3 years		Worked a minimum of eight (8) Qualified Recertification Sessions, within a three (3) year period, at a minimum of two (2) different meets in Stroke & Turn or higher capacity. Attend Clinic every three (3) years. Pass USA Swimming recertification test every three (3) years for the highest certification held. Satisfactory Performance.
Comment		Once a person is certified as a stroke and turn official, they are encouraged to participate in as many meets as they can to gain experience and knowledge. This will allow those running meets to have greater confidence in their ability to officiate at meets of various levels.
STARTER (Minimum Age 18)		
Education & Training		Member of USA Swimming. Attend Starter Clinic training. Certified Stroke & Turn Judge for minimum of three (3) months; worked at least four (4) Sessions at a minimum of two (2) meets since Stroke & Turn certification. Pass USA Swimming Starter certification test.

		Apprentice as Starter for at least four (4) Training Sessions total, over two (2) meets with two (2) Trainers. Trainer can be the Deck Referee. Satisfactory Performance.
Evaluation Certification	&	Apprenticeship signed off by a Certifier. Must complete Certification within one (1) year from the month of Clinic. May officiate in any LSC meet.
Recertification every 3 years		Worked eight (8) Qualified Recertification Sessions, within a three (3) year period, as Starter. Attend Clinic (recommend Starter) every three (3) years. Pass USA Swimming recertification test every three (3) years for the highest certification held. Satisfactory Performance.
Comment		Once a person is certified as a starter, they are encouraged to participate in as many meets as they can to gain experience and knowledge. This will allow those running meets to have greater confidence in their ability to be a starter at meets of various levels.

ADMINISTRATIVE OFFICIAL (Minimum Age 18)		
Education & Training:		Member of USA Swimming. Attend AO Clinic training. Pass USA Swimming Administrative Official certification test. Apprentice as an Administrative Official for at least four (4) Training Sessions over two (2) meets with a Trainer(s). Satisfactory Performance.
Evaluation Certification	&	Apprenticeship signed off by a Certifier. Must complete Certification within one (1) year from the month of Clinic. May officiate in any AO role at any meet.
Recertification every 3 years		Worked at least eight (8) Qualified Recertification Sessions, within a three (3) year period, as an AO, or in a role identified under 102.14.1A-D. Attend Clinic (recommend AO Clinic) training every three (3) years. Pass USA Swimming Administrative Official recertification test. Satisfactory Performance as AO.
Comment		Once a person is certified as an AO, they are encouraged to participate in as many meets as they can to gain experience and knowledge. This will allow

	those running meets to have greater confidence in their ability to be an AO at meets of various levels.
REFEREE (Minimum Age 19)	
Education & Training	Member of USA Swimming. Certified Stroke & Turn. Certified Administrative Official. Certified Starter. Attend Referee Clinic training. Pass USA Swimming Referee certification test. Apprentice as a Referee for at least four (4) Training Sessions total over two (2) meets with two (2) Trainers. Satisfactory Performance.
Evaluation & Certification	Apprenticeship signed off by a Certifier. Must complete Certification within one year from the month of Clinic. May officiate in any Referee role at any meet, except that in meets classified as USA Swimming Championships (as defined by 102.10.5), this certification may not meet the requirements of serving as the required Administrative Referee.
Recertification every 3 years	Worked sixteen (16) Qualified Recertification Sessions, within a three (3) year period, with at least eight (8) Qualified Recertification Sessions in any Referee position. Pass USA Swimming Referee recertification test every three (3) years. Attend Clinic (recommend Referee) every three (3) years. Satisfactory Performance.
Comment	Once a person is certified as a Referee, they are encouraged to participate in as many meets as they can to gain experience and knowledge. This will allow those running meets to have greater confidence in their ability to be a referee at meets of various levels.

Optional LSC Certification	
CHIEF JUDGE (Minimum Age 18)	
Education & Training	Must be certified Stroke & Turn Judge

	Sixteen (16) or more Sessions as certified ST. Attend a CJ Clinic or briefing of CJ duties. Have read the CJ Professional documents. Apprentice as CJ for four (4) Training Sessions at a minimum of two (2) meets with a Trainer(s)
Evaluation & Certification	Apprenticeship signed off by a Certifier. May officiate in any LSC meet.
Recertification every 3 years	Work sixteen (16) Qualified Recertification Sessions within a three (3) year with at least eight (8) as a CJ or Referee. Pass USA Swimming recertification test every three (3) years for the highest certification held. Satisfactory Performance as Chief Judge.

Any additional exception and/or addition to these standards must be approved by the USA Swimming Board of Directors and National Officials Committee, who may stipulate appropriate conditions for each exception.

Recommend review of Standards after 2 years of implementation (January 2026).

April 2024

VI. Sanction, Meet and Competition Policies

35.0 Open Water Meet Application

Date of adoption / Last revision: March 23, 2021

Applicants for sanction or approval of an open water competition should utilize the Open Water Meet Application that is provided on the USA Swimming website. The link is provided below:

<https://fs22.formsite.com/usaswimming/form108/index.html>

36.0 Zone Sanction Appeal Process

Date of adoption / Last revision: February 19, 2021

RATIONALE

1. To establish a consistent appeal process for a meet host whose request for sanction or approval is denied by an LSC.
2. To allow for review of denials to make certain such denials are not limiting competitive opportunities for athletes.

AUTHORITY OF THE LSC

1. Each LSC has been authorized by USA Swimming to issue the sanction or approval for all swimming competitions and benefits, exhibitions, clinics, and entertainment involving competitive swimming within its geographical boundaries as described in Article 202 of the USA Swimming Rules and Regulations.
2. Additional requirements/conditions for sanction or approval may be established by a vote of the LSC House of Delegates in accordance with LSC bylaws.
3. The LSC has the right and authority to establish and collect relevant entry fees.
4. Prospective hosts must adhere to the LSC published guidelines, deadlines, and procedures.
5. Prospective hosts must follow USA Swimming rules and guidelines.

LSC REQUIREMENTS

As part of the sanction and approval process delegated by USA Swimming to LSCs, each LSC must:

1. Establish submission deadlines for sanction or approval applications and publish such deadlines along with relevant instructions and forms.
2. Establish and publish policies regarding applications submitted as well as relevant fees and penalties.
3. Establish and publish policies regarding applications submitted after the published deadlines citing relevant fees and penalties.
4. Provide written notification within ten (10) days to the applicant citing the reason for the denial and of the appeals process.
5. Update LSC policies and procedures as needed to reflect deadlines and instructions.

If an individual or entity has reason to believe that a meet host and/or LSC has violated USA Swimming's conditions of sanction (i.e. Rules 202.5.1-10 in the USA Swimming Rules and Regulations), those concerns should be reported to USA Swimming's Safe Sport Division at safesport@usaswimming.org during, or immediately following the meet.

AUTHORITY OF THE ZONE SANCTION APPEAL PANEL (ZSAP)

1. To review applicable LSC rules and policies as well as the prospective host/petitioner's actions to determine whether applicable rules and policies were followed and fairly applied.
2. The ZSAP does not have the authority to overrule LSC regulations and policies.
3. The ZSAP does not have the authority to establish entry fees.
4. The ZSAP is authorized to require an LSC to issue a sanction or approval except in those instances where, in the ZSAP's judgment, the sanction or approval was denied because the application was in conflict with a policy adopted by the LSC House of Delegates or because the application was in conflict with USA Swimming rules or requirements.

STANDARD TIMELINE AND PROCEDURES FOR AN APPEAL

To ensure that the Zones conduct the Zone Sanction Appeal process consistently, the following standard timeline and procedures for an appeal must be followed.

1. Each Zone shall designate a group of coaches, referees, and athletes available to serve on an Appeal Panel.
2. Each Zone shall also designate and publish the Zone Director to whom petitions are to be submitted.
3. A petitioner must file an appeal in writing with the designated Zone Director within **5 days of denial** of sanction by the applicable LSC.
4. Within 24 hours, the designated Zone Director shall provide a written response to the petitioner acknowledging receipt of the appeal.
 - If the petitioner does not receive acknowledgement within 24 hours from the designated Zone Director, the petitioner shall immediately contact the other Zone Director in writing.
 - The other Zone Director shall attempt to contact the designated Zone Director within 24 and, if unable to do so, the other Zone Director shall convene the ZSAP.

Note 1: The Zone Directors shall make every effort to adhere to a 24-hour timeline in convening the ZSAP. Failure to do so does not void the appeal or the decision.

Note 2: Even if initial contacts are made via phone, appeal requests and confirmation must be reduced to writing.

5. When an appeal is filed, the Zone Director shall notify the LSC and appoint a panel made up of a coach, referee, and athlete, each from a different LSC and none from the petitioner's LSC.

6. Documentation to be presented to the ZSAP by petition includes, at a minimum:

- Meet information
- Process followed by petitioner
- Reasons for appeal

7. Documentation to be presented to the ZSAP by LSC includes, at a minimum:

- Reason for denial
- Pertinent LSC rules, timeline, process

8. The Zone Director convening the ZSAP shall provide the ZSAP with all pertinent written documentation for review and consideration. The ZSAP shall decide the matter within five (5) days of convening the ZSAP.

9. The ZSAP shall notify the Zone Director convening the ZSAP of its decision in writing.
10. The Zone Director convening the ZSAP shall notify the petitioner and the applicable LSC of the ZSAP decision.
11. The ZSAP decision is final and there are no further appellate opportunities.
12. The ZSAP Chair will complete a standard one-page report to document the decision.

ZONE SANCTION APPEAL PANEL (ZSAP) ELIGIBILITY SELECTION

1. Each Zone shall designate a group of individuals eligible to sit on a Zone Sanction Appeal Panel (ZSAP).
2. Designees shall be named for a one-year term by October 1 of each year and shall be eligible for reappointment.
3. When a petition is received, the Zone Director shall appoint a panel made up of a coach, a referee, and an athlete, each from a different LSC and none from the petitioner's LSC.
4. The ZSAP shall select its panel chair and all three members must participate in the appeal.

ZSAP INITIAL QUESTIONNAIRE

In order to facilitate a cohesive, fair, and consistent process, all ZSAP panels should use the following questions at the beginning of each initiated panel.

1. Did the LSC that has denied the sanction clearly communicate its rules and deadlines in a reasonable amount of time?
2. Did the appellant follow the rules and deadlines of the LSC?
3. Did the LSC provide a reasonable and concise explanation as to why the sanction was denied?
4. Did the LSC provide the appellant with the appropriate information concerning the appeal process within a reasonable period of time?
5. Did the LSC and the appellant try to come to an agreement before the appeal was filed?

Please see:

Appendix XIV: ZSAP Report Form

Appendix XV: Sanction Review Process - Questions & Scenarios

37.0 Rules and Regulations Regarding Competition

Date of adoption / Last revision: March 23, 2021

*The **highlighted** provisions are not included in Rules and Regulations and may be amended at any time by the President & CEO. The remaining provisions are included in Rules and Regulations and may be changed only by the action of the House of Delegates. The rules outlined below specifically apply to USA Swimming national events; however, the rules regarding locally sanctioned events can be found in the USA Swimming Rulebook at Article 202. Sanctions to host a meet may be issued to USA Swimming group members or LSCs and their subdivisions. When a meet host appoints a meet director per Rule 102.9, the meet host must ensure that the meet director has reviewed the USA Swimming Corporate Bylaws, Rulebook, Operating Policy Manual, and local version of the Meet 360 guide.”*

ARTICLE 206

AWARDING USA SWIMMING CHAMPIONSHIPS AND INTERNATIONAL COMPETITIONS

206.1 GENERAL — USA Swimming Championships shall be conducted annually.

- .1 A U.S Open Championships shall be conducted the week following Thanksgiving.
- .2 A long course National Championship meet shall be conducted every summer. When a Trials Class meet is held in the summer, the National Championship may be combined with the Trials. If the Trials class meet is not held at the traditional time at the end of the summer, there may be an additional end of the summer meet during those summers called the USA Swimming Invitational.
- .3 USA Swimming Open Water Individual and Team Championships shall be held in the 5 kilometer and 10-kilometer distances (effective 9/17/11).

206.2 FACILITIES

- .1 Facilities awarded USA Swimming Championships and International competition must meet the mandatory standards of Article 103 and shall have a separate warm-up pool.

Facilities where competition is held to select USA Swimming National Teams for certain international competition and shall also conform to the requirements stated in 103.19.3E.

- .2 **Facilities with movable bulkheads shall be required to demonstrate prior to submitting a bid for a USA Swimming Championship, the ability to meet all measurements and tolerances as specified in 103.3, 103.4 and 103.5. Written confirmation of this demonstration shall accompany the championship meet bid.**
- .3 Open water venues must meet the mandatory standards of Article 702.

206.3 AWARD OF EVENTS

USA Swimming national championships, Trials class, U.S. Open, Summer Invitational, and Open Water

Championships shall be contracted for by the USA Swimming President & CEO or his/her designee in accordance with Article 206 and Article 207, after approval by the Board of Directors.

- .1 The National Team Director may elect not to conduct one or more USA Swimming Championships in any year upon approval by the Board of Directors.

206.4 DATES — Unless otherwise determined and announced by the National Team Director at the previous year's annual meeting, the dates shall be as follows:

- .1 U.S. Open Championships – To start the Wednesday following Thanksgiving.
- .2 Summer National Championships and USA Swimming Summer Invitational (when held) — To end no later than the second Saturday in August;
- .3 Open Water Championships—Each event to be scheduled annually by the National Team Director in conjunction with the Steering Committee.

206.5 METHOD OF GRANTING AWARD

- .1 A USA Swimming Championship may be awarded either to an LSC in good standing or to an organization approved by the Board of Directors of the LSC for the purpose of assuming full responsibility to conduct the USA Swimming Championship as agreed to in writing. The LSC may also assign the contract to conduct the championship to a member in good standing of that LSC who shall then assume the full responsibility for the championship as agreed to in writing.
- .2 The award process shall be conducted by the President & CEO in accordance with the provisions of the USA Swimming Policy Manual.

A The President & CEO's recommendation shall be presented to the Board of Directors for approval.

*The **highlighted** provisions are not included in Rules and Regulations and may be amended at any time by the President & CEO. The remaining provisions are included in Rules and Regulations and may be changed only by the action of the House of Delegates.*

ARTICLE 207

USA SWIMMING CHAMPIONSHIPS

207.1 GENERAL — USA Swimming may conduct USA Swimming National Championships, Trials class meets, U.S. Open Championships, and Open Water Championships. The designation of each of these championships shall include the name of the national sponsor, if any, for that meet.

207.2 USA SWIMMING U.S. OPEN CHAMPIONSHIPS — The USA Swimming U.S. Open Championships shall be governed by the Senior Development Committee. All USA Swimming member athletes who have achieved the qualifying time standards for one or more specific events are eligible to participate. The meet shall be conducted in years designated by the National Team Director.

207.3USA SWIMMING NATIONAL CHAMPIONSHIPS AND OPEN WATER CHAMPIONSHIPS

The USA Swimming National Championship meets and Open Water Championship races shall be governed and conducted by the National Team Director. All USA Swimming member-athletes who have achieved the qualifying time standards for one or more specific events are eligible to participate.

If the following USA Swimming team selection trials are held in conjunction with the USA Swimming National Championships, only United States citizens eligible to represent the United States in international competition will be allowed to compete in the A (championship) finals from which team selections are chosen: Pan American Games Trials and Pan Pacific Championship Trials. Foreign swimmers may compete in all relays, but in individual preliminary events and consolation and bonus finals only. When the selection of more than one of the above teams necessitates picking swimmers from beyond eighth (8th) place in a specific event, this rule also applies to the consolation and bonus final(s) in that event. Finals will be seeded accordingly.

207.4USA SWIMMING JUNIOR NATIONAL CHAMPIONSHIPS — The USA Swimming Junior National Championship meet shall be governed by the Senior Development Committee.

- .1 The Junior National Championships will be swum long course during the summer season and short course during the winter season. The dates and place of competition will be determined by the Senior Development Committee. The meets should be scheduled to be held after the summer National Championships/U.S. Open and after the winter National Championships respectively.
- .2 All USA Swimming athlete members 18 years of age and under who have met the qualifying time standard for a specific event, are eligible to participate.
- .3 The Junior National Championships program will be determined annually by the Senior Development Committee.

207.5TRIALS CLASS MEETS — Trials Class shall be the selection meets for United States teams for the Long Course World Championship and Olympic Games and may be held in conjunction with the USA Swimming National Championships. The Trials class meets shall be governed by the National Team Director. The event format will be established by the National Team Director and may emulate the Olympic Games or Long Course World Championship program. There shall be no relays or scoring in the Olympic Team Selection Meet. Touch pads shall conform to 103.1 9.3E. Only United States citizens eligible to represent the United States on the Olympic or Long Course World Championship teams may compete in these Trials.

207.6QUALIFYING TIME STANDARDS

- .1 **USA Swimming National Championships and U.S. Open qualifying time standards will be determined from performances at the respective winter and summer championship meets for all swimmers and may be based on world rankings so that they will be of comparable quality for all events.** The time standards shall be established by the Senior Development Committee in consultation with the National Team Director. Time standards shall be designed to allow 900-1000

swimmers in individual events at the National Championships.

- .2 The Senior Development Committee shall develop, ten (10) months in advance, the qualifying time standards for all National Championships/U.S. Opens. Qualifying time standards shall be specified in hundredths of a second, with nine one-hundredths being the constant.

207.7 PROOF OF ENTERED TIME — Procedures for obtaining proof of time shall conform to the current edition of the USA Swimming SWIMS Time Module Policy Manual. Official times achieved in accordance with the requirements of 102.16.4 may be used to enter the meet.

- .1 Individual Events — All individual entry times must be made during the correct qualifying period and must be proven prior to the scratch deadline for that event through the SWIMS database.
- .2 Relay Events — Times for each entered relay team must be submitted with the entry. This entered time must be proven prior to the scratch deadline for each entered relay team, in aggregate or as a team, through the SWIMS database. For the purpose of proving times, a club may name a swimmer on only one of its relay teams in each event. Once the relay team or teams have been proven, any swimmer listed by that organization on the entry form is eligible to compete on that relay team.

The time of any swimmer recorded while legally representing a USA Swimming club, secondary school, college, or university within the appropriate time frame may be used in proving an aggregate relay-entry time and that swimmer does not need to be entered in the championship in question.

Foreign swimmers, who are representing a foreign team or country, must meet the established National Championships time standards and provide official meet results with the entry form.

The above requirements shall be made a part of the official entry form for all USA Swimming championships and other meets at which proof-of-time is required through the SWIMS database.

- .3 Responsibility Clause
 - A The coach, swimmer, or swimmer representative who enters a USA Swimming championship thereby attests that all times on the entry form are true and correct achieved qualifying times for each event entered. He/she assumes all responsibility for false or incorrect times or times which are unacceptable under USA Swimming rules and shall be assessed a \$100 penalty payable to USA Swimming for each such time entered, unless absolved of the fine by USA Swimming or designee or Board of Review. Additional action or penalty may be taken or levied as deemed appropriate by USA Swimming.
 - B Such penalty shall also be levied against any USA Swimming verification officer who knowingly entered such a false time(s) into the SWIMS Database.
 - C Appeal of fines are to be made to USA Swimming or designee and/or Board of Review. Any appeal of the decision shall be in accordance with the provisions of Part Four, specifically Article 407.

207.8 ENTRY PROCESS AND OFFICIAL MEET INFORMATION

- .1 The entry process and announcement shall be prepared under joint direction of the Rules Chair, the Meet Director, and the National Events Director. Posting to the USA Swimming Web Site of the entry forms and meet information will be the responsibility of USA Swimming.
- .2 The meet information shall state qualifying times and procedures necessary for proof of entry times. (See 207.6) For a USA Swimming Championship meet, USA Swimming may permit bonus events. For each qualifying time achieved in an individual event, additional bonus events may be allowed. Requirements for bonus events will be specified in the meet announcement.

The meet information shall state that foreign swimmers must comply with all meet entry requirements.

The meet director's telephone number and/or email address shall be included in the information book.

USA Swimming shall establish a closing date for entries in all USA Swimming championship events which shall be at least one week before the first day of competition. For USA Swimming National Championships, a later fax entry deadline of 11:59 p.m. (local time at the host site) two (2) days prior to the start of the meet may be established and published in the meet information book for qualifying times that are first achieved after the entry deadline and prior to the late entry deadline.

207.9 ENTRIES

- .1 A swimmer and/or relay team will be officially entered when the entries are received by USA Swimming prior to the meet entry deadline. The method and procedure for submission of the entries will be stated in the meet announcement.
- .2 An unattached swimmer shall be identified in competition with the LSC in which the swimmer is registered.
- .3 In national championships a swimmer may enter and compete, except as provided in 102.2.2, in any number of individual events in which the qualifying time standards have been met.
- .4 Entry times for individual and relay events shall:
 - A Be the best competitive time of swimmers except as otherwise provided in this Article 207 or the USA Swimming Policy Manual.
 - B Be achieved in accordance with 102.24.1, Requirements for Official Time.
 - C Be submitted to hundredths of a second.
 - D Swimmers who have qualified for the Olympic Trials within the current quadrennium in a specific event may swim that event in all USA Swimming National Championships and U.S. Open Events preceding the next Olympic Trials, even if they have not re-qualified for the USA Swimming National Championships or U.S. Open in that specific event.

Times achieved at an altitude of 3,000 feet or above may be adjusted as follows:

Time Adjustment

Event Distance	3000-4250 Feet	4251-6500 Feet	Above 6500 Feet
200	.50 Sec.	1.20 Sec.	1.60 Sec.
400 or 500	2.50 Sec.	5.00 Sec.	7.00 Sec.
800 freestyle relay	2.00 Sec.	4.80 Sec.	6.40 Sec.
800 or 1000	5.00 Sec.	10.00 Sec.	15.00 Sec.
1500 or 1650	11.00 Sec.	23.00 Sec.	32.50 Sec.

(1) Subtract the time indicated above from the actual time achieved at altitude. This is the time to be used on the entry form and seeding will be based on that time. Information relative to the adjustment accompanying the entry form must include name of swimmer, event, date of performance, elevation location, actual time, corrected time, and signature of coach.

(2) A swimmer or relay may use the above adjustments to meet the national qualifying time standard and seeding will be based upon that time.

- .5 Only swimmers and relay teams entered using the procedures stated in the meet announcement shall be eligible to compete. Submitted times may be updated up to the entry deadline. No corrections or changes of events entered, or additional entries will be accepted after the entry deadline. Typographical or transcription errors which can be readily verified by entry data or National Times Database data may be corrected if attested to by the swimmer, coach, or the swimmer's representative prior to the scratch deadline.

Any swimmer who qualifies for the 1000 or 1650-yard freestyle or the 800 or 1500-meter freestyle may enter at his/her fastest time or at the time standard, if entered in two or more events on the day of the distance freestyle.

In USA Swimming National Championships, swimmers entered in the 800/1000 and 1500/1650 freestyle do not need to enter their best times but may enter themselves at the time performed at the meet distance (SC-SC, LC-LC) at the previous USA Swimming National Championships, provided they have made the short course yard, short course meter, or long course meter standard during the appropriate qualifying period. Swimmers will be seeded at their entered times.

- .6 USA Swimming reserves the right to challenge any submitted time.

When approved by USA Swimming, foreign swimmers who are not members of USA Swimming, may enter national championships provided they have met all qualifying requirements including submission of proof of entered times. (See also 207.8.3)

- .7 In order to score at USA Swimming National Championships, a swimmer must be eligible

to represent the United States in international competition.

.8 Relay Entries

- A A club may enter no more than two relay teams in each relay event.
- B Only swimmers listed on the entry form for an organization shall be eligible to compete for that organization in relay events.

Relay teams shall indicate on the entry whether they elect to be entered at their provable time or at the lowest priority non-conforming time standard. The time for each relay may be submitted as a composite or an aggregate time. Only times achieved in the same course (i.e., all short course or all long course) may be used for aggregate relay times.

A completed relay entry listing the competing relay swimmers, their first and last names, ages, and order of swimming, shall be returned to the clerk of course for each competing relay. Upon reporting to the starting blocks, immediately prior to the start of the relay heat in which such team is entered, the completed relay entry form shall be handed to the head lane timer. No change will be permitted thereafter and failure to present the head lane timer with written list of relay swimmers shall prevent such team from competing.

A fine of \$100 will be imposed on the organization obtaining deck credentials for each relay-only swimmer who does not compete in a USA Swimming National Championship relay. No penalty shall apply if the Referee is notified prior to the event and accepts proof that failure to compete was due to the relay-only swimmer's illness or injury, or to circumstances beyond the swimmer's control.

Preliminaries	Finals
100-yard/meter breaststroke	1000-yard/800-meter freestyle
200-yard/meter freestyle	100-yard/meter breaststroke
100-yard/meter butterfly	200-yard/meter freestyle
200-yard/meter individual medley	100-yard/meter butterfly
800-yard/meter freestyle relay	200-yard/meter individual medley
1000-yard/800-meter freestyle	800-yard/meter freestyle relay

Day One	Women's	800-meter freestyle
200-yard/meter	Men's	800-meter freestyle
100-yard/1500-meter	freestyle	relay
Day Two	Women's	100-meter freestyle
200-yard/meter	Men's	100-meter freestyle
400-yard/meter	freestyle relay	Women's
200-meter	breaststroke	relay
500-yard/400-meter	Men's	200-meter breaststroke
400-meter	freestyle	relay
400-yard/meter	Women's	200-meter backstroke
200-meter	medley relay	Men's
200-meter	backstroke	Men's
200-meter	butterfly	Women's
200-meter	butterfly	Men's
Day Three	Women's	200-meter freestyle
200-meter	freestyle	Men's
400-meter	individual medley	Women's
400-meter	individual medley	Men's
800-meter	freestyle relay	Women's
800-meter	freestyle relay	Men's
Day Four	Women's	100-meter backstroke
100-meter	backstroke	Men's
400-meter	freestyle	Women's
400-meter	freestyle	Men's
100-meter	breaststroke	Women's
100-meter	breaststroke	Men's
100-meter	butterfly	Women's

	Men's	100-meter butterfly
	Women's	400-meter freestyle relay
	Men's	400-meter freestyle relay
Day Five	Women's	200-meter individual medley
	Men's	200-meter individual medley
	Women's	1500-meter freestyle
	Women's	50-meter freestyle
	Men's	50-meter freestyle
	Men's	1500-meter freestyle
	Women's	400-meter medley relay
	Men's	400-meter medley relay

- .1 Time Trials — At all USA National Championships and Trials Class meets, Time Trials will be conducted on a time available basis for swimmers participating in the meet. Unless sanctioned directly by USA Swimming, these Time Trials shall be held under a separate sanction of the LSC where the meet is held and shall conform to the following conditions and format, subject to the time limitations specified in 207.10 and 207.11:
- A A swimmer is limited to a maximum of two Time Trials during the course of the championships.
 - B At the USA Swimming National Championships and Trials Class meets, a swimmer must be entered in the meet with a proved time (individual event or relay) to be eligible to participate in the Time Trials.

Except as noted in (4) below, Time Trials shall be swum in the order listed under the meet program as follows:

- (1) First Day: that day's events, followed by the remaining events in the meet, except on the first day of the Modified Four-Day Program, when only that day's events will be swum.
- (2) Second and all subsequent days except the final day: that day's events, followed by the events of the remaining day(s) of the meet, followed by the events of the previous days.
- (3) Final Day: that day's events; that day's 1500-meter/1650-yard freestyle events may be swum, followed by events of the previous days if time permits.
- (4) Exception: For long course championships, on the day the 50-meter freestyle is

contested, the 50-meter freestyle Time Trials will be the first event in the Time Trial program. On all other days, the 50-meter freestyle will be the last event of the Time Trial program.

- C Entry fees for Time Trials shall be the same as those established for the corresponding national championships.

.4 International Program — At the discretion of the National Team Managing Director, the USA Swimming National Championships may be conducted in a format with the order of events simulating the World Championship or Olympic program. All relays shall be conducted on a timed finals basis with all heats swum in the final's session.

207.10 ADMINISTRATIVE CONDUCT OF USA SWIMMING CHAMPIONSHIPS — The administrative rules for the conduct of the national championships and Open Water Championships are specified herein. Additional rules for Open Water Championships are listed in Article 704.

.1 General Meeting

- A A general meeting, chaired by the Program & Events Committee Coordinator (or his/her designee), shall be held at all USA Swimming championship meets prior to the first day's competition. The Meet Referee, all participating coaches, and representatives of each participating club are responsible for all information disseminated at the meeting.
- B Only business pertinent to the administrative conduct of that championship meet and its events may be considered and finalized at this meeting by a vote of those in attendance and no changes shall be made thereafter.
- C It is the obligation of every athlete entered in the meet to attend or be represented at this meeting and to become acquainted with the changes, if any, and the decisions made at this meeting.

Computerization — The organization(s) conducting the championship shall compile entry lists, heat sheets, final sheets, and final results, by computer.

Entry List — An entry list, by event, with submitted times shall be distributed to the coaches, swimmers, and officials on the morning of the day preceding the meet and copies shall also be available at the general meeting on the night preceding the meet.

Credentials — Credentials for national championships will be provided at no charge for participating athletes and officials who are members of USA Swimming. Credentials for coaches, managers, and chaperones to serve as admittance passes to national championships shall be issued to those persons listed on the submitted team roster according to the following schedule and is based upon the total size of the team. There shall be a surcharge of \$20.00 per person for spectator passes, which money shall become the property of the meet host. For clubs that wish to bring one certified massage therapist with their teams, a surcharge will apply if the massage therapist exceeds the deck pass formula below. These funds shall become the property of the meet host. All massage therapists must be non-athlete members of USA Swimming.

- A 1-3 swimmers in individual events, or 1-only relay team with any number of alternates: 1 deck pass; 1 spectator pass.
- B 4-6 swimmers in individual events: 2 deck passes; 1 spectator pass.
- C 7-9 swimmers in individual events: 3 deck passes; 1 spectator pass.
- D 10-20 swimmers in individual events: 4 deck passes; 2 spectator passes.
- E 21-30 swimmers in individual events: 5 deck passes; 2 spectator passes.
- F 31-40 swimmers in individual events: 6 deck passes; 3 spectator passes.
- G 41-50 swimmers in individual events: 7 deck passes, 3 spectator passes.
- H 51 or more swimmers in individual events: 8 deck passes; 5 spectator passes.
- I Unattached swimmers with a team shall be included in above schedule even if listed on separate entry blank.
- J Unattached swimmers not with a team: 1 deck pass; 1 spectator pass.

Heat Sheets — Heat sheets for each preliminary and finals session shall be made available to coaches and/or team representatives no less than one hour before the beginning of each session. Complete results from each session shall be made available one hour prior to the next session.

.2 Schedule

- A Except as otherwise stated in the USA Swimming Policy Manual, a minimum of two (2) hours must elapse between the end of the last preliminary heat and the start of the first race in the finals on any one day, during which time the pool must be available for warm-up. Starting times for the preliminary and finals sessions shall be published in the meet information and reviewed at the general meeting. Starting times shall be as consistent as possible throughout the meet. At the general meeting, a schedule shall be made available for the first day's competition, including starting times for the first race in each preliminary event and for each race in the finals. Each day a schedule shall be made available for the following day's competition including all the same information. No event shall start prior to the time established for that event or race.
- B At the discretion of the Program & Events Committee Coordinator (or his/her designee), the preliminary sessions may be conducted in two courses.

.3 Warm-up Schedule — A schedule of lanes, times and warm-up procedures which must be adhered to shall be established and must be distributed during the general meeting.

.4 Eligibility Protests

- A An Eligibility Jury composed of three persons in attendance at each national championship

shall be appointed by the Program & Events Committee Coordinator (or his/her designee) prior to the start of the meet to consider protests pertaining to the eligibility of any swimmer to compete or to represent an organization. The Eligibility Jury shall consist of an athlete, a coach and an official.

- B All protests made prior to or during the championship shall be submitted to the Eligibility Jury on a form prescribed by USA Swimming and accompanied by a \$50 fee, which shall be returned if the protest is upheld. The \$50 fee shall not be required for protests submitted by the Registration Committee or LSC Registration Chairpersons.
 - C Protests shall be heard by the jury and, if possible, decisions rendered before the start of events on the day in which the protested swimmer competes, but no later than the last night of the championships. The opportunity to be heard shall be given to both the party lodging the protest and the party or parties charged.
 - D Until the Eligibility Jury renders a decision, the swimmer may compete under protest. An announcement to this effect shall be made prior to the race. The results of any race conducted under protest shall not be announced, nor prizes awarded, nor points scored until the jury has determined if and how their decision may affect the final scoring or awards.
 - E The decision of the jury may be appealed by either party to the National Board of Review, pursuant to Part 4. Protests submitted after the last day of the championships shall be submitted directly to the National Board of Review.
 - F Any such decision of the National Board of Review shall be published on the USA Swimming website.
- .5 Technical Rules Protests — Prior to the start of the meet the Program & Events Committee Coordinator (or his/her designee) shall appoint a Technical Jury composed of at least one swimmer representative, at least one coach, and at least one, but not more than three other persons. Written protests involving technical rules, except disqualifications due to judgment decisions by the deck officials, shall be made to the Meet Referee within 30 minutes of the protested act or occurrence. Decisions of the Meet Referee regarding these protests may be appealed to the Technical Jury, whose decision must be made the day of the protest and shall be final. The jury cannot adjudicate judgment decisions, which can only be considered by the Referee under Section 102.11.
- .6 Scratch Procedures
- A Swimmers may scratch from an event in which they are entered by following the procedures set forth in the meet announcement.
 - B The scratch deadline for the first day's events shall be fifteen (15) minutes after the general meeting is adjourned. The scratch deadline for all subsequent days' events shall be thirty (30) minutes after the time established for the start of the final's sessions.
 - C In all events where preliminary heats are necessary, after the heats have been seeded, any swimmer who fails to compete in an individual event heat in which such swimmer entered and has not been scratched in accordance with sub-paragraphs A and B above will be

barred from all further individual and relay events of that day. Additionally, that swimmer shall not be seeded in any individual events on succeeding days unless that swimmer declares an intent to swim prior to the close of the scratch box for that day's events.

D Scratching from finals:

- 1) Any swimmer qualifying for a bonus, consolation or championship final in an individual event who fails to compete in said final shall be barred from further competition for the remainder of the meet, except as noted in paragraph E. A declared false start under 101.1.3F or deliberate delay of meet under 101.1.5 is not permitted and will be regarded as a failure to compete.
- 2) In the event of withdrawal or barring of a swimmer from competition the Referee shall fill the bonus, consolation, or championship final final, when possible, with the next qualified swimmer(s). First and second alternates shall be announced along with the final qualifiers. These alternates shall not be penalized if unavailable to compete in the finals.
- 3) Where bonus and consolation finals have not been swum and a barring or withdrawal is known to the Referee, the Referee shall reseed the bonus, consolation, or championship final, if necessary, to insert the alternate(s) in the appropriate lane(s), filling all lanes in the final.
- 4) If the bonus and consolation finals have already been contested, the (championship) final shall be swum without reseeding for the empty lane(s).

E. Exceptions for Failure to compete — No penalty shall apply for failure to withdraw or compete in an individual event if:

- (1) The Referee is notified in the event of illness or injury and accepts the proof thereof.
- (2) A swimmer qualifying for a bonus, consolation or championship final based upon the results of the preliminaries notifies the Referee within thirty (30) minutes after announcement of the qualifiers for that race that they may not intend to compete and further declares their final intentions within thirty (30) minutes following their last individual preliminary event.
- (3) It is determined by the Referee that failure to compete is caused by circumstances beyond the control of the swimmer.

F. Notwithstanding the provisions of 207.11.6, the scratch procedures for the United States teams for the Olympic Games, the FINA World Championships, the Pan Pacific Championships, the Pan American Games, or the World Student Games shall be established by the National Team Steering Committee and the Program & Events Committee Coordinator (or his/her designee).

.7 Seeding

- A Entrants in the 1000yd/800m and 1650yd/1500m freestyle must check in and confirm their intention to compete prior to the scratch deadline in order to be seeded. Seeded heat sheets shall be published at the conclusion of the finals the evening before, except that in the five-day format, seeded heat sheets for the 800m freestyle shall be published two hours prior to the

scheduled starting time for that event. The swimmers shall be listed in the meet program in the order of submitted times, beginning with the fastest.

B Seeding individual events when using non-conforming and bonus times shall be as follows:

- (1) All conforming times will be arranged in time order.
- (2) In a long course championship meet, non-conforming short course meter times will be arranged in time order followed by non-conforming yard times; in a short course meet, non-conforming long course times shall precede non-conforming short course times.
- (3) Conforming bonus times, if permitted, will be arranged in time order after the times that meet the qualifying standards, in the precedence specified in (2) above.
- (4) Non-conforming bonus times, if permitted, will be arranged in time order after the times that meet the qualifying standard and after conforming bonus times, in the precedence specified in (2) above.
- (5) After arranging the times as provided above, the event will be seeded in normal fashion.

.8 Finals —The order of final heats for each meet shall be approved by the Program & Events Committee Coordinator (or his/her designee).

.9 Scoring — Except for Trials Class meets, scoring at the USA Swimming National Championships shall be mandatory.

A Foreign national teams entered in the National Championships will not be scored for team awards.

B Foreign swimmers may not score points for a USA Swimming team at the USA Swimming National Championships, but, subject to USA Swimming representation requirements, may represent that team and receive awards.

C Scoring at the USA Swimming National Championships will be on a sixteen (16) place basis. Individual events: 20, 17, 16, 15, 14, 13, 12, 11, 9, 7, 6, 5, 4, 3, 2, 1. When a 10-lane pool is used for finals at the National championships, the scoring shall be on a twenty (20) place basis with the values for the individual events as follows: 24, 21, 20, 19, 18, 17, 16, 15, 14, 13, 11, 9, 8, 7, 6, 5, 4, 3, 2, 1. Relay events receive double these point values.

D To be eligible for Combined Men's and Women's Team Awards, a team must have scored points in both the Men's Team and Women's Team Categories.

Final Results — USA Swimming will provide final meet results to all participating teams and LSC times and records volunteers within two weeks of the completion of the Championships.

207.11AWARDS

.1 Team Awards

Women's Team Champion

(high point women's team)

Women's Team Runner-up Champion	(second highest)
Women's Team Top Ten	(third through tenth)
Men's Team Champion	(high point men's team)
Men's Team Runner-up Champion	(second highest)
Men's Team Top Ten	(third through tenth)
Men's & Women's Team Champion	(high combined points)
Men's & Women's Runner-up Team Champion	(second highest)
Men's & Women's Combined Team Top 25	(third through twenty-fifth)

USA Swimming National Championship only:

William A. Lippman, Jr., USA Swimming—Combined Team Champion Cup (*perpetual trophy*)

.2 Individual and Relay Awards

- A. Medals shall be awarded to all place winners in the A (championship) final and to the top eight (8) place winners in timed final events of any USA Swimming championship. When ten (10) lanes are used at a USA Swimming Championships, the top ten (10) place winners in timed final events will receive medals.
- B. First-place medal to be awarded to the 18 & under swimmer placing highest in each individual event at each USA Swimming National Championship. If no 18-and-under swimmer scores in the A, B, or C finals, the highest placing 18-and-under swimmer from preliminaries will be recognized as the National 18-and-under Champion for that event.
- C. In each USA Swimming National Championships, the Robert J. Kiphuth High Point Award shall be awarded to the man and woman swimmer scoring the greatest number of points in individual events. If two or more are tied duplicate awards shall be provided. If this occurs, the original award is given to the swimmer scoring the most first and second places and the duplicate award, if not then available, shall be sent within thirty days to the proper swimmer.
- D. Each member of an award-winning relay team shall receive identical awards.
- E. The Performance of the Meet Award shall be presented at each USA Swimming National Championships. The recipient of this award shall be chosen by USA Swimming.

38.0 USA Swimming Times Module – Policy and Guidelines

Date of adoption / Last revision: March 23, 2021

1.0 OVERVIEW

In June 2003 USA Swimming launched a browser-based database system that consolidated 30 different types of databases utilized by volunteers and staff to serve its athlete and nonathlete members. With membership data and times data linked for the first time, SWIMS (**Swimming Web-based Interactive Membership System**) is a comprehensive and inclusive database. SWIMS is a composite of membership data and history and a databank of times swum for nearly every athlete member since June 2003. It is expected that LSC SWIMS officers will submit all eligible times from LSC sanctioned, approved, and observed competitions into SWIMS to provide USA Swimming with complete data for meet entry, athlete tracking, and research.

2.0 PURPOSE

- 2.1. The purpose of this manual is to provide general guidance to the swimmers, coaches, and volunteers who will be providing or using the times data in the SWIMS system. The guidelines describing the functions of the Times Module of SWIMS are meant as a handbook for the LSC Times Volunteers who use SWIMS.
- 2.2. Times for USA Swimming members that have been entered into SWIMS are visible on the look up feature on the USA Swimming website.
- 2.3. The primary purpose of the Times module in SWIMS is to provide a database of all official times that conform to the requirements stipulated in the Timing Rules section of the Technical Rules portion of the USA Swimming Rules and Regulations. Open Water times are not included in the SWIMS database.

3.0 RESPONSIBILITIES

- 3.1. Each LSC is responsible for data entry of times within its geographical boundaries. There may be exceptions as agreed upon by specific LSCs.
- 3.2. Times from the following meets will be entered into SWIMS by the host LSC:
 - A. Sanctioned and approved LSC Meets
 - B. YM/YWCA/AAU Championships
 - C. Other swims that have been authorized for observation (NFHS and USMS, IPC)

NOTE: Times from observed swims and approved meets will be entered into SWIMS by the LSC for USA Swimming member athletes with USA Swimming ID numbers or full legal names and birth dates provided in the electronic meet results or separately on paper. NCAA meets are run as approved competitions, managed by the host school without LSC authorization, and results are entered by USA Swimming staff.

- 3.3. The following meets do not fall under the LSC responsibility for data entry:

- A. USA Swimming Trials, ConocoPhillips National Championships, including time

trials, and United States Open Championships

- B. USA Swimming Short Course (SCY) Championships, including time trials.
- C. USA Swimming Speedo Junior Championships, including time trials.
- D. World Cup, World Championships (short and long course), Olympic Games, World University Games, Pan American Games, Pan Pacifics, Junior Pan Pacifics, including time trials (inclusion of times from these meets will be done for American athletes only). Foreign athletes who wish to use these times to compete in USA Swimming meets should present results to USA Swimming staff (Times) for inclusion in SWIMS.
- E. Pro Series and Futures meets, including time trials, unless the LSC is specifically requested to enter the meet into SWIMS.
- F. Certain International competitions at which a USA Swimming National Team competes.
- G. NCAA meets.
- H. Foreign meets authorized by a FINA member that are attended by USA Swimming registered swimmers (See description of foreign meets in 4.4).

4.0 TYPES OF MEETS INCLUDED

This summary is intended to help clarify the key differences about the various types of swims generating “official” USA Swimming times. More detailed information and definitive regulations are available in USA Swimming Rules and Regulations (Article 202) in which requirement and conditions for sanction, approved competitions, NCAA meets, and observed swims are defined.

4.1. SANCTIONED MEET

- A. All participants must be members of USA Swimming (including meet directors, coaches [all persons acting in any coaching capacity must be coach members], officials, athletes, and participating clubs.
- B. Meet must be conducted under USA Swimming technical and administrative rules.
- C. All official times achieved will be recognized by USA Swimming.

4.2. APPROVED MEET

- A. There are no requirements for USA Swimming athlete membership for meet participation.
- B. Approvals may be issued to non-member clubs/organizations for meets conducted in accordance with USA Swimming technical rules, including those requirements stipulated under the Timing Rules section of the Technical Rules portion of USA swimming Rules and Regulations.
- C. Approvals may be issued to member clubs for closed competition (such as YMCAs) conducted in accordance with USA Swimming technical rules.
- D. Approvals may be issued to member clubs for open competition conducted in accordance with USA Swimming technical rules if that competition has been specifically approved by the USA Swimming staff leader or designee(s). (See

Form E in attachments.)

4.3. OBSERVED MEET

- A. There are no requirements for USA Swimming athlete membership for meet participation.
- B. Meet is conducted under technical rules other than USA Swimming (e.g., high school, Masters, IPC).
- C. A request for observation must be made to the LSC at least ten (10) days prior to the meet. Policies and procedures may vary between LSCS.
- D. Times from swim(s) observed and approved by association officials working season culminating championship meets and invitationals are recognized by USA Swimming (except for NCAA meets – see below). Official times of USA Swimming members are eligible for inclusion in the SWIMS database. A USA Swimming official must verify that all swims approved for USA Swimming purposes were in accordance with the following requirements.
 - (1) Minimum of one referee, one starter and two stroke & turn judge association officials working season-culminating championship meets and invitationals.
 - (2) 102.24 (Timing Rules)
 - (3) 103.3 (Racing Course Dimensions); and
 - (4) 103.14 (Starting Platforms)
- E. Times for events achieved at NCAA bona fide competition as defined in the current NCAA Rules and Interpretations shall be regarded as approved times for USA Swimming purposes and are to be submitted within 72 hours after the meet has ended to ncaa@usaswimming.org.
- F. If technical rules of the stroke differ from USA Swimming as defined in Article 101, at least two observers from USA Swimming and/or the YMCA, who shall be certified Stroke & Turn Judges assigned or approved by the LSC, must be present on the deck. If at least two of the four association officials are dually certified, no further observers are required. Where the technical rules are identical, the judgement of the organization officials shall be sufficient.

4.4. FOREIGN MEET

- A. For times from a foreign meet sanctioned by another FINA member to be included in SWIMS, the meet must comply with the minimum standards for an official time as stipulated under the Timing Rules section of the Technical Rules portion of the USA Swimming Rules and Regulations.
- B. Best times may be requested for an athlete who needs the times to qualify for entry into a championship level meet for USA Swimming. Events, times swum, and a link to official meet results must be provided to the Chair of the Times and Recognition Committee for data entry.
- C. This category of foreign meet does not include international competitions at which the USA Swimming National Team is competing. Times submission from such International meets is the responsibility of the USA Swimming staff to submit.
- D. The USA Swimming member must be representing his/her club or swimming unattached for a time to be included in SWIMS. If a USA Swimming member is also a foreign federation athlete, the swimmer may represent his/her foreign club in a foreign meet.
- E. USA Swimming has an “open border” policy with Puerto Rico, Canada, Bermuda, and the U.S. Virgin Islands. Travel documents are not necessary for

their athletes or clubs traveling to the United States and are not necessary for USA Swimming's athletes traveling to these countries. Swimmers who wish to compete in international meets outside of these countries must obtain a Foreign Travel Permit through the LSC Registrar and USA Swimming Membership Services before competing in a foreign meet.

4.5. TIME TRIALS

- A. Time trials conducted at meets other than the competitions defined in 3.3 must conform to the following:
 - (1) Time trials must be sanctioned by the LSC and conducted in accordance with all USA Swimming Technical Rules and abide by the Requirements for Sanction stipulated in the Administrative Regulations of Competition portion of the USA Swimming Rules and Regulations.
 - (2) Time trials must be authorized in accordance with established LSC procedures.
 - (3) If a time trial is conducted in conjunction with a collegiate meet, an approved meet, a USMS meet, or other meet authorized for USA Swimming observation and it is officiated to the same standard as the authorized meet, times may be entered into SWIMS.
 - (4) All time trials meeting the above specifications should be uploaded into SWIMS.
 - (5) Electronic results (SDIF, .cl2, XDIF, HY3) of the time trials may be loaded into SWIMS as part of an accompanying swim meet or separately. The preferred method is separate results files. All results must be entered into the proper event description in the meet file.

4.6. ALTITUDE ADJUSTED TIMES

- A. Information on Altitude Adjusted Times may be found in the USA Swimming Policy Manual. Altitude Adjusted Times may be used to enter USA Swimming Sanctioned Meets. They may not be used for records or recognition purposes.
- B. Times achieved at an altitude of 3,000 feet or above may be adjusted as follows:

Time Adjustment

Event Distance	3000-4250 Feet	4251-6500 Feet	Above 6500
200	.50 Sec.	1.20 Sec.	1.60 Sec.
400 or 500	2.50 Sec.	5.00 Sec.	7.00 Sec.
800 freestyle relay	2.00 Sec.	4.80 Sec.	6.40 Sec.
800 or 1000	5.00 Sec.	10.00 Sec.	15.00 Sec.
1500 or 1650	11.00 Sec.	23.0 Sec.	32.50 Sec.

- (1) Subtract the time indicated above from the actual time achieved at altitude. This is the time to be used on the entry form and seeding will be based on that time. Information relative to the adjustment accompanying the entry form must include name of swimmer, event, date of performance, elevation location, actual time, corrected time, and signature of coach.
- (2) A swimmer or relay may use the above adjustments to meet the national qualifying standard and seeding will be based upon that time.

5.0 SWIMMING RECORDS

World Records and USA Swimming Records (including American and United States Open Records, National Age Group (NAG) Records, Zone Records, and LSC Records) must comply with the requirements stipulated under the Rules for Timing Records section of the Technical Rules portion of the USA Swimming Rules and Regulations. USA Swimming record applications shall be submitted to USA Swimming and shall be approved by the Times and Recognition Committee.

- 5.1. Applications for all USA Swimming records shall be posted on the USA Swimming website.
- 5.2. Applications and all required paperwork for American and United States Open Records must be submitted within 14 days of performance.
 - A. An American Record may be established only by United States citizens eligible to compete under and achieving an official time in accordance with USA Swimming rules. Records may be established in or outside of the United States.
 - B. A United States Open Record may be established only within the geographical territory of the United States by any person eligible to compete under and achieving an official time in accordance with USA Swimming rules.
 - C. Pool measurement as stipulated under the Pool Measurement portion of the American and United States Open Records sub-section of the Technical Rules section of the USA Swimming Rules and Regulations is required. Record applications will not be accepted unless certification of course length accompanies the application or is already on file with USA Swimming. Certifications last indefinitely unless structural changes are made to the pool. The length of the course shall be measured and certified by a qualified person in accordance with the standards established by USA Swimming.
 - D. In a pool where a moveable bulkhead is used, course measurement of the lane in which the record was set must be confirmed at the conclusion of the session during which the time was achieved.
 - E. Times must be registered by automatic equipment and submitted in hundredths of a second.
 - F. If an American Record or United States Open Record is set at the USA Swimming National Championships, Junior National Championships, United States Open Championships, or any USA Swimming Selection Meet, National Event staff and/or the USA Swimming staff leader, or designees will compile and submit all documentation and ensure that all requirements have been met.
 - G. Lead-off legs/initial distances of mixed gender relays shall not count for American or U.S. Open records.
 - H. If a swimmer in a NCAA Bona Fide competition sets a record, the referee shall stipulate that the athlete was not wearing illegal tape on the record application or confirm this with the USA Swimming staff leader or designees.
- 5.3. Applications and all required paperwork for NAG records must be submitted within 30 days of performance.
 - A. Only USA Swimming members who are U.S. citizens representing a USA Swimming club or competing unattached are eligible to establish National Age

Group records. Times submitted for Age Group Records must comply with all requirements stipulated in the National Age Group Recognition Program detailed in the Administrative Regulations of Competition of the USA Swimming Rules and Regulations.

- B. The official times for establishing specific records in short course yards or long course meters must be achieved as determined in accordance under the Timing Rules section of the Technical Rules portion of the USA Swimming Rules and Regulations.
 - C. If a NAG record is set at a USA Swimming National Championship, Junior National championship, United States Open, or USA Swimming Selection meet, National Event staff members and/or the USA Swimming staff leader or designees will provide documentation and ensure that all criteria are met. NAG records achieved at Sectional, Arena Pro, or Futures meets do not require application. Times and Recognition Committee will document and award record status.
 - D. Measurement of the pool is not required for a NAG Record. In signing a NAG application form, the meet referee is confirming the validity of the time, the swim, and the course.
 - E. If an NCAA competitor sets a NAG record in a Bona Fide competition, the referee shall stipulate on the application that the swimmer was not wearing illegal tape.
- 5.4. Specific requirements for Zone records and LSC records will be set by the appropriate Zone or LSC.
- 5.5. A record will be recognized in the competition category in which it was earned.

6.0 AGE GROUP RECOGNITION PROGRAM

- 6.1. It is the responsibility of the Times and Recognition Committee to establish an Age Group Recognition Program and the NAG motivational time standards chart. The Time and Recognition committee may consider and make changes prior to the start of a new awards period in accordance with the USA Swimming Rules and Regulations.
- 6.2. The Age Group Recognition Program will recognize the following for short course yards and long course meters:
- A. The top ten individual times in a single age group beginning at age 11 through age 18.
 - B. The top ten relay times beginning with age group 11-12 and continuing for the 13- 14, 15-16, 17-18, and 15-18 age groups.
- 6.3. The Age Group Recognition Program will use a 12-month qualifying period beginning on September 1 of the prior year to August 31 of the current year to determine eligibility.
- 6.4. All times must be reported no later than September 7th of the current year for the previous 12-month period (September 1-August 31). The lists on the website will be considered final no later than October 15th. The lists produced by the TOP TIMES/EVENT RANK SEARCH feature on the USA Swimming website will be

- considered the official lists.
- 6.5. A time that would have made the top ten list if correctly submitted prior to the deadline may be awarded a certificate of performance at the discretion of the Times and Recognition Committee. A supplemental list may be published after the list has been declared final. However, no previously recognized authentic time will be removed from the final listing.
 - 6.6. The Times and Recognition Committee, with the recommendation of the Zone Top Times Sub-committee has the authority to resolve issues that may arise. Corrections and additions are the duties of the LSC tabulators. It is the LSC tabulator's responsibility to screen the lists posted throughout the year for discrepancies and omissions. Questions should be addressed to the LSC tabulators.
 - 6.7. Each LSC shall appoint a Top Times tabulator to lead these responsibilities. A list of all LSC tabulators, and a list of the Zone Top Times tabulators, will be available on the web site.
Zone Top Times Preview Lists will be posted on the Zone websites according to a schedule authorized by the Times and Recognition Committee.
 - 6.8. Each LSC is responsible for printing and distributing the Top Ten certificates for their athletes. The certificate template will be available from the USA Swimming website and the LSC Top Times tabulator will use the Top Times Report from SWIMS to generate their list.
 - 6.9. Until the National Top Ten Times list is final, lists of current age group top times achieved and retrieved from the USA Swimming, Zone and LSC websites are drafts and may contain errors.

7.0 TIME VERIFICATION PROCESS – APPROVED MEETS

Guidelines for Approved Meets beginning September 1, 2013

1. In order to comply with Article 202.6 in the USA Swimming Rules and Regulations, approved meets shall comply with USA Swimming technical rules.
2. Article 202.6.8D requires compliance with Article 102.10 Officials.
3. Per Article 102.10, an Administrative Official or additional Referee is required for all sanctioned and approved meets. The Administrative Official and Referee may not act in more than one officiating capacity.
4. In approved dual meet competition, the meet referee may also act as a stroke and turn judge. The starter may also act as a stroke and turn judge.
5. For a Y Closed League meet, a Y certified Administrative Official, or a Y Level II official acting in the administrative capacity can fulfill the requirement stipulated in Article 102.10.
6. For all other approved meets (non-closed league meets), such as a State Games meet, Black Heritage meet, or AAU competition, or USA-S club hosted approved meets, an Administrative Official certified by USA Swimming is required for approval authorization by the LSC.
7. The meet referee or designee is responsible for entering the AO into OTS along with the other meet officials.

7.1. APPROVED YMCA AND AAU MEETS

- A. For YMCA Closed League Meets, effective September 1, 2006, the YMCA of the USA adopted the USA Swimming technical rules for the conduct of all of its swimming competitions. As a result, there are no longer any differences in the technical rules by which swimmers will be judged when participating in swimming competitions hosted by either USA swimming or the YMCA. As a further result, YMCA sanctioned swimming competitions (multi-team meets, large invitationals, and championship competitions) should be eligible to be treated as an “approved” meet as defined under USA Swimming Rules and Regulations and there is no longer a basis for “observed swims” with respect to YMCA swimming competitions.
- B. The following is a list of the requirements for a swim meet hosted by a YMCA swimming club or AAU club to be considered an Approved Competition:
- (1) Requests for approved meets should be submitted to the LSC Sanction Chairman of the LSC in which the meet will be conducted.
 - (2) YMCA clubs who are also USA Swimming clubs may host sanctioned competitions, but only in their capacity as a USA Swimming club and only if all competitors in the competition are members of USA Swimming.
 - (3) Written application for approval shall be made not later than the period established by the LSC prior to the competition. The LSC may establish a fee for processing such applications. Fees to the LSC according to their policies and by-laws may be assessed. Application for approval shall be accompanied by a complete meet or event information and statement of the nature and value of prizes to be awarded. Payment of a fee or expenses to the assigned USA Swimming officials shall not be a requirement for approval.
 - (4) An issued Approval is not transferable.
 - (5) No further Approvals shall be given if the YMCA or AAU club has failed to satisfy expense obligations to athletes or to award prizes as stated on its entry blank or meet information until such obligations are satisfied or the prizes awarded.
 - (6) No Approval will be granted if the words “Olympic,” “World,” “Nationals,” “United States of America,” or any derivative thereof is used in any manner in connection with the competition unless consent for such usage is obtained from USA Swimming.
 - (7) The following clause must appear on all approval forms and on all forms upon which official approvals are granted: “In granting this approval it is understood and agreed that USA Swimming shall be free and held harmless from any liabilities or claims or damages arising by reason of injuries to anyone during the conduct of the event.”
 - (8) Complete results shall be submitted to the LSC within a period of time established by the LSC.
 - (9) All approvals must be signed by an authorized representative of the LSC, and record kept by the LSC.

- (10) An Approval may be withheld or withdrawn by the LSC if the competition was not conducted in accordance with the above requirements.
- (11) If an event is to be contested in more than one LSC's or country's jurisdiction, the application for approval shall be submitted to the LSC in which the event begins. The LSC granting the Approval shall notify the other LSC(s) and/or the governing body of the other country in which the event is being contested of the details of the event.
- (12) YMCA clubs who are also registered as USA Swimming clubs should be aware that USA Swimming insurance may not provide coverage when hosting an approved competition or when attending an approved competition if not all competitors from the club are USA Swimming members.

7.2. Mutual Guidelines for YMCA Teams, AAU Teams, and USA Swimming Officers for SWIMS Database

- A. The following criteria must be met if a YMCA or AAU team wishes to have times for its athletes entered into SWIMS:
 - (1) The meet must be run according to the guidelines of Part One, Technical Rules, USA Swimming Rules and Regulations. In lieu of an Administrative Official or second referee to comply with 102.10, a Level II Y certified official designated to fulfill the position of Administrative Official may be used at a Y meet.
 - (2) The meet shall be "Approved" by the host LSC according to its by-laws or formal policies and in accordance with the Requirements for Approval section of the Administrative Regulations of Competition of the USA Swimming Rules and Regulations.
- B. While the Y meet results file is official for YMCA purposes, in order to ensure that swimmers in an approved Y meet are able to represent the Y/USA Club team, the host team can require each Y team to send a list of a club's USA-S registered swimmers obtained from the USA-S Club Portal with their entries. At the conclusion of the meet, any swimmer who must be shown as UN in the USA- S database should be un-attached in the meet file and any relays the swimmer competed on should be deleted by the meet host. The meet host can also work with the LSC registrar and, if both agree, send a post meet recon file to the LSC, and then make any corrections upon receipt of the recon before submission of results to the LSC for USA Swimming purposes.
- C. Upon completion of a swimming competition and within seven (7) days of the end of the meet, the Meet Manager Back-up File should be sent to the SWIMS Times Officer in the LSC. The SWIMS officer will export a meet results file which will include the times for USA Swimming registered athletes for loading into SWIMS.
- D. Times loaded into SWIMS will show the athletes attached to the USA Swimming club name if that name is the same as the YMCA or AAU team name. If the name of the team is different, the times may show up as LSC UN. A USA Swimming member swimmer who is unattached will appear LSC UN in

the database.

8.0 NCAA Meets

1. Beginning in September 2017, the NCAA adopted the Fina Technical Rules for swimming. NCAA meets are no longer required to be observed by USA Swimming. Times from NCAA meets in all divisions are eligible to be used for USA Swimming purposes if the following criteria are met:
 - A. The meet is a bona fide competition as defined in the current NCAA Swimming and Diving Rules and Interpretations Book. Bona fide competitions include the following:
 - (1) Competition is between two or more teams of the same gender at the same time and site, from different collegiate institutions.
 - (2) All competitors are eligible by NCAA standards.
 - (3) Meets must be on the institutions' approved competition schedule.
 - (4) Meet officials must be qualified and/or certified.
 - B. For each meet, officiating must be in compliance with NCAA rules for Officials and their duties as stated in the NCAA Rule Book.
 - (1) There shall be a sufficient number of officials to properly conduct the meet. For dual, double-dual, triangular, and quadrangular meet competitions, it is recommended that a minimum of two, three, or four officials be used to properly observe all competitors equally and enforce playing rules.
 - (2) For championship and invitational competition, it is recommended that a minimum of six officials are used.
 - (3) It is the host institution or conference meet committee's responsibility to ensure compliance with the minimum number of officials or to receive mutual (unanimous) consent to change the minimum requirements.
 - C. Meet results shall be sent to ncaa@usaswimming.org within 72 hours of the end of competition. It is the responsibility of the USA Swimming Times Staff to ensure the requirements of a bona fide competition are met.
 - D. The NCAA Meet Referee shall have full jurisdiction over the meet and shall see that all rules are enforced.
2. If a NCAA institution hosts an LCM meet, the referee shall provide names and events to the USA Swimming staff leader or designee(s) for any competitor wearing illegal tape.

9.0 TIMES VERIFICATION PROCESS – OBSERVED SWIMS

- A. The intent of observing swims is to provide an opportunity primarily for high school swimmers who cannot compete in LSC sanctioned meets during their association season to achieve times that may be used to enter USA Swimming meets. An important difference between "Approved" and "Observed" is conformance to administrative rules and technical rules (required for Approval) vs. technical rules only (required for Observation).
- B. Observation is for the specific purpose of ensuring that swims performed by USA

Swimming members are in compliance with the Timing Rules, Racing Course Dimensions, Starting Platform, and Individual Strokes & Relays sections of the Technical Rules portion of the USA Swimming Rules and Regulations. Meets run by dual certified officials (i.e., NFHS/USA-S, USMS/USA-S) do not require additional USA-S observers at the meet. The dual certified officials shall record any USA-S disqualifications for USA-S swimming rules which would not be disqualifications under the rules of the meet. Where the technical rules as listed in Article 101 are identical to those of the host organization, the judgement of the organization officials shall be sufficient.

- C. At meets which do have separate USA-S observers (a minimum of 2 is acceptable), the USAS observers shall record ONLY disqualifications for USA Swimming rules which would not be disqualifications under the rules of the meet. Where the technical rules as listed under Individual Strokes and Relays of the Technical Rules of the USA Swimming Rules and Regulations are identical to those of the host organization, the judgment of the organization officials shall be sufficient.
- D. An administrative disqualification or an organization disqualification that is not a violation of USA Swimming technical rules should not invalidate an achieved time. Either the dual certified officials or the USA-S observers shall work with meet administration to record/report the time when submitted to the SWIMS Times database for high school competitions.
- E. Following are certain minimum criteria that must be applied to all high school, Masters, and any other meets authorized to have swims observed. The LSC NTV officer has the responsibility of verifying compliance.
 - a) Timing must comply with the Timing Rules stipulated in the Technical Rules section of USA Swimming Rules and Regulations.
 - b) If separate officials are being used for observation, officials must be present on the pool deck.
 - c) The number of host association meet deck officials (high school, USMS, etc.) must meet the minimum requirements as stipulated in Article 202.8.3A, which must include a referee, a starter and two stroke and turn officials.
 - d) The meet shall be on the published calendar of the appropriate school, league, conference, etc. Observation of high school competition shall be authorized for meets in the championship progression and large invitational meets run according to championship protocols and specifically authorized by the USA Swimming staff leader or designee(s).
 - e) A time trial held in conjunction with a meet whose swims are authorized for observation may also be observed if the time trial will be officiated to the same standard as the authorized meet.
 - f) All times for observed swims in high school meets shall be entered into SWIMS as LSC UN with the exception noted in 9.1.6D.
 - g) Observed swims not in compliance with USA Swimming rules should be recorded and compiled by a USA Swimming NTV official in the host LSC.
 - h) The LSC is encouraged to provide a list of valid observed swims from meets posted on the LSC website, or if complete results have been posted elsewhere, a link to the results and a listing of those swims that were NOT in compliance with USA Swimming rules. A record of

observed swims not accepted should be kept by the LSC NTV officials for a period of one year.

- i) Upon request, and although not a rules requirement, notification of any swims not accepted due to USA swimming technical rule violations may be provided to swimmers involved.

- F. To have a meet authorized for observation of swims, a request must be made to the designated LSC official at least ten days prior to the meet in accordance with LSC rules.
 - A. For meets other than a season-culminating Championship, use Form A. Should Form A be approved by the LSC, it must then be forwarded to the USA Swimming staff leader or designee(s). The request must include a reason and explanation for request.
 - B. For all meets leading directly to a season-culminating championship, use Form B. Form B may be approved by the LSC NTV Officer. (The LSC is responsible for determining whether observation can be properly conducted and will determine which meets will be authorized for observation of swims.) LSC NTV officers shall send the list of these meets and dates to the NTV subcommittee chair.
 - C. Official times for swims in observed meets should be entered within two weeks of the competition into SWIMS by an LSC NTV official or LSC SWIMS officer upon receipt of the following:
 - 1. Complete legible verification requests (if non-electronic results are utilized)
 - 2. Official electronic meet results or printed final results with notations indicating those swims not in compliance with USA Swimming Rules. The designated USA Swimming certified official present must attest to the LSC NTV official that the meet was run in accordance with the minimum criteria listed above. The LSC NTV official may determine that all times for athletes with full legal names and birth dates or USA Swimming ID numbers will be loaded into the SWIMS database without a specific request.
 - D. The time for a relay achieved in a high school meet may be entered into SWIMS for a USA Swimming club provided all four relay swimmers represent the same USA Swimming club at the time of the swim. All four names must be included, and a specific request be made for this manual data entry into SWIMS. Note that some state high school associations may not permit club affiliation, even for relays, during the high school season.
 - E. If an observed meet is receiving blanket observation (all swims observed) individual verification requests may be made after the meet.
 - F. The LSC may choose to load all observed times and relay lead-off splits from observed meets into SWIMS. In this case, the coach can assist in the process by making sure their swimmers are entered into the meet using their full legal names and that the DOBs are provided. If a swim is compliant with USA Swimming technical rules and the meet has received blanket

observation, all swims (unless a disqualification is noted) are valid times. The LSC may establish a fee for entry of observed swim times.

10.0 USA SWIMMING SCHOLASTIC ALL AMERICA PROGRAM

- 9.1. The USA Swimming Scholastic All America Team is comprised of high school student athletes who have a grade point average of 3.5 or higher for academic subjects and no grade lower than a C and have competed in an individual event in the Open Water National Championships, IPC or USPC meets stipulated by the Times and Recognition Committee or have a qualifying result in the SWIMS database during the designated qualifying period. The qualifying period shall be August 16th through the following August 15th. Applications for the just completed academic year will open on June 1 and must be submitted by August 15th, the last day of the qualifying period.
- A. Applicants must have completed 9th, 10th, 11th, or 12th grade.
 - B. Applicants must be USA Swimming member athletes at the time of the swim and the time of the application.
 - C. Applicants must have participated in an individual event within the qualifying period in a meet whose results are in the SWIMS database or have competed in the Open Water National Championships or the appropriate Disability Championship meet. Achieved times (pool) must meet the qualifying standards posted on the USA Swimming website for the current year. (Member Resources/Awards and Recognition/Scholastic All America)
 - D. Relay-only swimmers do not qualify for SAA.
- 9.2. Awards for Scholastic All America recognition will include:
- A. Three certificates to each individual achieving SAA Status (one for the athlete, one for the school, and one for the USA Swimming club).
 - B. A special award to each individual named to the SAA team three times (four times beginning in 2021).
 - C. Outstanding Achiever recognition to each individual who places first at the USA Swimming National Championships and maintains a 4.0 GPA.

Please see:

Appendix XVI: Recommended LSC Times Module Management

Appendix XVII: USA Swimming Request for Observation – Non-Season Culminating Championship Meet

Appendix XVIII: Local Swimming Committee Request for Observation – Season-Culminating Championship Meet

Appendix XIX: Request for Electronic Loading

Appendix XX: Meet Approval Request to USA Swimming

39.0 USA Swimming Measuring and Certifying Competition Pools

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Thank you for your interest in measuring competitive pools. This document is intended to provide pool measurement background information and measuring protocol to USA Swimming Local Swimming Committees (LSC's), Facility Operators, volunteers, surveyors, and engineers that are considering, or preparing for, pool measurement and certification. The pool measurement requirements and tolerances provided in this document are usable to both professionals and laymen.

This document is divided into 5 parts.

Part 1 is a comprehensive Question and Answers section which will provide you information on the most commonly asked pool certification and measurement subjects.

Part 2 provides an overview of general background information on pool measurement requirements. This section also provides guidelines and suggested protocol for measuring the length of lanes using a portable laser measuring device.

Part 3 provides professional surveying/engineering firms with a suggested protocol to measure lane length using "Total Station" surveying equipment. This section may also be used by volunteers with appropriate engineering or surveying background and knowledge who may wish to commission or undertake a measurement project.

Part 4 is the parts of the USA Swimming Rules and Regulations that are applicable to pool dimensional standards and are provided for ease of reference. It is intended that this part be updated whenever the rules change, however if the version date is more than one year old, the current rules should be referred to either in the printed book or on the USA swimming Web site.

Part 5 is the pool certification form.

As members of the competitive swimming community, we all must embrace the concept of equal competitive conditions for all athletes. In addition, having a certified pool significantly reduces the risk of exceptional performances by athletes being nullified by unacceptable pool measurement being found after the swim.

Please start by looking at the comprehensive Question and Answer section which will provide you information on the most commonly asked measurement subjects.

If there is anything, we can do to help you get your facility on its way to having a competition certified pool please ask.

Sincerely,

USA Swimming – Facilities Development Department

PART 1 – QUESTIONS AND ANSWERS

Questions and Answers - General

Q. I don't see a requirement in the USA Swimming Rule Book to have all pools measured. Does my pool have to be measured in order to host a USA Swimming competition?

A. Although routine measurement and certification is not currently required under USA Swimming rules, it should be considered a best practice to have current certified measurements for all competitive pool on file with USA Swimming. World, American, U.S. Open, and National Age Group Records require that the pool be certified. If the potential record were swum in an uncertified pool and the pool was subsequently measured and found not to meet the length standards, the potential record would not be accepted.

Q. Our facility does not ever host competition where athletes could potentially set records. Why should we get our pool certified?

A. Competitive swimming is based not only on head-to-head competition, but competition against the clock. The USA Swimming Rules and Regulations measurement standards are intended to ensure that swimmers achieving an official time, do so under as close to identical competitive conditions as possible.

Q. What happens if we go through the measurement process and a discrepancy is found?

A. During the comprehensive measurement process, it is possible that a range of issues may be found with the pool. These issues may include one or more lanes not meeting length requirements, starting blocks being too high, backstroke flags being improperly positioned, etc. Some of the "fixes" to these pool specification issues are relatively easy and inexpensive. Other problems can be prohibitively expensive to address. USA Swimming maintains a staff of trained consultants that can help your facility come up with a plan to address the discrepancies.

Q. OK, we measured our pool and some or all of the lanes are about 1" short. It's only an inch.... what's the big deal?

A. One inch may not seem like a large discrepancy. Competitive swimming times are measured in hundredths of a second. Rankings and qualifications for higher levels of competition frequently are determined by .01 second. Consider a 500-yard Freestyle race (20 lengths). Over the course of a race, a swimmer competing in a pool 1" short would be swimming a race 20" shorter than a swimmer in a certified pool. In a 1650-yard Freestyle race, that distance would jump to 66"! For a swimmer capable of swimming 500 yards in 5:00 minutes the advantage would be 0.33 seconds. For a 17:00 minute 1650-yard swimmer the advantage could be 1.13 seconds.

Q. We measure our pool and it comes up short.... now what? Can we still hold our meets?

A. If the pool measures short, it is going to be up to the Local Swimming Committee (LSC) to determine what the status of that pool will be for competitive swimming. The times achieved in a pool that does not meet the minimum length requirements of the rules cannot be put into the database and used for proof of time or athlete recognition programs (National Top 10, National Age Group Records, etc.). A Local Swimming Committee could choose to allow competitions to be held in those pools and use times achieved from that pool to be used for its' purposes – for instance to qualify for meets within the LSC boundaries.

Should an LSC decide to allow competition in non-conforming pools and times achieved in those competitions be used for LSC purposes, it is strongly recommended that the following statement be included in the Meet Information.

“The competition course measurement does not comply with USA Swimming Rule 103.3. Times from this competition will not be loaded into the SWIMS database and will not be used for any USA Swimming proof of time or national recognition program purposes.”

Q. Years ago, our pool was measured and certified. It has been resurfaced twice since then. Do we have to get re-measured?

A. Probably; however, it depends on the pool. If the pool has something resembling a rigid metal wall/gutter ring that was not changed and the pool surface material does not extend past the rigid metal, re-measuring may not be necessary. If the pool has the original gutter tile exposed and the new pool surface does not extend past the original tile, re-measuring may not be necessary. If the original pool measurement indicates sufficient excess length to allow a thin skim coat of surface material, re-measuring may not be necessary. In cases such as these, the projection of the new surface could be checked using a 4 ft long, precision, aluminum builders box level. If, when the level is vertical with 2' 7" below the surface, it does not contact the original pool metal edge or gutter there may be a need to re-measure and recertify. NOTE: If there is any doubt – Re-measure.

It is recommended that re-measurement and recertification by an independent licensed Surveyor or a qualified Professional Engineer in accordance with the guidelines in Parts 3 and 4 be included as a condition in any competition pool resurfacing or refurbishing contract.

Questions and Answers – Measurement

Q. I have heard we have to empty our pool in order for it to be measured. What a waste of water?

A. Pools do not have to be emptied in order to be measured. In fact, depending on the construction type, emptying the pool may result in inaccurate measurement.

Q. Can't we just pull out a tape measure and do it ourselves?

A. Unfortunately, using a tape measure in a pool environment is very complex and difficult and should only be done by a licensed Professional Surveyor. There are issues of tape material, calibration, sag, the effect of temperature on the tape, and the vertical range of certification which makes getting an accurate reading troublesome. Even Professional Surveyors are unlikely to use tapes to measure and certify lane lengths as required by USA Swimming.

Q. I see inexpensive laser measuring devices available at home improvement stores. Can we use them?

A. Probably! Provided the device is acceptably accurate, a suitable measuring protocol is followed, and the certification is supervised and signed off by a licensed surveyor or by a professional engineer who understands surveying and the limitations of the equipment and protocol used. Indoor pools are generally not a problem. Outdoor pools can be difficult to measure during high light situations. Look in Part 2 of this document for more detailed information.

Q. We have a pool with a moveable bulkhead. What are the measurement requirements?

A. Bulkhead pools provide special challenges. After the bulkhead is set in position and AFTER lane lines have been tightened, the lane lengths of all lanes must be verified. Before and after each session, the Referee must verify that the bulkhead pins are still in position. If a potential record time is achieved in a

session of the meet, the lane in which the potential record was set must be measured and attested to by a licensed surveyor or professional engineer before the pool conditions change – including loosening of any lane lines attached to the bulkhead and removal of timing pads.

Questions and Answers – Reporting

Q. Where can I get the forms to fill out for pool measurement?

A. The pool certification forms can be found in Part 5 of this document. The forms can also be found on the USA Swimming Website under: Member Resources/For Everyone/Consulting Services/Facilities then scroll down to What's Related/Pool Certification/Pool Certification Form.

Or ctrl-click on the following link: www.usaswimming.org/_Rainbow/Documents/9d9ba531-331c-4a8f-ad7c-31420805a665/Pool%20Certification%20Form.pdf

Follow the directions for submission. USA Swimming will provide a letter of certification after the documents have been reviewed and accepted.

Q. We are still confused and need help!

A. Call Dean Ekeren at USA Swimming at 719-866-3565 E-mail dekeren@usaswimming.org

PART 2 – LANE LENGTH AND POOL CERTIFICATION

Overview and “Handheld” Laser Measurement

Lane Length

Requirement – 103.3.1

Long Course: 50m (164' 0½")

Short Course: 25 yd or 25m (82' 0¼") Tolerance against length: minus 0mm, plus 30mm (13/16")*

Measurement Range: At all of both end walls in a vertical plane extending 0.3 meters (12") above and 0.8 meters (2' 7½") below the surface of the water.

* Although an “over” tolerance is specified, for most competition it is not an important consideration provided lanes are not excessively long. For a pool to be considered “fast” and for high level meets the length of each lane with touch pads in place should be well inside the “maximum” tolerance, but not shorter than the minimum length.

Practical length certification requirements:

Measurement of each lane strictly in accordance with the above requirement is not realistically possible in operational conditions, however, certification that the length is not less than the minimum requirement can be given by sampling the minimum lane length in at least two locations in each lane by someone who has the training and experience to understand the limitations of the measuring equipment and methodology that is used.

Suggested measurement locations are:

1. The edges of the “T” cross bar on each side of the lane centerline, or,

2. The center line and a fixed distance from the lane divider on one side of each lane and both sides of one of the outside lanes.

Lane lengths may be measured with or without pads in place. If the lengths are measured without pads the thickness of the pad, or pads, must be subtracted from the measured length. As a guide, the thickness of each properly mounted pad varies from 5mm (0.016ft, 3/16") for a thin pad (Daktronics) to 15mm (0.05ft, 5/8") for thick pads (Colorado, Omega).

Note: "Thick" pads, in good condition and mounted properly and flush against the wall, can be 10mm thick.

FINA sets a 10mm thickness limit in their facility rules.

Use of "straight edge" devices that extend 0.8 m (2' 7½") below, and 0.3 m (1') above, the normal water level and set to vertical with a 1:2000 (0.0005 inch per inch or 0.5mm per m) precision bubble level will allow measurement between the furthest projecting points in the vertical line at each end. (See Figure 1)

The length error potential if similarly, precise straight edges are used at each end is between minus (-) 1mm and plus (+) 1mm. Note: The error potential for "handyman" type levels is more than $\pm 5\text{mm}$ ($\frac{1}{4}$ "); which is not acceptable in "close" situations.

Note: Relative variation from the horizontal or from the perpendicular measuring location at each end in a short course (yd or m) pool of 3" (75mm), or 4" (100mm) in a long course pool, will result in an additive error of about 0.2 mm for each deviation.

The use of laser length measuring devices with a precision of $\pm 0.5\text{mm}$ over 50 m is recommended. The measuring device should be set against a fixed reference point on a stable platform attached to one of the vertical straight edges and aimed at a stable target attached to the other vertical straight edge at the other end. Care should be taken to correct the measurement to adjust for any offsets created by the set up. See Figure 1 and Figures I, Ia, Ib and Ic in Part 3.

Note: The use of steel surveyor's tapes by anyone other than a professional surveyor is not recommended. Steel tape measurement requires a properly calibrated tape, sophisticated corrections for temperature and tension, in addition to the "location errors" noted above, and special field techniques and equipment.

Vinyl, fiberglass, cloth, or any other tapes are not accurate or stable enough for measurement for lane length certification.

Measurement Methodology

Refer to Figure 1 In Part 2 for a suggested methodology for using small laser measuring devices to certify and recertify lanes in a single pool location. This methodology requires a small investment in equipment (laser, levels, and support frame) and training of users, but has little or no cost associated with verification and recertification measurement, particularly if a volunteer surveyor, engineer, or other professional oversees the measurement.

Refer to Part 3 for a suggested methodology for using a "total station" surveying instrument to certify a fixed wall pool or to certify and recertify lanes in moveable bulkhead pools. This method usually requires a professional surveyor and a survey crew and can be expensive if used to recertify lanes in moveable bulkhead pools.

Part 3 also includes suggested adaptations to the equipment for lane length measurement in pools with differing end wall configurations.

Both methodologies require an understanding of the limitations of the equipment being used and the errors introduced into the measurement by the equipment and users.

Reporting

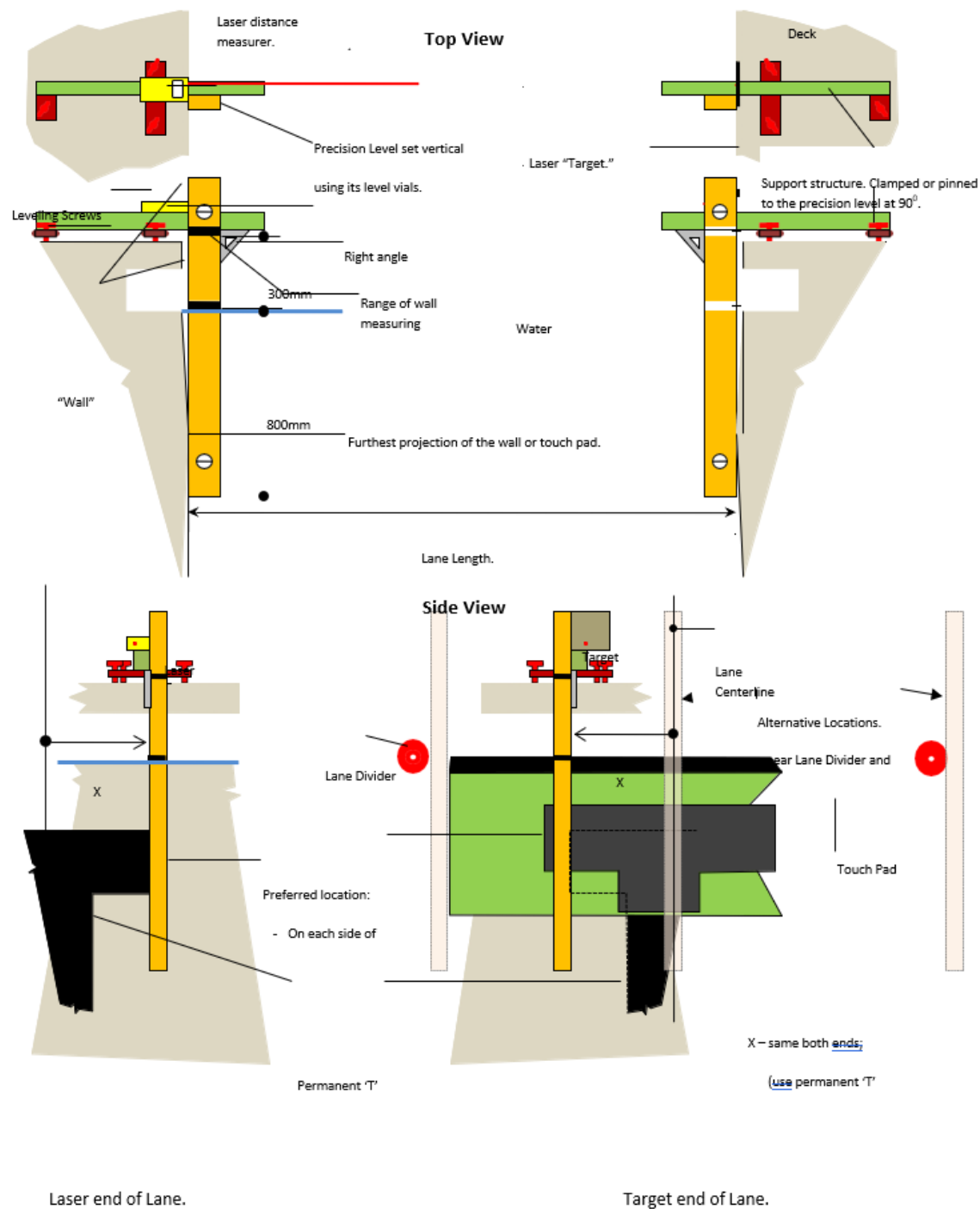
Report the shortest of the measured lengths in each lane to the nearest:

- 1/8th inch (0.01ft, 0.003m, 3mm) for 25 yd pools
- 0.003 m (3mm, 0.01ft, 1/8th inch) for 50m and 25m pools. Preferably report the shortest lane length both with and without touch pads.

Note whether touch pads were in place during measurement or a thickness is assumed. Also note:

- the type of touch pads used or assumed (thick or thin) and,
- any features of the pool that might affect the lane length if touch pads are used, e.g. retaining strips for vinyl liners, bumps or projections into the pool, transitional curves less than 800mm below the surface, etc.

Note: FINA requires end walls of pools and touch-pads, if used, to extend to 0.3 m (1 ft) above the water surface at both ends. USA Swimming and other swimming organizations in the USA do not require the end walls or touch pads to extend above the water surface. USA Swimming, however, considers any projection into the pool in the range 0.3 m above to 0.8 m below the water surface to define the lane length.



Views to Ends

Figure 1
Using "Hand Held" Laser Measuring Equipment

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Water Depth

Measurement Methodology

Measure Course depth using a stiff, wide metal retracting tape measure (when less than 2 meters) at 1m and 5m from each end and mid length of lanes. Measure each lane in the shallowest location across the full width of the lane. Measure from the water surface level at the time and, if necessary, adjust to the normal water level or overflow control level.

Note: If there are shallower locations between the 1m and 5m transect in each lane measure the depth and note the location and include the information in the report.

Reporting

Report depths rounded down to the nearest 0.1ft (1 ¼") or "greater than 6 ft", if deeper.

Lane Width

Measurement Methodology and Reporting

Measure the width of each lane from lane rope anchor to lane rope anchor at both ends using a stiff, wide metal retracting tape measure. Report the width of each lane (both ends if different) to the nearest 0.1ft (1 ¼").

Starting Platform Height

Measurement Methodology and Reporting

Measure Starting block heights from the water surface to the top front edge of each block that is in place and, if necessary, adjust to the normal water level or overflow control level. Note the location of each starting platform front edge and backstroke start hand grips relative to a vertical projection of the pool end wall or timing pad face.

Reporting

Report starting platform heights to the nearest 0.02ft (¼"). Note any platforms that are deficient:

- too low or too high. Note: max height for m pools is 2' 5 ½" – max for yd pools is 2' 6"!
- front edge or backstroke handgrips project into the pool past the end wall. Also advise owner of any that are significantly back from the end wall.

Backstroke Flag Support Location

Measurement Methodology

Measure the location of the center of each support pole or pole hole, cable, or hook from the nearest end wall with a 5 m (16' 5"), or longer, steel tape.

Reporting

Report the distance from the end wall to the center of each support to the nearest 0.01m (1cm) for m pools and ½" for yard pools.

Note any locations where the supports are more than:

- 50mm (.05 m) from the specified location of 5m from the end wall for m pools, or
- 2" (50 mm) from the specified location of 5 yds for yd pools.

15m Marks

Using a 15 m long steel tape, or other measuring device, mark the 15m locations on the sides of each racing course. Pool operators should be encouraged to make these reference marks permanent so that proper location of 15m markers in each lane can be verified by officials.

Midpoint Rope

In 50m courses note if there are midpoint rope anchor posts or post holes and that they are located 25m from the end walls.

Reporting

Report if the anchors are in place and if they are mis-located by more than 0.1m (10 cm, 4").

PART 3 – SUGGESTED PROCEDURE FOR MEASURING AND CERTIFYING COMPETITIVE SWIMMING POOLS

A Suggested Procedure for Measuring and Certifying Competitive Swimming Pools for lane lengths using "Total Station" surveying equipment.

Measurement and Certification.

Equipment:

- a surveying "total station" reading angular measurement to 5 seconds, or better, and distances to an accuracy of better than 2 mm (1 mm preferred) over 50 m. Set to read horizontal distance to the center of the prism pole.
- Tripod for the Total Station
- reflecting prism or target
- ft long prism pole
- bubble level with sensitivity better than 10 minutes of arc for 2mm of bubble movement, to "plumb" the prism pole for readings
- wide, retracting, tape measure for measuring lane widths, platform height and pool depth and for setting measuring reference marks
- Metric/imperial (min 15 m long) tape for measuring backstroke flag locations and for measuring or setting 15 m reference marks
- electrical tape or waterproof marker to set reference marks on the prism pole and, possibly, on the pool deck and walls
- notebook to record data

- Portable computer and software (spreadsheet, surveying or other “math”, and word processing) to reduce and present collected data.

Lane Lengths

Measurement may be made either with or without timing touch pads in place.

Measurement Methodology

- Measurement location. There are two options – a) fixed offsets on each side of the lane centerline, or b) the centerline and edge of each lane. The choice will depend on the accessibility to the lane center line if starting platforms are in place.
 - Mark each lane in two locations at each end approximately 0.5 m (18 to 21 inches) each side of the lane center line. Set the marks at the same relative locations, $\pm 25\text{mm}$ (1 inch), at each end of the lane. As an alternative, the outside of the end of lane “T’s” painted on the end walls may be used if they are the same at each end of each lane.
 - Mark the center of each lane and a point approximately 0.1 m (4 inches) just inside the lane divider at both ends of the outside lanes. Choose either the lane 1 or lane 8 side of all the internal lanes for a side mark at each end 0.1 m from the lane divider.
- Mark the prism pole at 0.8m (2’ 7½”) from the non-prism end (ignore any base cone); and again at 1.1m (3’ 7½”) from the end. These reflect the below and above water level lane length measurement limits. See fig. I.
- Set and level the total station on its tripod approximately midway along the length of one side of the pool. Include the appropriate prism offset into the total station setup. See fig. II.
- Select a permanent mark for a reference angle verification backsite and record the angle. The angle will only be used to verify the Total Station setup has not changed during data collection. It is not required for calculations. See fig. II.
- At the first end of lane location have the assistant place the prism pole (with prism) on the first reference location with the 0.8m mark at the water level and set it vertical using the prism pole bubble level. The pole, when vertical, will be set so that one edge is resting on the pool wall closest to the other end of the lane in that location. This may be below or above the water line. See fig. II. If the pole, when vertical, rests on a point more than 0.3 m (one ft) above the water surface, supplemental measurements will need to be taken. See “Notes”.
- When the pole is vertical, use the total station to take the horizontal angle (relative to the total station setup zero) to the center of the prism and the horizontal distance to the center of the prism pole. Record the angle and distance. (Note: Read and record the slope distance and vertical angle if the total station only measures the slope distance. Calculate the horizontal distance for use in the “cosine rule” calculations.) See fig. II.
- Move the prism pole to the second location in the lane and take and record the angles and distances. Repeat the process for each marked location in a circuit around the pool.
- When the circuit is completed, return to the reference mark and verify that the angle is at or close to the initial reading. A variation of less than 10 seconds of arc from the original reading should be acceptable.
- Leave the instrument set up and calculate the length of each lane between the corresponding points at each end using a calculator, proprietary program or spreadsheet developed for the purpose. (See “calculation”, below.)
- If there are major variations in length between lanes, verify the data entry for the lanes in question (typically transposed numbers or incorrectly matched lane locations). Supplemental readings may be required on some lanes if recording of total station data is suspect.

Notes: In some pools there may be projections into the pool that could affect the lane length measurements, such as:

- A curb or coping more than 1 ft above the water surface that project further in to the pool than the general line of the wall. An offset piece 1.1m (3' 7½") long can be clamped to the prism pole to bypass the projection. (See fig. 1a). The width of the offset piece should be added (times 2, if used at both ends) into the lane length calculation. Additionally, starting platforms should be checked to ensure the leading edges line up with the pool end wall; not the edge of the coping.
- A thin retaining strip that holds a vinyl liner in place. These are typically about ¾ inches wide, project about a ½ inch into the pool and extend around the pool about 4" to 8" below the surface. If a touch pad is used it will be moved further into the pool. If a touch pad is not used it is very unlikely to have an impact on the effective length of the lane. Figures 1b and 1c show how these situations can be measured.
- Care should be taken to note any projections into the pool that may affect the placement of touch pads if they'll be used. If a projection will affect pad placement a measurement should be taken over it and the corresponding location at the other end. If it is a small projection, say less than 2 or 3 square inches in area and projecting less than an inch and it will not impact location of a touchpad, it may not need not be measured, but should be noted.

Calculation

The "cosine rule" is used to calculate the distance between the centers of the prism pole at the corresponding locations at each end of the lane. Adjustments are made for the diameter of the prism pole, touch pads and other conditions which affect the measurement. See Figure II.

Reporting

In 25-yard pools lane lengths may be reported in feet to the nearest .01 ft or in feet and inches to the nearest 1/8 inch (0.01 ft). Metric pools must be reported in meters to the nearest 5 mm (3mm is suggested). Report the shortest of any lengths calculated for each lane and the type of touch pads (thick or thin) assumed or used, and if they were in place during measurement.

Figure I

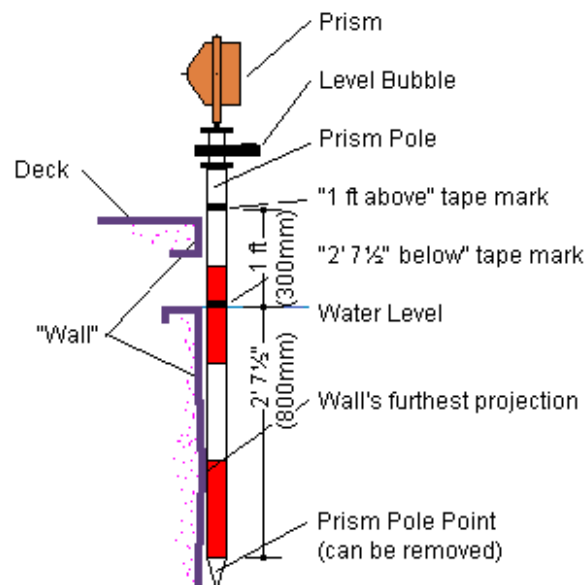


Figure Ia

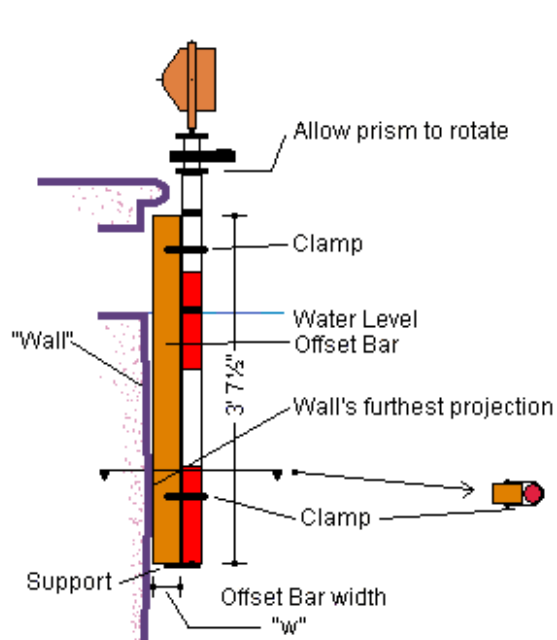


Figure I b

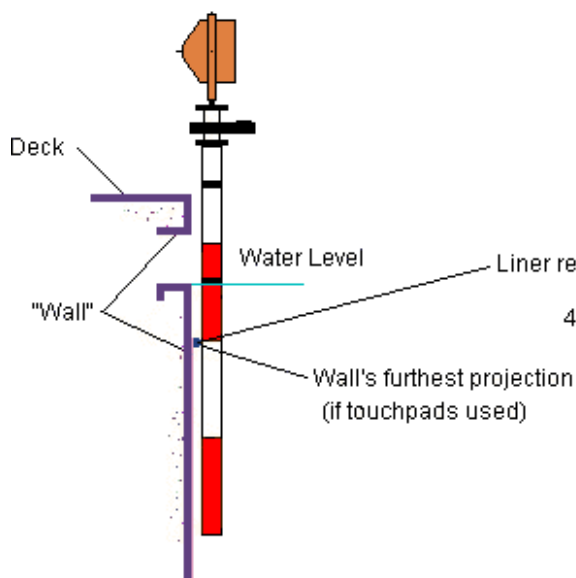
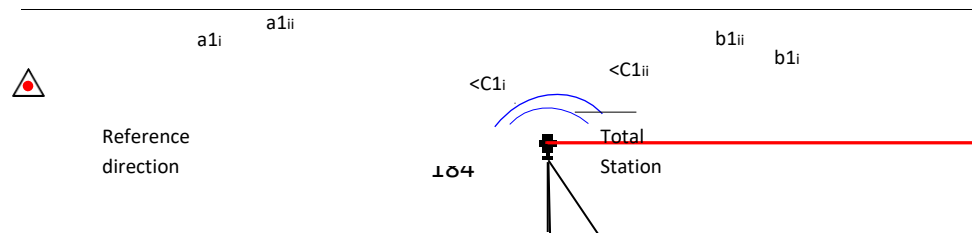
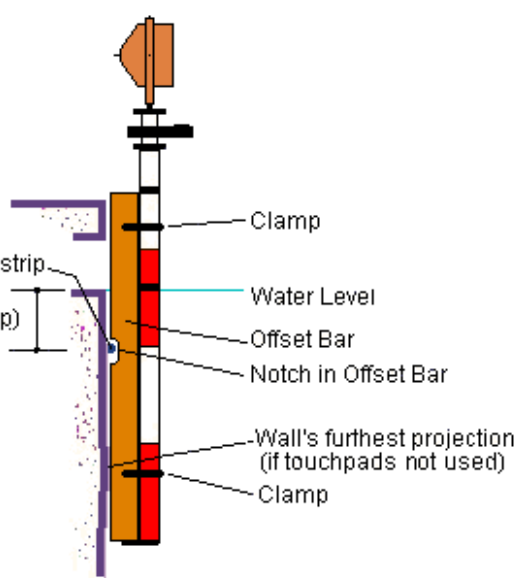


Figure I c



$L = c + p + \delta - n \cdot t$ = Lane Length where

$c = (a^2 + b^2 - 2 \cdot a \cdot b \cdot \cos(\angle C))^{1/2}$ - “cosine rule”

L = lane length with n touch pads in place.

a = horizontal distance from the total station to the center of the prism pole at one end
b = horizontal distance from the total station to the center of the prism pole at the other end

c = calculated distance between the center of the prism pole at each end of the lane

$\angle C$ = included angle between the readings for a and b which is equal the total station horizontal angle to “b” minus horizontal angle to “a”

p = prism pole diameter

δ = other adjustments – see discussion. Could include Offset Bar widths (-ve).

n = number of touch pads used in the calculation. “n” may be 0, 1 or 2. If touch pads are set in place when the measurements are taken, use n = 0 and include a note indicating the number of pads in place for the measurement.

t = touch pad thickness when in place (determined from face of wall to face of pad)

– when pads are in good condition and mounted properly, t is usually 10 to 15 mm for thicker pad types (Colorado, Omega, etc.) and 4 to 6 mm for thinner pad types (Daktronics).

Figure II

PART 4 – EXTRACTS FROM USA SWIMMING RULES AND REGULATIONS

2021 USA Swimming Rules require:

Official Glossary

Swimming Words and Terms

WALL — vertical portion of the pool, contiguous surfaces of the deck and overflow gutter, the front portion of the starting block or platform, or the touchpad at the end of the course.

ARTICLE 103

FACILITIES STANDARDS

103.1 DEFINITIONS

.1 /M/ = Indicates mandatory requirement for all competition.

.2 /NC/ = Except as noted otherwise, indicates mandatory requirement for USA Swimming Championships and International Competition.

.3 /LSC/ = Predicated on facility availability, LSC's may waive strict compliance with these requirements in sanctioning local competition.

.4 Where dimensions are given, the dimension listed first shall govern and dimensions given in parenthesis are for reference only.

103.2 WATER DEPTH

.1 /NC/ 2 meters (6 feet 7 inches) deep throughout the course.

.2 /M/ Teaching Racing Starts – (effective May 1, 2009) Minimum water depth for teaching racing starts, prior to certification, in any setting from any height starting blocks or the deck shall be 6 feet (1.84 meters) measured for a distance of 3 feet 3½ inches (1.0 meter) to 16 feet 5 inches (5.0 meters) from the end wall. Teaching racing starts shall only take place under the direct supervision of a USA Swimming member coach and shall include:

- A. All racing start instruction until a swimmer has been certified by his or her USA Swimming member coach as proficient in performing a racing start, and
- B. Subsequent to certification, instruction which seeks to alter a swimmer's basic technique in performing a racing start. Subsequent to certification, practicing of racing starts may take place in water depth of four (4) feet (1.22 meters) and deeper.

.3 /M/ Racing Starts – Minimum water depth for racing starts during practice and competition shall be measured for a distance 3 feet 3½ inches (1.0 meter) to 16 feet 5 inches (5.0 meters) from the end wall. Starting requirements and height of starting block shall be:

- A. In pools with water depth less than 4 feet (1.22 meter) at the starting end, the swimmer must start from within the water;
- B. In pools with water depth 4 feet (1.22 meter) or more at the starting end, starting platforms shall meet the height requirements of 103.12.1.

Note: Local, state, and municipal statutes, ordinances, rules and regulations, may have depth limitations in conflict with this section. The LSC and all Member Clubs should check for this at all times.

103.3 RACING COURSE DIMENSIONS

.1 /M/ Length.

- A. **Long Course:** 50.00 meters (164 feet and ½ inch).
- B. **Short Course:** 25.00 yards or 25.00 meters (82 feet and ¼ inch).
- C. **Dimensional Tolerance:** Against the required length, a tolerance of plus (+) 0.03 meters (1 and 3/16ths of an inch) in a vertical plane extending 0.3 meters (12 inches) above and 0.8 meters (2 feet, 7 and ½ inches) below the surface of the water at all points of both end walls.
- D. When automatic officiating equipment touch pads are used at one or both ends, the course shall be of such length that ensures the required distance between the two touch pads or between either pad and the opposite end of the course.
- E. When the racing course is fixed by the use of movable bulkheads, such bulkheads shall be designed to resist lateral deflection due to tension exerted by the attachment of the lane dividers to ensure the required course distance in all lanes.
- F. See Article 104, Rules for Swimming Records, for course measurements certification requirements.

.2 Width.

- A. /NC/ Eight or ten lanes, minimum width of 2.5 meters (8 feet 2 ½ inches), from center line to center line of the lane dividers, with approximately 0.45 meters (1 foot 6 inches) of additional open water outside lanes 1 and 8 (or 10). The Program & Events Committee Coordinator (or his/her designee) may waive this requirement for National Championships.
- B. /LSC/ Minimum lane width for competitive swimming shall be 7 feet (2.13 meters).

103.4 /M/ RACING COURSE WALLS

.1 **Permanent Course Walls** — Walls enclosing the racing course shall be parallel and vertical. The end walls shall be at a right angle to the water surface and shall be constructed of solid material with non-slip surface that extends no less than 0.8 meters (2 feet 7½ inches) below the water surface.

.2 **Movable Bulkhead Course Walls** — If a continuous recessed hand grip is provided at or near the water surface in a movable bulkhead, the horizontal dimension of the recess perpendicular to the bulkhead should be not less than six inches (.15 meters) and designed in a manner to prevent the swimmer's fingers from contacting the back surface of the recess.

103.14 /M/ STARTING PLATFORMS

.1 Height.

- A. **Long course and short course meters:** The front edge of the starting platform shall be no less than 0.50 meters (1 foot 8 inches) nor more than 0.75 meters (2 feet 5½ inches) above the surface of the water.
- B. **Short Course yards:** The front edge of the starting platform shall be not higher than 2 feet 6 inches (0.762 meters) above the surface of the water.

.2 The front edge of the starting platform shall be flush with the face of the end walls.

.3 The top surface of the starting platform shall be not less than 0.50 by 0.50 meters (1 foot 8 inches square) and shall slope not more than 10 degrees from the horizontal. It may have an adjustable setting back plate. The entire surface of the platform shall be faced with permanent non-slip material.

.4 Backstroke starting grips: Starting platforms shall be equipped with firm starting grips located between 0.3 meters (12 inches) and 0.6 meters (24 inches) above water surface. The front edge of the grips shall be parallel to and flush with the face of the end wall.

103.15 /M/ BACKSTROKE FLAGS AND LINES

.1 **Design:** At least three triangular pennants six (6) to twelve (12) inches in width at the base and twelve (12) to eighteen (18) inches in vertical length, of two or more alternating and contrasting colors shall be suspended on a firmly stretched line over each lane during all warmup periods and during competition for all backstroke, individual medley and medley relay events.

.2 **Location:**

- A. Long course and short course meters: 5 meters (16 feet 5 inches) from each end of the course, a minimum of 1.8 meters (5 feet 11 inches) to a maximum of 2.5 meters (8 feet 3 inches) above the water surface.
- B. Short course yards: 15 feet (4.57 meters) from each end of the course, 7 feet (2.13 meters) above the water surface.

C. Height shall be measured to the horizontal line from which the pennants are suspended.

.3 /LSC/ For long course backstroke, individual medley, and medley relay events a firmly stretched $\frac{1}{4}$ inch line without flags or pennants shall be suspended at midpoint of the course.

103.21 AUTOMATIC OFFICIATING EQUIPMENT

.3 /NC/ Touch Pads:

- A. Size and thickness: Recommended pad size shall be 6 feet 6 inches (2 meters) wide and not less than 2 feet (0.60 meters) deep. Minimum width of pads shall be 5 feet (1.52 meters). Thickness shall not exceed $\frac{3}{8}$ of an inch (1 centimeter).
- B. At the facilities in which competition to select USA Swimming National Teams for the Olympic Games and World Championships is held, the touch pads must be minimum 0.9 meters (2 feet, 11 $\frac{7}{16}$ inches) high, 2.4 meters (7 feet, 10 $\frac{1}{2}$ inches) wide and maximum one centimeter ($\frac{3}{8}$ of an inch) in thickness. Such pads shall be installed at end of the course and shall extend 0.3 meters each (11 $\frac{13}{16}$ inches) above and 0.6 meters (1 foot, 11 $\frac{5}{8}$ inches) below the water surface. The Program & Events Committee Coordinator (or his/her designee) may waive this requirement for National Championships.

ARTICLE 104

RULES FOR SWIMMING RECORDS

104.2 USA SWIMMING RECORDS

.1 General Requirements and Conditions for Records

.2 American and United States Open Records

Special Requirements and Conditions

- 1. Records established outside of the United States shall be applied for on official record application forms. When an American Record results from a World Record performance outside the United States, it shall be accepted as such upon formal approval by FINA without further certification.
- 2. When a record is claimed, an official record application form shall be filled out, signed by the designated officials, and transmitted to Headquarters with all supporting data, including official meet results and the primary printout tape from the automatic timing equipment, within 14 days after the performance.
- 3. **Pool Certification**
 - a. Record applications will not be accepted unless certification of course length accompanies them or is on file with USA Swimming.
 - b. Pool certification shall be reported on the standard form available from the President & CEO.
 - c. Certification data need only be filed once unless structural changes have occurred since original certification.
- 4. **Pool Measurement**
 - a. The length of the course, measured and certified (signed and sealed) by a surveyor or other qualified professional licensed in the State or jurisdiction where the facility is located. Such measurements shall be stated in feet and inches and fractions of an inch, or in meters and centimeters.
 - b. A statement of the conditions under which the course was measured must be included.

- c. Where a moveable bulkhead is used, course measurement of the lane in which the record was set must be confirmed at the conclusion of the session during which the time was achieved.

Please see:

Appendix XXI: USA Swimming Measurement Certification of Permanent Racing Course

40.0 Credentialing Policy

Date of adoption / Last revision: August 4, 2025

PURPOSE

The USA Swimming Credentialing Policy outlines the types of credentials and access granted to participants at USA Swimming Championship-level events (“Event” or “Events”), such as the Toyota National Championships, Speedo Junior National Championships, Speedo Winter Junior Nationals, Toyota U.S. Open, the TYR Pro Swim Series, Speedo Sectionals and the TYR Futures Championships, as well as the costs associated with certain credentials for corporate sponsors and partnerships (“Partners”).

ACCESS

The following chart depicts the types of credentials available for participants at Events, the associated access, and the necessary actions to obtain this type of credential at each Event.

Credential	Access	Necessary Documentation/Actions
Athlete	Full access, but for Hospitality or VIP areas	Must be USA Swimming member in good standing and be registered for Event; must have signed any applicable waivers; to be confirmed by Event staff at registration.
Coach	Full access	Must be USA Swimming member in good standing (including coaching requirements) and have athlete(s) registered for Event; to be confirmed by Event staff at registration. USA Swimming also imposes on limits number of coaches per Event per club based on the number of athletes registered for Event. Must sign any applicable waivers.
Official	Full access	Must be USA Swimming member in good standing (including officiating requirements), have applied in advance to be assigned to officiate Event, and have been assigned to Event; to be confirmed by Event staff at registration. Must sign any applicable waivers.
USA Swimming Staff	Full access	Must be current employee of USA Swimming and USA Swimming member in good standing; to be confirmed by Event staff at registration.

USADA Staff	Access to desk and designated USADA area	USADA will provide names of USADA Anti-Doping Control Staff prior to Event; to be confirmed by Events staff at registration. Following Event, any additional names that were given credentials should be sent to USA Swimming for review ¹² .
Media	Limited access to deck and full access to designated media area. Limited deck access: no pictures taken from behind starting blocks, during race starts, or when athletes are exiting the pool. Per USA Swimming's Professional Journalism Policies, athlete seating areas are off limits. Interviews must be conducted only in designated areas unless special arrangements are made through USA Swimming Communications staff. Per USA Swimming's Photographer	Must submit names and emails to USA Swimming Communications staff to ensure that individuals are legitimate press members and have a reason to be at Event. No access for any Attendee permanently suspended or made ineligible for membership, by either USA Swimming or the U.S. Center for SafeSport. All media members must abide by USA Swimming's Media Accreditation Policy, found here: https://www.usaswimming.org/about-usas/resources/media-information. All media members must abide by USA Swimming's Professional Journalism Policies; all videographers must abide by USA Swimming's Broadcast Policies; and all photographers must abide by USA Swimming's Photographer Guidelines. USA Swimming will distribute information regarding its Minor Athlete Abuse Prevention Policy ("MAAPP") to all Sponsor Attendees on this list. Media members must fully comply with MAAPP during Event. Following Event, any additional names that were given credentials should be sent to USA Swimming to ensure that these individuals receive information about MAAPP.

¹² For any Credential category that permits Event access and only requires names to be submitted in advance: if a name was not submitted in advance, USA Swimming Events staff shall require the individual to provide their name and email contact information at registration prior to providing a credential. The individual will also be provided with a QR Code to the MAAPP to review prior to participating.

	Guidelines, photographers may not enter competition or warm-down pool during competition or training session.	
Broadcast Team	Deck access	Must submit names and emails to USA Swimming in advance. If in position of authority over or has direct and/or frequent contact with athletes, must be members in good standing; confirmed by Event staff at registration.
Suit Servicing Partners	Full access	Per agreement with Partners, 30 days before Event, Partner must provide list of names and emails of employees, agents, consultants, and contractors (“Attendees”) at Event. USA Swimming will distribute information about MAAPP to Attendees before Event. On the list, Partner specifies whether any Attendees will have access to Athlete Services Area¹³ or is in a position of authority over or has direct and/or frequent contact with athletes, so that USA Swimming can confirm membership in good standing; confirmed by Event staff at registration.¹⁴ If Attendee does not fall into this category, they will be given VIP access instead (explained below). USA Swimming will not grant access to Event for any Attendee permanently suspended or made ineligible for membership, by either USA Swimming or the U.S. Center for SafeSport. After Event, Partner will send final list of Attendees, including those not on the original list but who did attend.

¹³ An area open to Partner in which its employees, agents, and contractors may (i) be participating in Event, (ii) have a position of authority over athletes or (iii) have direct and frequent contact with athletes.

¹⁴ For Attendees not in a position of authority over or with direct and/or frequent contact with athletes, USA Swimming will confirm that none are listed on the U.S. Center for SafeSport’s Centralized Disciplinary Database, USA Swimming’s List of Individuals Permanently Suspended or Ineligible for Membership, or USA Swimming’s List of Individuals Suspended or Ineligible – Specific Date.

Retail Partner	Access to retail areas and spectator stands	30 days prior to Event, Partner responsible for any Retail Partners will provide list of Retail Partners attending Event. USA Swimming will distribute information regarding MAAPP to all Attendees on this list. Partner will specify whether any Retail Partners will have access to Athlete Services Area or otherwise is in position of authority over or has direct and/or frequent contact with athletes, so that USA Swimming can confirm membership in good standing; confirmed by Event staff at registration.¹⁵ USA Swimming will not grant access to Event for any Retail Partner that has been permanently suspended or made ineligible for membership, by either USA Swimming or the U.S. Center for SafeSport. After Event, Partner will send final list of Retail Partners, including those not on the original list but who did attend.
Volunteer	Full access ¹⁶	30 days prior to Event, Host will provide list of Volunteers attending Event. USA Swimming distributes information regarding MAAPP. Following Event, any additional names that were given credentials should be sent to USA Swimming for review.
Agent	Spectator seating	30 days prior to Event, must provide name to USA Swimming; to be confirmed by Events staff at registration. Following Event, any additional names that were given credentials should be sent to USA Swimming for review.
Team Support	Full access, including deck and VIP areas; no access to Hospitality	Must be USA Swimming member in good standing and provide name to USA Swimming 30 days prior to Event; to be confirmed by Event staff at registration. Following Event, any additional names that were given credentials

¹⁵ For all Retail Partners not in a position of authority over or with direct and/or frequent contact with athletes, USA Swimming confirms that no Sponsor Attendees are listed on the U.S. Center for SafeSport's Centralized Disciplinary Database, USA Swimming's List of Individuals Permanently Suspended or Ineligible for Membership, or USA Swimming's List of Individuals Suspended or Ineligible – Specific Date.

¹⁶ Due to their limited role, Volunteers are not in positions of authority over or have direct or frequent contact with athletes.

		should be sent to USA Swimming staff for review. Massage therapists must also provide license numbers to USA Swimming a week prior to Event.
Event Staff	Full access but for VIP areas ¹⁷	30 days prior to Event, must provide name to USA Swimming staff; to be confirmed at registration. Following Event, any additional names that were given credentials should be sent to USA Swimming for review.
VIP	Full access; deck access only with designated USA Swimming staff for each Event; ushers will be informed which staff members are designated before each event	30 days prior to Event, must provide name to USA Swimming staff; to be confirmed at registration. Following Event, any additional names that were given credentials should be sent to USA Swimming for review.

COST

Suit Servicing

Suit servicing refers to a suit manufacturer providing practice suits, technical suits, caps, goggles, training aids, performance apparel, and/or other technical items to a team, individual athletes, and/or coaches sponsored by the suit manufacturer at an Event.

Suit servicing areas are defined as the full facility in which an Event is being hosted (e.g., ticketed spectator stands, competition pool deck, onsite retail area, practice pool deck, fan zone activation area, entrance area, and hallway corridors).

USA Swimming will provide suit servicing credentials to suit manufacturers that are Partners at no cost. Suit manufacturers that are not Partners ("Non-Partners") may purchase one credential per event at the below prices prior to each event.:

Event	Pre-Purchased Price	On-Site Purchased Price
Speedo Sectionals	\$5,000 per event	\$10,000 per event
TYR Futures Championships	\$5,000 per event	\$10,000 per event
TYR Pro Swim Series	\$10,000 per event	\$20,000 per event
Speedo Junior National Championships	\$20,000	\$40,000
Speedo Winter Junior Championships	\$20,000 per event	\$40,000 per event

¹⁷ Due to their limited role, Event Staff are not in positions of authority over or have direct or frequent contact with athletes.

Toyota U.S. Open	\$30,000	\$60,000
Toyota National Championships	\$30,000	\$60,000
U.S. Olympic Team Trials – Swimming	\$50,000	\$100,000

Non-Partners who are found to be providing service without purchasing a proper credential from USA Swimming in a suit-servicing area as defined above will be marked with an infraction and will be asked to leave the premises that are under the control of USA Swimming and the host. Should any Non-Partners incur more than three infractions regarding suit servicing credentials, then such Non-Partner will not be allowed to purchase any suit servicing credential at future events (pre-event or onsite). If USA Swimming enters into a future sponsorship agreement with a Non-Partner with previous infractions, the Non-Partner must pay USA Swimming for prior credentials for the one to three infractions that should have been purchased by the Non-Partner.

PAYMENT OPTIONS

Check

Please make check payable to USA Swimming and mail to:

USA Swimming
Attn: William Poff
1 Olympic Plaza
Colorado Springs, CO 80909

Credit/Debit Card

For transmission of credit card information, USA Swimming utilizes an encrypted email portal. Please purchase all credentials by sending an email to Will Poff at wpoff@usaswimming.org, indicating the type of credential, quantity, names, USA Swimming ID number, team affiliation, and the Event. Purchasers will then receive a generic email from USA Swimming's firewall provider, Barracuda, including a link to create a login. Responses will take place within a secure email portal, and all attachments are sent/received through this portal.

Exact Name on Card:

Card Number:

Expiration Date (MM/YYYY):

CVC Code:

Your E-mail Address:

If you prefer, you may separate the card information between two or three emails.

The information will be shredded upon completion of the transaction, and a receipt will be sent to the e-mail address provided.

Wire/ACH

If paying by wire, please use the following information

Account Name: USA Swimming

Account Number: 0534418231

ABA/Routing Number: 121000248 for Wire Transfers

102000076 for ACH Transfers

SWIFT Code: WFBIUS6S

Bank: Wells Fargo Bank West

90 S. Cascade Avenue

Colorado Springs, CO 80903

VII. Safety Policies

41.0 Safety Training for Swim Coaches In-Water Checklist

Date of adoption / Last revision: March 18, 2021

Safety Training for Swim Coaches In-Water Skills Checklist

	DATE	INSTRUCTOR'S SIGNATURE
Reaching Assist with Equipment	_____	_____
Reaching Assist without Equipment	_____	_____
Reaching Assist without Equipment from a Position in the	_____	_____
Water Throwing Assist – Ring Buoy	_____	_____
Extrication Using a Backboard at The Pool Edge	_____	_____
Head Splint – Face Up & Face Down	_____	_____

Name of Student: _____

Address: _____ City/State/Zip: _____

Date of ARC STSC Online Course Completion Certificate Presented: _____

Name of Instructor Who Tested the In-Water Portion: _____

Lifeguard Instructor Certification Agency: _____ Date of Expiration: _____

Your current certification that permits you to test for these skills

Address: _____ City/State/Zip: _____

Phone: (____) _____ E-Mail: _____

Signature of Instructor: _____

This signature verifies your certifications meet the USA Swimming guidelines that are acceptable for skill testing for the certification of Safety Training for Swim Coaches in-water portion of their skills.

Currently Approved Agencies:

- American Red Cross – Lifeguarding
- Jeff Ellis & Associates – Lifeguarding
- StarGuard Elite – Lifeguarding

- YMCA – Lifeguarding

Present this form and your ARC STSC on-line completion certificate to your LSC Registrar for verification of completing the STSC requirement for USA Swimming Coaches registration.

Disclaimer: USA Swimming reserves the right to verify the authenticity of instructor credentials with the certifying agency. Falsification of this record may constitute a Code of Conduct violation and result in a Board of Review complaint.

VIII. Appendices

Appendix I: Additional USOPC Safety Requirements

Allegations

USA Swimming must notify the USOPC's Security & Athlete Safety Office as soon as possible but no later than 24 hours after learning of an allegation of Prohibited Conduct, as defined in the Code, that occurred at an Olympic & Paralympic Training Center ("OPTC"), a USOPC Sponsored Event, or at any third party sponsored event in which the USOPC sends a delegation (a "USOPC Delegation Event"). Any temporary measure(s) imposed by USA Swimming and/or the Center in response to an allegation must be included in the required notification (as described in the following section).

This notification requirement is in addition to any other requirement to report an allegation to the Center and/or law enforcement. Any such notifications shall be submitted by email to athlete.safety@usopc.org.

Sanctions and Temporary Measures

USA Swimming must notify the USOPC's Security & Athlete Safety Office as soon as possible but no later than 24 hours of imposing its own or being notified of Center-imposed sanction(s) and/or temporary measure(s), affecting Participants who USA Swimming knows, or reasonably expects, to:

- be nominated for or selected as a Participant to a USOPC Delegation Event,
- be a Participant at a USOPC Sponsored Event,
- have access to an OPTC, and/or
- receive a benefit and/or service from the USOPC as outlined in the USOPC Athlete Safety Policy.

As well, the USOPC Security & Athlete Safety Office should also be notified in the event of any change or removal of any such sanction and/or temporary measure(s) within 24 hours of such change by the USA Swimming or notified of a change or removal by the Center.

Any such notifications shall be submitted by email to athlete.safety@usopc.org.

Jurisdiction

USOPC Assertion of Jurisdiction

The USOPC will assert jurisdiction over any alleged incident of Prohibited Conduct which is reported to have occurred at an OPTC, USOPC Sponsored Event, or a USOPC Delegation Event where the Center has not exercised exclusive or discretionary jurisdiction, and over matters the Center refers to the USOPC. In limited circumstances, the USOPC may elect, in its sole and absolute discretion, to refer the incident and jurisdiction thereof to USA Swimming.

Applicable Policies and Procedures

The USOPC Athlete Safety Policy shall apply and will govern the response and resolution of any allegation for which the USOPC asserts jurisdiction. In instances when the USOPC declines jurisdiction, the USA Swimming shall be responsible for the response and resolution of the allegation according to its own policies and procedures.

Interference/ Restrictions/Enforcement

USA Swimming shall not interfere or attempt to influence the outcome of any Prohibited Conduct investigation regardless of jurisdiction.

USA Swimming prohibits any individual who is an employee, agent, or contractor, from assisting a member or former member in obtaining a new job (except the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor.

If USA Swimming Participant is sanctioned or subject to Temporary Measures under the USOPC Athlete Safety Policy, that sanction(s) or Temporary Measure(s) must be reciprocally enforced by and between all NGBs and LAOs within the Olympic and Paralympic Movement.

Appendix II: SwimAssist Application Form

Program Requested: ☐ Initial Counseling ☐ Ongoing Counseling ☐ Alternative Assistance

Individual Receiving Requested Services

Name: _____

Address: _____

Phone: _____ Email: _____

Contact Person for SwimAssist Funding (if not survivor)

Name: _____ Relation to Survivor: _____

Address: _____

Phone: _____ Email: _____

Treatment Provider

Name: _____

Address: _____

Phone: _____ Email: _____

Funding Recipient Statement

I have read and understand the USA Swimming SwimAssist Program Overview. I understand that USA Swimming will pay fees for services directly to the provider based on invoices from the service provider or reimburse me after providing copies of invoices and proof of payment.

I understand that I am responsible for connecting the service provider to USA Swimming or for providing the invoices from the service provider to USA Swimming. I give permission for USA Swimming to contact my treatment provider to discuss payment arrangements and details about SwimAssist and to request a

progress note. This progress note does not give permission for USA Swimming to receive details about my treatment but rather permission for my provider to indicate that the therapy has been beneficial to me, and that with further therapy, I will continue to progress in healing.

Signature (Parent/Guardian if recipient under 18): _____

Print: _____

Date: _____

Appendix III: Officials' Committee – Apprentice Official

As required by the policy established in the USA Swimming Policy Manual regarding registration of apprentice officials as non-members, apprentice officials need to complete all current membership requirements within 60 days of initiation of training. The 60-day period shall begin on the date he/she first performs his/her on-deck training. It shall be the responsibility of the LSC Officials Chair to monitor all apprentice officials for completion of the membership requirements. If an apprentice official does not complete all current non-athlete membership requirements prior to the 61st day after he/she has first performed on-deck training, then he/she shall be prohibited from being on the pool deck until they have completed those requirements.

Date of adoption / Last revision: Passed November 13, Board of Directors Meeting

Appendix IV: Officials' Committee – National Championship Policy

CRITERIA USED FOR CONSIDERING AN OFFICIAL FOR AN ASSIGNED POSITION AT A NATIONAL CHAMPIONSHIP¹⁸

Criteria considered in determining assigned positions (in random order and not all inclusive):

- ☐ Qualified and proficient in the assigned position
- ☐ Demonstrated knowledge of the rules and regulations
- ☐ Demonstrated knowledge of duties and responsibilities of the assigned position
- ☐ Demonstrated integrity and good judgment
- ☐ Demonstrated ability to work well with others – “a team player”
- ☐ Demonstrated proficiency in position being considered, i.e. CJ, starter, deck referee, admin referee and meet referee
- ☐ Committed to all levels of swimming and not just the national or international deck
- ☐ Positions worked at National meets during previous years
- ☐ Individual evaluations and recommendations
- ☐ Geographical balance
- ☐ Recommendation of both the USA Officials Chair and USA Swimming as to the Meet Referee and the recommendation of the Meet Referee, the USA Officials Chair and USA Swimming as to the other assigned positions.

Date of adoption / Last revision: Passed May 2011, Board of Directors Meeting

¹⁸ Not all criteria must be met in order to be considered. As with any officiating position, all officials serve at the pleasure of USA Swimming and will be assigned based on what USA Swimming believes is in the best interest of the organization.

Appendix V: Officials' Committee International Championship

CRITERIA USED FOR CONSIDERING AN OFFICIAL FOR AN ASSIGNED POSITION AT A NATIONAL CHAMPIONSHIP¹⁹

Criteria considered for nomination (or re-nomination) as an official for the FINA list (in random order and not all inclusive):

- ☐ Age²⁰
- ☐ Demonstrated integrity and good judgment
- ☐ Demonstrated ability to work well with others – a “team player”
- ☐ Demonstrated good communication skills
- ☐ Demonstrated proficiency in position considered, i.e., referee or starter
- ☐ Committed to all levels of swimming and not just the national or international deck
- ☐ Participation at national meets, especially those where application was submitted to work the meet. Appointed meets (Olympic Trials, Pan Pacific Championships, etc.) are not considered.
- ☐ Individual evaluations
- ☐ Ability to diplomatically and skillfully represent USA Swimming at international events
- ☐ Geographical balance
- ☐ Recommendation of both the USA Swimming Officials Chair, the International Relations Committee and USA Swimming as well as other appropriate senior members of the USA Swimming community

Items considered when nominating an official for an international assignment (in random order and not all inclusive):-

- ☐ **Olympics, World Championships, and other FINA events²¹**
 - Currently on a FINA List

¹⁹ Not all criteria must be met in order to be considered. It is the goal of the Officials Committee and USA Swimming generally to place officials on the deck at International and FINA events with the ultimate goal of placing officials on the Olympic and World Championship decks. Accordingly, assignments will be based in part on achieving this goal which may mean that one or more USA FINA officials may be given preference in assignments (out of rotation or seniority). The fact that a person is on the FINA list does not necessarily mean they will officiate at a FINA sponsored meet. Final selection of officials nominated for FINA competitions is the responsibility of the FINA Technical Swimming Committee. Once an official has officiated at the Olympics games, it is understood that they may rotate off the FINA list when their current term expires.

²⁰ Currently FINA has an age limit. If this restriction is ever eliminated, then age will become less of a factor in the selection of officials for the FINA list

²¹ A person being considered for this assignment must still meet those criteria for selection as a FINA official. If for any reason, the Officials Committee, the Officials Chair or USA Swimming do not believe the person meets that criterion, then they may not be nominated for participation at the event even though they may be the most senior FINA official or next in rotation.

- Availability
 - Seniority
 - Specific needs of the competition
 - Recommendation of the Officials Committee
 - Previous assignments²²
 - Evaluations or comments from previous assignments
 - Goals and objectives of the USA Swimming
 - Recommendation of both USA Official Committee Chair and USA Swimming
 - Participation at National meets.
- **Other international competitions²³**
- Considerations in the NOMINATIONS listing
 - Level of participation at national meets
 - Nominations do not need to hold current FINA credentials
 - Availability
 - Specific needs of the competition
 - Goals and objective of the USA Swimming
 - Recommendation of both the USA Officials Committee Chair and USA Swimming

Date of adoption / Last revision: Passed May 2011, Board of Directors Meeting

²² Other than USA Officials on the TSC, if any official has worked the Olympic Games, he or she may be taken out of rotation and not assigned to any further international meets.

²³ A person being considered for this assignment must still meet those criteria for selection as a FINA official. If for any reason, the Officials Committee, the Officials Chair or VP Operations do not believe the person meets that criterion, then they shall not be appointed, or name submitted for participation at the meet.

Appendix XI: ZSAP Report Form

ZSAP REPORT FORM
Date:
Panel Chair:
Panel Members/Affiliation (Coach, Referee, Athlete):
Zone:
Appellant:
LSC:
Date Sanction Application Submitted:
Date Sanction Denied:
Date Appeal Filed:
Date Appeal Granted:
Initial Questions:
1.
2.
3.
4.
5.
Decision of Panel:
Rationale:
Other Comments:
Date Decision Delivered:
Deliver to:
Delivered by:
Signature of Panel Chair:
Date:

Appendix XII: Sanction Review Process – Questions 7 Scenario

The following questions and scenarios have been developed as one means of clarifying the purpose and intent of the Sanction Review Process and the authority of the Zone Sanction Appeal Panel (ZSAP). The ZSAP is intended to be a decision-making entity that is utilized only when all efforts at negotiation and mediation at the LSC level have failed. The ZSAP can side with one or the other party or it can decree a compromise solution. In all cases, the decision of the ZSAP is final.

- 1) A club / organization from outside the LSC requests a sanction from the LSC where the competition is to be held. The outside club / organization is denied a sanction for any number of reasons, but the meet otherwise complies with the requirements for a sanction under Article 202 of the USA Swimming Rules. Can the outside club file a sanction appeal?

Yes. However, it is important to keep in mind that the team requesting the sanction should have made every effort to negotiate with the LSC and follow their guidelines and procedures to a reasonable extent.

- 2) A club would like to offer a meet that does not follow the LSC rules / guidelines for meets that can be offered on a particular non-championship weekend. The club would like to offer a Senior meet that is open to everyone who meets the time standard. The weekend is, by rule, reserved for only AA level competition. So, the Senior meet does not comply with the established LSC rules. Can the club wishing to host the Senior meet file a sanction appeal?

Yes. The host /petitioner can file a sanction appeal. In this situation, the ZSAP could consider the appeal, review the process followed, and make a recommendation to or negotiate with the LSC, but the ZSAP could not direct the LSC to grant a sanction.

- 3) If a member club / organization wants to charge entry fees or a facility fee that differs from LSC guidelines, does the ZSAP have authority to overrule the LSC guidelines?

No. The rulebook specifically states that fees for Senior and Age group competition shall be determined by the LSC.

- 4) The Ohio LSC (Central Zone) borders the Kentucky and West Virginia LSCs (both So. Zone) on the south and the Allegheny Mountain LSC (Eastern Zone) on the east. Which ZSAP holds jurisdiction if a team in WV wants to host a swim meet in Ohio and Ohio denies the sanction request?

The Zone within which the meet would be conducted (in this case, the Central ZSAP) has jurisdiction.

- 5) A popular meet on the LSC meet schedule reached full capacity the day following the entry deadline. One of the clubs whose entries were not accepted quickly organized an alternative meet for their swimmers and other teams whose entries were also turned away. The LSC has denied a sanction for the second meet because LSC policies do not permit another meet on that weekend. Can the team trying to host the alternative meet appeal the negative sanction decision to the ZSAP?

Yes. The host /petitioner can file a sanction appeal. In this situation, the ZSAP could consider the appeal, review the process followed, and make a recommendation to or negotiate with the LSC, but the ZSAP could not direct the LSC to grant a sanction

- 6) An LSC requires that all clubs desiring to bid a meet for the upcoming season must attend the LSC meetings and present their bids in person. The failure to do so means that the club will not be awarded any sanction. If a club from outside the LSC wishes to bid a meet within the LSC and is denied the sanction for its failure to participate at the meeting, does the ZSAP have the authority to review this decision?

Yes. However, it is important to keep in mind that the team requesting the sanction should have made every effort to negotiate with the LSC and follow their guidelines and procedures to a reasonable extent.

- 7) If a sanctioning LSC will only grant a club / team from another LSC a sanction if the meet referee or other key officials are certified by the sanctioning LSC, does the ZSAP have authority to review this decision?

Yes, as long as the proposed meet complies with the requirements for a sanction under Article 202 of the USA Swimming rules. However, the team requesting the sanction should have made every effort to negotiate with the LSC and follow their guidelines and procedures to a reasonable extent.

Appendix XIII: Recommended LSC Times Module Management

The LSC shall appoint a LSC SWIMS Officer whose duty is to maintain the integrity and purpose of SWIMS. A SWIMS Officer shall be a USA Swimming non-athlete member in good standing with APT and BGS. In fulfilling this duty, he/she shall:

- Receive official meet results from the meet host no later than one (1) week from the last day of the meet (1-3 days is recommended).
- Review meet results for possible errors; if errors are found, meet file is sent back to the meet host for investigation and correction.
- Load meet results into SWIMS no later than two (2) weeks from last day of the meet (3-7 days is recommended).
- Clear the Times Holding Tank for individual and relay errors in a timely manner.
- Communicate with the LSC registrar as necessary to resolve membership questions or issues.
- Provide LSC webmaster with official meet results and update these if necessary, for posting of results on the LSC website.
- Keep data from observed swims' competitions for a period of one year.

NOTE: The following positions may also be set by the LSC for handling of meets/times:

- NTV
 - An individual who tracks the observed swims competitions and may authorize the observation for those meets; the LSC NTV shall report the LSC observed meets to the T & R designee.
 - An LSC may also use the LSC Sanction Chair or Admin Vice Chair to authorize observed swims competitions.
 - The NTV officer or a Sanction Chair/Admin Vice Chair shall work with the SWIMS Officer to ensure that swims in compliance with USA Swimming rules are loaded into the SWIMS database from observed meets.
- Records Chair
 - An individual who tracks the LSC Records and may use the SWIMS database in reviewing times for LSC swimmers (Read-only privileges).
 - Records may be set up and maintained in the LSC Portal on the USA Swimming website (instructions published and posted under Times Information on the website).
 - Password for administrative privileges to set up records in the LSC Portal is provided by USA-S Times Staff member.
- Top Times Tabulator
 - An individual who reviews the Age Group Top Times posted on the USA Swimming website weekly during the swim year for any times tracked nationally from the LSC.
 - Tabulator may use the database in a Read-only capacity to pull reports for the LSC Top Times which should be posted on the LSC website according to the LSC schedule.

All appointments for use of the SWIMS Database for Times are made by the LSC General Chair to the USA Swimming IT Director with copy to the Chair of the Times and Recognition Committee and USA Swimming Times Staff. A list of these individuals is maintained by the T & R Committee for ongoing communication and continuing education.

Appendix XIV: USA Swimming Request for Observation – Non-Season Culminating Championship Meet

Form A

Meets requiring authorization by the USA Swimming staff leader or National NTV designee require **10-day advance**

application. Such meets include High School, Masters' or other meets that are not season-culminating championship

meets. This completed form and a copy of the meet information must be sent at least 10 days prior to the event to

the LSC NTV official for review. The LSC official will send this completed form to the National NTV designee for approval. The request must include a reason & explanation for the request.

Acceptance of verification requests from the meet is subject to proof that conditions at the meet were in conformance

with the required procedures and pertinent USA Swimming Rules and Regulations.

Name of Meet: _____ **Name of Facility:** _____

Date(s) of Meet: _____ **Meet Director:** _____

Name of person filing this request: _____ **Phone:** _____

Is this meet on the regular, published calendar? ☐ Yes ☐ No Type of
Meet: ☐ High School ☐ College ☐ Masters

Course: ☐ Long Course Meters ☐ Short Course Yards ☐ Short Course
Meters

Approx. number of teams participating _____ Approx. number of swimmers participating _____

☐ Timing systems will conform to the conditions specified in 102.24 USA Swimming Rules & Regulations.

☐ The number of Association officials must meet the minimum requirements. There must be a referee, starter and two stroke and turn officials as provided in Article 102.10 – USA Swimming Rules & Regulations. A minimum of two additional USA Swimming Certified stroke & turn officials shall be assigned as observers for the purpose of verifying conformance with USA Swimming technical rules. Observers shall be permitted access to the pool deck. If at least two of the association meet officials are dually certified by USA Swimming, additional observers are not necessary. Where the technical rules listed in Article 101 are the same as the host organization, the judgment of the organization officials shall be sufficient.

☐ USA-S disqualifications from observed meets shall be reported to the LSC NTV Officer

☐ The meet referee, or LSC designee, will provide swimmers and coaches with information about the observation program and the procedures to be used to request observation. Requests may be submitted prior to the swim for which observation is desired, or all swims may be observed.

☐ A copy of the meet information is attached. Names and phone numbers of USA Swimming officials who will serve as observers at this meet or the dually certified officials:

1) _____ 2) _____

3) _____ – 4) _____

[] The reason & explanation for this request is attached.

This form must be submitted and accepted by the LSC NTV Official prior to submission to the National NTV Designee.

Step One – Accepted by:

Step Two – Approved by:

LSC NTV Official

NTV Designee

Date: _____

Date: _____

Appendix XV: Local Swimming Committee Request for Observation – Season-Culminating Championship Meet

Form B

This form is used to request authorization for observation of swims at High School, Masters or other association season culminating Championship meets. Observation requests for meets that are not season-culminating Championship(s) must be made on Request for Observation – Form A.

Application Requirements:

- 1) **Timing systems** must comply with conditions outlined in 102.24 USA Swimming Rules & Regulations.
- 2) **Officiating:**
 - a) The number of Association officials must meet the minimum requirements (a referee, starter and two stroke and turn officials) as provided in Article 102.10 – USA Swimming Rules & Regulations. If the association stroke and turn officials are also certified by USA-S and are in position on deck, no additional observers are necessary. Officials may note compliance with USA Swimming Technical Rules only for those swimmers requesting observation, or the entire meet may be observed.
 - b) Or, a minimum of two USA Swimming certified officials shall be assigned and in position on the deck, to verify compliance with USA Swimming Rules for those swims requested to be observed.
 - c) Where the technical rules as listed in Article 101 are the same as the host organization, the judgment of the organization officials shall be sufficient.
 - d) The designated USA Swimming certified official must verify compliance with applicable rules and procedures and shall forward any proof of times requests and final results for observed meets to the LSC NTV official.
- 3) **Proof of Times Requests:**
 - a) If an athlete's USA-S ID # or full legal name and birth date is included in the electronic meet results, no individual request for data entry into the SWIMS system should be necessary. The LSC NTV official or SWIMS data officer shall enter times for any such athlete into SWIMS.
 - b) If the above data is not included in the electronic results, individual requests for times may be required by the LSC NTV official where the meet took place.

Name of Meet: _____ Date(s): _____

Name of Facility and City _____

By signing below, the Meet Referee or Meet Director verifies the following:

Check one of the options listed below and complete the remainder of this section.

- ☐ This meet will be observed in its entirety, exclusively by USA Swimming Officials, according to staffing guidelines specified in USA Swimming Rules & Regulations.
- ☐ This meet will be officiated exclusively by USA Swimming officials, but due to the limited number of verification requests expected, only swims specifically requested in advance will be observed for compliance with USA Swimming Rules.
- ☐ This meet will be officiated by the proper number of Association officials and also observed by a minimum of two assigned USA Swimming Stroke & Turn certified officials positioned on deck in compliance with USA Swimming Rules.

Names of currently certified USA Swimming officials who will officiate at the meet:

1) _____ 2) _____

3) _____ 4) _____

Name of Meet Referee _____ Phone _____

This form must be received by the designated person in the LSC at least 10 days prior to the meet.

Approved: _____(LSC NTV Official)

Please send copy or provide list of authorized meets electronically to the National NTV designee\

Form C

Appendix XVII: Meet Approval Request to USA Swimming

Form E

Reference USA Swimming Rules and Regulations 202.6– *Requirements for Approval*

Approvals may be issued to **member clubs for open competition** conducted in accordance with USA Swimming technical rules if that competition has been specifically approved by USA Swimming Staff Leader or his/her designee.

Request for Approval: _____ Club of the _____ LSC Hereby

requests approval of the following meet: _____

Date _____ Facility _____

Person initiating request _____ Position _____

Email address _____

Requirements

- The meet must be approved by the host LSC before submission to USA Swimming.
- Approval meet status shall not be a means to avoid participants having USA Swimming membership.

Reasons for hosting the meet as approved rather than sanctioned are as follows:

Approved by LSC: _____

Approved by USA Swimming:

Designee _____

Date _____

In granting this approval it is understood and agreed that USA Swimming shall be free and held harmless from any liabilities or claims for damages arising by reason of injuries to anyone during the conduct of the event.

Appendix XVIII: USA Swimming Measurement Certification of Permanent Racing Course

City and State in which pool is located: _____

Name of Pool Owner or Operator: _____

Mailing Address: _____

City, State, Zip: _____

Pool Name: _____

Pool Address (if different from above): _____

City, State, Zip: _____

LSC: _____ (If you do not know the LSC [Click Here](#))

RELEVANT USA SWIMMING REGULATIONS

Rule 103.2.3 Racing Starts – Minimum water depth for racing starts during practice and competition shall be measured for a distance 3 feet 3 ½ inches (1.0 meter) to 16 feet 5 inches (5.0 meters) from the end wall.

Rule 103.3.1.C Dimensional Tolerance: Against the required length, a tolerance of plus (+) 0.03 meters (1 and $\frac{3}{16}$ ths of an inch) in a vertical plane extending 0.3 meters (12 inches) above and 0.8 meters (2 feet, 7½ inches) below the surface of the water at all points of both end walls.

Rules 103.3.1.D When automatic officiating equipment touch pads are used at one or both ends, the course shall be of such length that ensures the required distance between the two touch pads or between either pad and the opposite end of the course.

Rule 104.2.2.C(4)(a) The length of the course, measured and certified (signed and sealed) by a surveyor or other qualified professional licensed in the State or jurisdiction where the facility is located. Such measurements shall be stated in feet and inches and fractions of an inch, or in meters and centimeters.

Rule 104.2.2.C(4)(b) A statement of the conditions under which the course was measured must be included.

Rule 104.2.2.C(4)(c) Where a moveable bulkhead is used, course measurement of the lane in which the record was set must be confirmed at the conclusion of the session during which the time was achieved.

NOTE: If two or more racing courses are offered in the same pool (i.e., 50m x 25y), a separate form for each course must be filed.

MEASUREMENTS (ANSWER ALL QUESTIONS)

Check off each item below:

This pool is: ☐ Long Course (50m); ☐ Short Course yds (25y); ☐ Short Course m (25m)

This pool is: ☐ indoors; ☐ outdoors

Touch pads: ☐ One end; ☐ Both ends; or ☐ No touch pads - are included in the measurement.

This pool has: ☐ Fixed End Walls; ☐ Moveable bulkheads at ☐ one or ☐ both ends.

Minimum Length of each Lane:

	LANE 1	LANE 2	LANE 3	LANE 4	LANE 5	LANE 6	LANE 7	LANE 8	LANE 9	LANE 10
Feet	ft	ft	ft	ft	ft	ft	ft	ft	ft	ft
Meters	m	m	m	m	m	m	m	m	m	m

WATER DEPTH (IN FEET)

	LANE 1	LANE 2	LANE 3	LANE 4	LANE 5	LANE 6	LANE 7	LANE 8	LANE 9	LANE 10
Start 1m	00.0ft	ft	ft	ft	ft	ft	ft	ft	ft	ft
Start 5m	ft	ft	ft	ft	ft	ft	ft	ft	ft	ft
Mid length	ft	ft	ft	ft	ft	ft	ft	ft	ft	ft
Turn 5m	ft	ft	ft	ft	ft	ft	ft	ft	ft	ft
Turn 1m	ft	ft	ft	ft	ft	ft	ft	ft	ft	ft

*Minimum depth across lanes in each location. Include both outside lanes and at least every other inside lane.

In my opinion, the provisions of USA Swimming Rules 103.3.1 and 104.2.2 as outlined on the

previous page have been compiled with in subject pool, with the following exceptions:

Measurements were made on _____, 20____, at _____AM/PM under normal competitive temperature conditions and to an accuracy of at least .01 feet ($\frac{1}{8}$ inch or 3mm) in short course pool and at least 5mm in long course pool.

At the time of measurement, I was not in the employ of the pool builder.

The following equipment was used for measurements:

Print Name: _____

Signature: _____

Title/Degree: _____

Address: _____

City, State, Zip: _____

Telephone: (_____) _____

Check one:

☐ Registered Surveyor

☐ Registered Engineer

License # _____

State: _____

Mail this completed form to:

NATIONAL EVENTS
USA SWIMMING
1 OLYMPIC PLAZA
COLORADO SPRINGS, CO 80909-
5770

To receive a confirmation of receipt and acceptance, please CLEARLY PRINT your name and email address below:

Name: _____

E-mail: _____